



KOSDAQ Market Listing Regulation

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PART I. GENERAL PROVISIONS

CHAPTER I. GENERAL PROVISIONS

§1. Purpose

The purpose of this Regulation is to prescribe the matters necessary for the Korea Exchange to examine the securities to be listed on the KOSDAQ Market and manage corporations and securities listed on the KOSDAQ Market in accordance with Article 390 of the Financial Investment Services and Capital Markets Act.

§2. Definitions

(1) The terms used in this Regulation shall be defined as follows: [March 16, 2022] (Amended on December 27, 2023)

1. The term “listing” means the granting of qualifications to be traded on the KOSDAQ Market for securities of a specific issue, except as otherwise provided in this Regulation. In such cases, the types of listing shall be classified into each of the followings:
 - (a) Initial listing: Case of securities of an issue that have not been listed on the KOSDAQ Market are listed for the first time. Provided that, the case of listing after merger of a special purpose acquisition company pursuant to (f)(ii) shall be excluded;
 - (b) Backdoor listing: Cases where, as stipulated in [§33] or [§64], there is an effect of listing equity securities of a corporation, which is not listed on the KOSDAQ or KOSPI market, with respect to a merger, all-inclusive stock swap, takeover of business, acquisition of assets, investment in kind, etc.;
 - (c) Re-listing: Cases where, as stipulated in [§39], common stocks issued by a corporation that is established through spin-off, merger after spin-off, or merger of a KOSDAQ Market-listed corporation are listed on the KOSDAQ Market;

- (d) Listing change: Case of listing after changing the class, name of issue, par value, quantity, etc. of a listed security. Provided that, the listing that falls under supplementary listing shall be excluded;
 - (e) Supplementary listing: Case of listing new securities issued by a corporation listed on the KOSDAQ Market, which is identical to the securities that are already listed;
 - (f) Listing after merger: Case of listing stocks subsequent to a merger between a special purpose acquisition company and a corporation that is not listed on the KOSDAQ Market. In such cases, the types of the listing after merger shall be classified as follows:
 - (i) Listing of new stocks issued by the special purpose acquisition company in the case where such special purpose acquisition company continues to operate after the merger; and
 - (ii) Listing of stocks issued by the corporation that is not listed on the KOSDAQ Market in the case where such corporation continues to operate after the merger.
2. The term “listing applicant” refers to a person who applies for a preliminary listing review or listing examination in order to list securities on the KOSDAQ Market. In such cases, the types of listing applicant shall be classified as follows:
- (a) Applicant for initial listing;
 - (b) Applicant for backdoor listing;
 - (c) Applicant for re-listing;
 - (d) Applicant for listing change;
 - (e) Applicant for supplementary listing; and
 - (f) Applicant for listing after merger.
3. The term “KOSDAQ-listed corporation” refers to a corporation of which securities are listed on the KOSDAQ Market.
4. The term “common-stock-listing corporation” refers to a corporation of which common stocks are listed on the KOSDAQ Market.
5. The term “KOSPI-listed corporation” refers to a corporation of which stocks or depository receipts (DRs) of foreign stocks are listed on the KOSPI Market.
6. The term “KONEX-listed corporation” refers to a corporation of which stocks are listed on the KONEX Market.

7. The term “unlisted corporation” refers to a corporation of which stock is not listed on the KOSDAQ Market, KOSPI Market or KONEX Market.
8. The term “backdoor listing target company” refers to an unlisted corporation (including a corporation that issues equity securities other than stocks) or a KONEX Market-listed corporation that is subject to backdoor listing.
9. The term “listed issue” means a stock, DRs of foreign stocks, subscription warrant, subscription right certificate, and beneficiary certificates which are issued by a KOSDAQ-listed corporation and listed on the KOSDAQ Market in accordance with this Regulation. (Amended on March 4, 2026)
10. The term “stocks, etc.” refers to the securities under the Financial Investment Services and Capital Markets Act (hereinafter referred to as the “Act”) and fall under any of the followings:
 - (a) Stocks (Business development investment company stocks noted in [§85-2(4)] a shall be excluded); (Amended on March 4, 2026)
 - (b) Subscription rights;
 - (c) Convertible bonds;
 - (d) Bonds with warrant;
 - (e) DRs of foreign stocks; and
 - (f) Corporate bonds that are exchangeable or redeemable for securities under items (a) through (e)
11. The term “common stock” refers to stocks issued by domestic companies excluding different classes of shares pursuant to Article 344 of the Commercial Act and multiple voting stocks (hereinafter referred to as “multiple voting stocks”) issued under Article 16-11, Paragraph 1 of the Special Act on the Promotion of Venture Businesses (hereinafter referred to as the “Venture Business Act”); the same shall apply hereinafter.]. Provided that, stocks issued by a special purpose acquisition company or a business development investment company noted in subparagraph 2 of [§85-2] shall be excluded. (Amended on March 4, 2026; July 1, 2026)
12. The term “different classes of shares” refers to the different classes of stocks issued by a domestic company pursuant to Article 344 of the Commercial Act.
13. The term “largest shareholder, etc.” refers to a person who falls under any of the following items:
 - (a) The largest shareholder falling under any of the followings (hereinafter referred to as

the “largest shareholder”). Provided that, when calculating the shareholding of the largest shareholder, the stocks owned for investment purposes by professional investors shall be excluded.

- (i) The person who owns the largest number of stocks among the largest shareholders under Subparagraph 6(a) of Article 2 of the Act on Corporate Governance of Financial Companies. In such cases, “financial companies” shall be construed as “corporations” and “issued stocks (including equity shares; hereinafter the same shall apply) shall be construed as “issued stocks”; and
 - (ii) In cases where a venture capital is the largest shareholder, the person who becomes the largest shareholder when the stocks owned by the concerned venture capital are excluded. Provided that, in cases where the person who becomes the largest shareholder does not participate in management, that person shall not be deemed as the largest shareholder.
- (b) A person who has a special relationship with the largest shareholder specified in each subparagraph of Article 3(1) of the Enforcement Decree of the Act on Corporate Governance of Financial Companies (hereinafter referred to as “specially related person”).

13-2. The term “largest voting holder, etc.” means any person falling under any of the following subparagraphs in a company that has issued multiple voting stocks: [July 1, 2026]

- (a) The largest voting holder (hereinafter referred to as the “largest voting holder”) according to any of the following. Provided that voting rights of shares owned by a professional investor for investment purposes shall be excluded from the number of voting rights held when determining the largest voting holder. [July 1, 2026]
 - (i) The person with the largest number of voting rights among the principals in a case where, based on the total number of voting rights of issued stocks, the combined number of stocks owned on their own accounts by the principals and their related parties, regardless of whose name the stocks are registered under, is the largest. [July 1, 2026]
 - (ii) A person who becomes the largest voting holder when the voting rights of the stocks owned by the venture capital firm are excluded. Provided that, if the person who becomes the largest voting holder when the venture capital firm is excluded does not participate in management, that person is not considered the largest voting holder. [July 1, 2026]
- (b) Related parties of the largest voting holder. [July 1, 2026]

14. The term “venture capital” refers to a person who falls under any of Paragraph (1)2(a) of Article 2-2 of the Venture Business Act. (Amended on July 1, 2026)
15. The term “professional investor” refers to professional investors who, from among those prescribed in Article 9 (5), are stipulated in the Enforcement Rules.
16. The term “minority shareholder” refers to a person, professional investor or employee stock ownership association who owns shares less than 1/100 of total number of shares issued. Provided that, the largest shareholder, etc. shall be excluded from the minority shareholder and the employee stock ownership association shall be construed as one (1) minority shareholder.
17. The term “electronic registration” means entering information on the creation, modification or lapse of a right to securities in the electronic register through electronic means in accordance with the Act on Electronic Registration of Stocks, Bonds, etc.
18. The term “mandatory holding” means electronically registering stocks, etc. owned by persons subject to the mandatory holding under this Regulation in the electronic registration account book managed by the Korea Securities Depository (hereinafter referred to as the “KSD”) or depositing the stocks, etc. in the KSD for a certain period of time, so that the transfer between accounts, the establishment and deletion of a right of pledge, sale and withdrawal of the concerned stocks, etc. are restricted. In such cases, the stocks, etc. shall include stocks that have been acquired through exercises of rights granted to the stocks, etc. subject to mandatory holding, stock dividends and capital increase without consideration specified in the Enforcement Rules or converted in accordance with laws and regulations. (Amended on July 1, 2026)
19. The term “outside director” refers to an outside director under Article 542-8 of the Commercial Act.
20. The term “audit committee” refers to the audit committee under Article 542-11 of the Commercial Act.
21. The term “holding company” refers to a holding company under Subparagraph 1-2 of Article 2 of the Act on Monopoly Regulation and Fair Trade.
22. The term “subsidiary” refers to a subsidiary company that is required to be consolidated in accordance with Article 3(1) of the Enforcement Decree of the Act on External Audit of Stock Companies, etc. (hereinafter referred to as the “Enforcement Decree of Act on External Audit”) or accounting principles generally accepted in foreign countries.
23. The term “foreign company” refers to a corporation incorporated under the laws of foreign countries.
24. The term “home country” refers to a country where the law that served as the legal ground for the incorporation of a foreign corporation was enacted. Provided that, in cases where it is acknowledged inappropriate to designate the country concerned as the

home country, the Korea Exchange (hereinafter referred to as the “Exchange”) may determine the home country differently by taking into account the actual address of the foreign corporation, etc.

25. The term “foreign holding company” refers to a foreign company whose main business is to control the business of other companies through stock ownership and whose aggregated value of stocks held in the foreign subsidiaries constitutes 50/100 or more of its total assets as stipulated in the Enforcement Rules.
26. The term “foreign holding company located in Korea” refers to a company whose sole purpose is to control the business of its foreign subsidiaries through stock ownership and whose aggregated value of stocks held in the foreign subsidiaries constitutes 50/100 or more of its total assets as stipulated in the Enforcement Rules.
27. The term “foreign subsidiary” refers to a subsidiary that is a foreign corporation and required to be consolidated in accordance with the accounting standards adopted by the foreign holding company or the foreign holding company located in Korea.
28. The term “major foreign subsidiary” means a foreign subsidiary whose proportion of sales or net income as of the end of the latest business year exceeds 50/100 of the sales or net income on the consolidated financial statements of a foreign holding company or a foreign holding company located in Korea (including the case where the sum of sales or net income of two or more companies meets the requirement). In such cases, a foreign holding company or a foreign holding company located in Korea with a recent business year of less than one (1) year, its sales and net income shall be calculated pursuant to each of the followings:
 - (a) Sales: The sum of sales of foreign subsidiaries in the latest business year, or
 - (b) Net income: The sum of net incomes of foreign subsidiaries in the latest business year multiplied by the equity ratio of the holding company at the time of establishment or conversion.
29. The term “listing of offshore holding company” means a case that falls under any of the followings:
 - (a) Case of listing foreign stocks, etc. issued by a foreign holding company in cases where the place of incorporation of the foreign holding company and that of its major foreign subsidiary are different; and
 - (b) Case of listing stocks of a foreign holding company located in Korea.
30. The term “foreign stocks, etc.” refers to stocks whose rights are equivalent to the rights of common stocks, as stocks issued by the foreign company pursuant to the laws of the home country, and DRs of foreign stocks (referring to the securities DRs which the KSD issued in Korea pursuant to Article 4(8) of the Act based on the stocks issued by a foreign company; hereinafter the same shall apply).

31. The term “foreign different classes of shares” refers to the stocks which are issued by a foreign company pursuant to the laws of the home country and whose the details of rights are equivalent to those of different classes of stocks.
32. The term “foreign KOSDAQ-listed company” refers to a foreign company that has listed foreign stocks, etc. on the KOSDAQ Market.
33. The term “eligible foreign securities market” refers to an overseas securities market as set forth by the Exchange in the Enforcement Rules in consideration of market stability, liquidity and transparency among overseas securities markets (referring to overseas market similar to the securities market under Paragraph (4)1 of Article 8-2 of the Act; hereinafter the same shall apply).
34. The term “base market capitalization” refers to the amount calculated in accordance with the each of the following methods based on the stocks to be listed:
- (a) In the case where a listing applicant conducts a public offering or a public sale of stocks or DRs of foreign stocks after applying for preliminary listing review: The amount determined by multiplying the number of stocks or DRs of foreign stocks to be listed by the price of stocks or DRs of foreign stocks sold through a public offering or a public sale as of the date of application for listing examination; and
 - (b) Notwithstanding item (a), in the cases of listing stocks or DRs of foreign stocks issued by a corporation listed on an overseas securities market, listing through simultaneous public offering at home and abroad (referring to a case of issuing stocks or DRs after applying for a preliminary listing review in accordance with the relevant foreign laws and regulations for the purpose of listing on an eligible foreign securities market concurrently with the domestic public offering and public sale; hereinafter the same shall apply), or other cases where it is difficult to calculate the base market capitalization: The amount determined according to the methods stipulated in the Enforcement Rules in consideration of the market price in foreign securities markets or the prices of stocks sold through a public offering or a public sale.
35. The term “number of floating stocks” refers to the number of common stocks, foreign stocks, etc., and stocks issued by a special purpose acquisition company stocks listed on the KOSDAQ Market (hereinafter referred to as the “total number of common stocks”) after excluding the number of stocks in each of the followings:
- (a) The number of shares held by the government and the Korea Deposit Insurance Corporation (KDIC);
 - (b) The number of shares held by foreign investors in foreign-invested companies established in accordance with the Foreign Investment Promotion Act. Provided that, this provision shall be applicable only in cases where the Korean investors hold at least 51/100 of the total number of common stocks;

- (c) The number of shares that were issued in accordance with the procedures under the Debtor Rehabilitation and Bankruptcy Act or the Corporate Restructuring Promotion Act and are under mandatory holding in the KSD as per court rulings or the Regulations on Issuance, Public Disclosure, Etc. of Securities. Provided that, this provision shall be applicable only in cases where documents substantiating the mandatory holding status have been submitted to the Exchange; and
 - (d) The number of shares that are under mandatory holding pursuant to this Regulation.
36. The term “special purpose acquisition company” refers to the special purpose acquisition company pursuant to provisions other than each item of Article 6(4)14 of the Enforcement Decree of the Financial Investment Services and Capital Markets Act (hereinafter referred to as the “Enforcement Decree of the Act”).
37. The term “stocks of a special purpose acquisition company” refers to common stocks issued by a special purpose acquisition company.
38. The term “venture company” refers to a small and medium corporation under Article 2 of the Framework Act on Small and Medium Enterprises that falls under any of the followings:
- (a) A company that has passed at least one (1) year from the date of receiving the investment that meets the requirements under Article 2-2(1)2(a) of the Venture Business Act. Provided that, in the case of venture companies located in the provinces stipulated in the Enforcement Rules (hereinafter referred to as the “provincial venture companies”) shall be included even if one year (1) has not passed from the date of receiving the investment;
 - (b) A company that meets the requirements under Article 2-2(1)2(b) or (c) of the Venture Business Act; and
 - (c) A technological innovation-oriented small and medium companies prescribed in Subparagraph 3-2 of Article 2 of the Act on the Promotion of Technology Innovation of Small and Medium Enterprises.
39. The term “technology growth company” refers to a company that falls under any of the followings:
- (a) A company (hereinafter referred to as the “innovative technology company”) that wishes to be listed by meeting the requirements under [§30(1)], [§63(1)] or [§75(2)], as a company that is recognized for its technology and growth potential; and
 - (b) A company (hereinafter referred to as the “business model company”) that wishes to be listed by meeting the requirements under [§30(2)] along with recommendation given by a listing sponsor after evaluating the competitiveness and growth potential of the business model, as a company with a knowledge-based unique business model.

40. The term “pharmaceutical·bio company” refers to a company falling under any of the followings:
- (a) Pharmaceutical companies prescribed in Article 2, Subparagraph 2 of the Special Act on the Promotion and Support of Pharmaceutical Industry;
 - (b) Any company that uses biotechnology or engage in industrial activities related thereto and falls under bio industry classification code (KS J 1009) of the Korean Agency for Technology and Standards; and
 - (c) Any company that manufactures medical devices prescribed in Article 2(1) of the Medical Devices Act.
41. The term “company with unrealized profit” refers to a company that fails to meet the requirements under [§28(1)2(a)] regarding business performance and market evaluation, etc., but satisfies the requirements in [§28(1)2(b)] among the initial listing requirements. Provided, That the technology growth company shall be excluded.
42. The term “large-sized corporation” refers to a corporation falling under any of the followings:
- (a) A corporation with equity capital of KRW 100 billion or more as of the date of preliminary listing review; or
 - (b) A corporation with base market capitalization of KRW 200 billion or more as of the date of listing application.
43. The term "equity capital" means the amount determined by the following formula:
- * Equity capital = Total asset as of the end of the latest business year - Total liabilities as of the end of the latest business year +/- Increase or decrease in capital stock and capital surplus since the end of the latest business year
44. The term “return on equity” refers to the ratio calculated using the following formula:
- * Return on Equity = Net income of the latest fiscal year / Equity capital as of the end of the latest business year × 100
45. The term “total capital impairment” refers to the situation where the equity capital is zero or in minus, and the capital impairment ratio shall be calculated using the following formula:
- * Capital Impairment Ratio = (Total capital stock – Equity capital) / Total capital stock × 100
46. The term “financial statement” refers to the individual and consolidated financial

statements that have been prepared in accordance with the accounting standards stipulated by domestic laws and regulations or the accounting standards generally accepted in foreign countries. In such cases, individual financial statements shall include separate financial statements prepared by corporations with subsidiaries.

47. The term “auditor” means an auditor who is capable of conducting an accounting audit in accordance with domestic or foreign laws and regulations.

48. The term “business days” means the days excluding holidays and Saturdays. (Amended on July 31, 2026)

(2) The terms, other than those specified in paragraph (1), used in this Regulation shall have the same meanings given to them in the related laws and regulations as well as in other regulations of the Exchange.

§3. Applicable Standards for Accounting Standards and Financial Statements

(1) Unless otherwise provided in this Regulation, the audit reports applicable to domestic corporations shall refer to the audit reports prepared by the auditors prescribed in Subparagraph 7 of Article 2 of the Act on External Audit of Stock Companies, etc. (hereinafter referred to as “the Act on External Audit”) subsequent to auditing the financial statements prepared in accordance with the Korean International Financial Reporting Standards (hereinafter referred to as the “K-IFRS”)] under Article 5(1)1 of the Act on External Audit. In such cases, in the case of a corporation with a subsidiary under the Act on External Audit, an audit report on its consolidated financial statements shall be included.

(2) Unless otherwise provided in this Regulation, the audit reports applicable to foreign corporations shall refer to the audit reports prepared by the auditors prescribed in Subparagraph 7 of Article 2 of the Act on External Audit or the foreign accounting auditor specified in Article 169(3) of the Act subsequent to auditing the financial statements prepared in accordance with the accounting standards under any of the following subparagraphs. In such cases, in the case of a corporation with a subsidiary shall include an audit report on its consolidated financial statements.

1. K-IFRS;

2. International accounting standards established by the International Accounting Standards Board (hereinafter referred to as the “international accounting standards”); and

3. Accounting standards that is generally accepted in the United States of America (hereinafter referred to as the “US GAAP”).

(3) Notwithstanding paragraph (2), in cases where a foreign subsidiary of a listing applicant has adopted the international accounting standards other than those specified in each subparagraph of paragraph (2) pursuant to the laws and regulations, etc. of its home country,

and submitted the documents set forth in the Enforcement Rules, it shall be construed that the accounting standards in any subparagraph of paragraph (2) have been complied with.

(4) No KOSDAQ-listed foreign company shall change the accounting standards adopted [referring to accounting standards under any subparagraph of paragraph (2)] at the time of applying for the preliminary listing review to other accounting standards after listing. Provided that, as an unavoidable case such as a change in the financial investment laws of foreign countries pursuant to Article 169(3) of the Act (hereinafter referred to as “the foreign laws related to financial investment business”) occurs and the Exchange acknowledges it as acceptable, the accounting standards may be changed to any of the standards set forth in paragraph (2).

(5) An auditor (including an accountant in charge) who has an interest in the listing applicant, such as holding equities or equity-related bonds or acquiring stock options of the listing applicant, may not prepare an audit report under paragraphs (1) or (2).

(6) Unless otherwise provided in this Regulation, matters concerning financial details shall be applied based on the financial statements in which the opinion of the auditor is ‘unqualified’ or ‘qualified’ due to the uncertainty over the ability to exist as a going concern (including an opinion equivalent to ‘qualified’ in the case of a foreign company; hereinafter the same shall apply). Provided that, in cases where the auditor’s audit opinion on the report is ‘qualified’ due to any confirmed non-compliance with the accounting standards, it shall apply based on the financial details adjusted to reflect the matters on which the qualified opinion was expressed.

(7) Unless otherwise provided in this Regulation, financial requirements shall be applied in accordance with the following criteria. In such cases, in the event where the financial requirements are applied based on consolidated financial statements, net profit/loss and equity capital shall be based on the amount excluding non-controlling interests:

1. Holding companies, foreign holding companies located in Korea, foreign holding companies, foreign companies with a subsidiary (limited to cases in which the international accounting standards or US GAAP are applied); Based on consolidated financial statements;
2. Corporations with a subsidiary (excluding the companies under subparagraph 1): Operating income/loss, income/loss from continuing operations before corporate tax, net income/loss, capital stock and equity capital shall be based on consolidated financial statements, and other financial requirements on individual financial statements; and
3. Corporations that do not fall under subparagraph 1 or 2: Based on individual financial statements.

§3-2. Applicable Standards for Companies Issuing Multiple Voting Stocks

Except as otherwise provided in these regulations, in the case where the largest shareholder and the largest voting holder of a company issuing multiple voting stocks are different, "largest shareholder" or "largest shareholder, etc." shall be applied to include "largest voting holder" or "largest voting holder, etc." respectively.

[July 1, 2026]

CHAPTER II. GENERAL OPERATION OF LISTING OF SECURITIES

§4. Prohibition on Partial Listings

- (1) A listing applicant shall not be allowed to apply for the listing of a part of securities of the particular issue to be listed.
- (2) Notwithstanding paragraph (1), in cases where a corporation that has listed a part of securities of the particular issue on an overseas securities market intends to list the same securities on the KOSDAQ Market, it shall apply for the listing of the securities other than those listed on the overseas securities market. In such cases, the total number of issued shares shall be calculated excluding the quantity listed on the overseas securities market.

§5. Matters to be reported after Application for Preliminary Listing Review

Unless otherwise provided in this Regulation, a listing applicant shall report to the Exchange through its listing sponsor if any event falling under any of the followings occurs after the date of application for preliminary listing review and before the date of listing: (Amended on March 4, 2026)

1. Resolution of the board of directors or general meetings of shareholders on matters concerning securities;
2. Material management events such as default of promissory notes or checks issued, merger (referring to the merger under Article 522, 527-2 and 527-3 of the Commercial Act; hereinafter the same shall apply), filing of a lawsuit, suspension of business activities, changes in major assets, etc.;
3. Reporting on a public offering or a public sale. In such cases, an investment prospectus (including a preliminary investment prospectus) including any correction made to its details shall be submitted;
4. Case where a listing applicant is a domestic company (excluding foreign holding companies located in Korea), the day when 45 days have elapsed since the end of the

half year of the relevant business year. In such cases, the semi-annual financial statement and the auditor's review report thereon shall be submitted;

5. Case where a listing applicant is a foreign company (including foreign holding companies located in Korea), the day when 45 days have elapsed since the end of the quarter or half year of the relevant business year. In such cases, the quarterly and semi-annual financial statement and the auditor's review report thereon shall be submitted. Provided that, in cases where the Exchange acknowledges that it is necessary considering the place of incorporation, accounting environment and the history of listing on foreign securities markets, etc. of the company concerned, the quarterly and semi-annual financial statements and the auditor's audit reports thereon shall be submitted; and
6. Case where a general meeting of shareholders is held for approving the financial statements of the latest business year [a board meeting, in cases where the financial statement is approved by the decision of board meeting pursuant to Article 449-2(1) of the Commercial Act]. In such cases, the financial statements and the auditor's audit report thereon of the latest business year shall be submitted.

§6. Preliminary Listing Review, Etc.

(1) The Exchange shall make decisions on the results of the preliminary listing review through the deliberation and resolution of the KOSDAQ Market Listing Committee (hereinafter referred to as the "Listing Committee"). Provided that, in cases where the Chairman of the Listing Committee acknowledges that the deliberation and resolution of the KOSDAQ Market Committee (hereinafter referred to as the "Market Committee") are necessary, the results of the preliminary listing review shall be decided through the deliberation and resolution of the Market Committee. (Amended on July 9, 2025)

(2) Notwithstanding paragraph (1), in the case of applications for preliminary listing reviews for the listings of foreign stock, etc. issued by foreign companies, stocks of special purpose acquisition companies, different classes of shares (including foreign different classes of shares), stocks of business development investment companies, or beneficiary certificates of business development investment trusts that satisfy the requirements specified in [§63(2)], the deliberation and resolution of the Listing Committee may be omitted. (Amended on March 4, 2026)

(3) In cases where, as a result of the supervision of financial statements pursuant to Article 23 of the Regulations on External Audit and Accounting, etc. (hereinafter referred to as "supervision of financial statements") with respect to financial documents as set forth in the Enforcement Rules, it is confirmed that the Securities and Futures Commission (hereinafter referred to as the "SFC") has decided to restrict an issuance of securities, file a prosecution case, notify the prosecutor's office, or impose penalties (including penalty surcharges imposed by the Financial Services Commission) against the listing applicant (referring to a corporation to be merged with a special purpose acquisition company in the case of a listing after merger)

due to non-compliance with the accounting standards, the Exchange shall reject the concerned application for preliminary listing review. In such cases, cases where the listing applicant who is a foreign company has received corresponding measures from the supervisory authority of its home country shall be included.

(4) The Exchange shall notify the Financial Services Commission, the concerned listing applicant and the listing sponsor of the result of the preliminary listing review during the period from the date of having received the application for preliminary listing review to the date specified in each of the followings. Provided that, in cases where stipulated in the Enforcement Rules, the notification period may be changed within the range of the following periods:

1. Case of preliminary listing review for domestic corporations (excluding foreign holding companies located in Korea), foreign corporations listed on the eligible foreign securities markets, and business development investment trusts: Within 45 days (based on business days; the same shall apply in this paragraph) (Amended on March 4, 2026)
2. Case of preliminary listing review for foreign companies not listed on the eligible foreign securities markets and foreign holding companies located in Korea: Within 65 days

(5) Notwithstanding paragraph (4), the Exchange may postpone the notification of the result of the preliminary listing review in any of the following cases. In such cases, the Exchange shall notify, in writing, the concerned listing applicant and the listing sponsor of the reasons for the postponement and the estimated processing period:

1. Case where it is necessary to correct or supplement the application for preliminary listing review or supplementary documents;
2. Case where an assessment by a professional assessment agency is requested; and
3. Other cases as specified in the Enforcement Rules where the Exchange acknowledges that it is necessary to secure an additional review period.

(6) The Exchange shall, in conducting the preliminary listing review, prioritize provincial venture companies, outstanding export companies specified in the Enforcement Rules, and registered or designated corporations under the Regulations on Operation of K-OTC Market of the Korea Financial Investment Association within the scope set forth in the Enforcement Rules.

(7) Any matters necessary for the preliminary listing review and the notification of the result of the preliminary listing review other than those set forth in paragraphs (1) through (6) shall be stipulated in the Enforcement Rules.

(8) Any matters necessary for the composition and operation of the Listing Committee shall be separately specified by the Exchange.

§7. Assessment of Professional Assessment Agency

(1) In cases when the Exchange reviews the qualitative requirements of a listing applicant, it may reflect the assessment of a professional assessment agency and the advisory results of an expert meeting on the technical prowess of the listing applicant. (Amended on December 27, 2023)

(2) Matters necessary for the professional assessment procedures, the operation of the professional assessment agency and expert meeting, etc. shall be stipulated in the Enforcement Rules. (Amended on December 27, 2023)

§8. Invalidation of Results of Preliminary Listing Review

(1) In cases where, after having notified the result of preliminary listing review, the Exchange determines that any of the following causes has a significant implication on the result of the preliminary listing review concerned, it may nullify the validity of the result of the preliminary listing review through the deliberation and resolution of the Market Committee:

1. Where a material management matter under [§5(2)] or [§85-3(2)] occurs; (Amended on March 4, 2026)
2. Where it is confirmed that the application for preliminary listing review and its supplementary documents have been falsely stated or omitted material matters;
3. Where it is confirmed that the SFC has decided to restrict an issuance of securities, file a prosecution case, notify the prosecutor's office, and impose penalty surcharge (including the penalty surcharge imposed by the Financial Services Commission), as a result of the supervision of financial statements set forth in the former part of [§6(3)]. In such cases, cases where the listing applicant who is a foreign company has received corresponding measures from the supervisory authority of its home country shall be included;
4. Where correction details of the correction report pursuant to Article 122 of the Act are material;
5. Where an application for listing has not been submitted within six (6) months of receiving the notification of the result of preliminary listing review. Provided that, if the Exchange approves the extension of the period for application submission at the request of the concerned corporation due to an unavoidable reason such as sudden change in the KOSDAQ Market conditions, the period for application submission may be extended up to six (6) months;
6. Where the financial details, etc. submitted at the time of the listing application are substantially different or found to have been materially changed from those submitted at the time of application for the preliminary listing review; and

7. Other cases stipulated in the Enforcement Rules as having a material influence on the result of preliminary listing review.

(2) As a result of the supervision of financial statements set forth in the former part of [§6(3)], in cases where it is confirmed that the SFC has recommended a listing applicant to dismiss or remove officers (including executive officer under Article 408-2 of the Commercial Act; hereinafter the same shall apply), or decided the suspension of duties of officers or the designation of auditors (including the cases where the listing applicant who is a foreign company has received corresponding measures from the supervisory authority of his/her home country), the Exchange may nullify the validity of the result of the preliminary listing review through the deliberation and resolution of the Market Committee when it determines that the validity of the review must be disapproved after conducting review in accordance with the listing requirements.

(3) In cases where the Exchange nullifies the validity of the result of the preliminary listing review pursuant to paragraph (1) or (2), it shall disclose such fact and also notify the Financial Services Commission, the listing applicant and the listing sponsor without delay. (Amended on July 9, 2025)

(4) In cases where the validity of the result of the preliminary listing review is invalidated pursuant to paragraph (1) or (2), the listing applicant may reapply for the preliminary listing review by submitting the documents stipulated in the Enforcement Rules.

(5) In cases where there is a reapplication for preliminary listing review, the Exchange shall apply [§6] *mutatis mutandis*. In such cases, the listing applicant may not request for re-examination of the result of the second preliminary listing review.

(6) Notwithstanding paragraphs (4) and (5), if the results of the preliminary listing review are not recognized as valid due to reasons under paragraph (1)2 and 3 or paragraph (2), paragraphs (4) and (5) shall not apply and the objection procedure of [§10] shall apply *mutatis mutandis*. (July 9, 2025)

§9. Restriction on Application for Preliminary Listing Review

(1) In cases where a listing applicant becomes subject to any of the following measures and consequently the application for preliminary listing review is dismissed pursuant to [§6(3)] or the result of preliminary listing review is invalidated pursuant to [§8(1)3] or [§8(2)], such applicant may not apply for preliminary listing review of the securities concerned within the period of three (3) years from the date of such dismissal or invalidation. In such cases, cases where the listing applicant who is a foreign company has received corresponding measures from the supervisory authority of its home country shall be included:

1. As a result of the supervision of financial statements, the applicant is subject to recommendation of dismissal or removal of officers, suspension of duties of officers, restriction of securities issuance, designation of an auditor, or imposition of a penalty

surcharge (including a penalty surcharge imposed by the Financial Services Commission) due to non-compliance with the accounting standards. Provided that, it is limited to cases where the requirements for formality review or special listing are not met even after correcting the financial documents by taking into account the results of measures taken against the non-compliance; and

2. As a result of the supervision of financial statements, the SFC has taken a measure such as filing a prosecution case or notifying the prosecutor's office due to non-compliance with the accounting standards.

(2) Paragraph (1) shall apply *mutatis mutandis* to the case where a listing applicant withdraws the application for preliminary listing review. In such cases, the "date of decision on the dismissal or invalidation" shall be construed as the "date of withdrawal".

(3) In cases where the validity of the result of the preliminary listing review is nullified pursuant to [§8(1)2], the application for preliminary listing review may not be submitted for one (1) year from the date on which the decision on the invalidity is made.

(4) In cases where the Exchange restricts the application for preliminary listing review pursuant to paragraphs (1) through (3), it shall notify the listing sponsor or the listing applicant of the reasons and the duration of restriction.

§10. Appeal against Result of Preliminary Listing Review

(1) A listing applicant may file an objection against the result of the preliminary listing review within seven (7) days (based on business days) from the date on which the representative director of the listing applicant or its listing sponsor received the result from the Exchange. Provided that, no objection may be filed against the result of preliminary listing review for initial listing of stocks of special purpose acquisition companies under [§69(1)], stocks of business development investment companies under [§85-5(1)], and beneficiary certificates of business development investment trusts under [§85-12(1)]. (Amended on March 4, 2026)

(2) In cases when the listing applicant files an objection pursuant to paragraph (1), the Exchange shall make a decision on the appeal through the deliberation or resolution of the Market Committee.

(3) Any matters necessary regarding the method and procedure for filing an objection and the deliberation and resolution of the Market Committee other than those set forth in paragraphs (1) and (2) shall be stipulated in the Enforcement Rules.

§11. Notification on Listing and Delisting, Etc.

(1) When securities are listed, the Exchange shall record matters concerning the listing in the

listing register and notify without delay the listing applicant, the listing sponsor, and the Korea Securities Depository of the listing details and officially announce such details to the disclosure media. Provided that, in the case of listing change or supplementary listing, the Exchange may not notify the listing details to the relevant KOSDAQ-listed corporation and the listing sponsor.

(2) In case of delisting, etc. of securities, the Exchange shall apply the provisions of paragraph (1) *mutatis mutandis*.

§12. Appointment of Listing Sponsors, Etc.

(1) A listing applicant falling under each of the following subparagraphs shall appoint a listing sponsor except where the Exchange acknowledges that the appointment of a listing sponsor is not necessary:

1. Initial listing, backdoor listing, and re-listing after split-off of common stocks;
2. Initial listing and backdoor listing of foreign stocks, etc.;
3. Initial listing and listing after merger of special purpose acquisition companies; and
4. Other cases where the Exchange acknowledges that it is necessary to appoint a listing sponsor for public interest and investor protection.

(2) A listing sponsor shall be a financial investment company that obtained authorization for both the investment dealing business (including the underwriting business) and the investment brokerage business under Article 8 of the Act with respect to securities.

§13. Obligations of Listing Sponsors

(1) A listing sponsor shall faithfully examine whether the financial conditions, business activities, corporate governance, and internal control system of the listing applicants meet the listing requirements by using the corporate due diligence checklist that is separately determined by the Exchange.

(2) A listing sponsor who has arranged the listing of a KOSDAQ-listed corporation may not sell stocks purchased from a shareholder of the KOSDAQ-listed corporation to the shareholders, the largest shareholder and a specially related person who owned the stocks at the time of listing of the corporation. Provided that, this provision shall not apply in the case of selling back the stocks through the KOSDAQ Market.

(3) A listing sponsor shall, when a KOSDAQ-listed corporation whose listing was arranged by the listing sponsor seeks advice on the matters concerning management activities, disclosure obligations, etc., faithfully respond to such request.

(4) A listing sponsor shall submit to the Exchange a report on analysis of the financial conditions of the KOSDAQ-listed corporation for which it has acted as listing sponsor in accordance with the Enforcement Rules and post the report on the website of the listing sponsor (or the lead manager, if there are several listing sponsors). Provided that, this provision shall not apply in the event where a financial investment company is prohibited from disclosing or providing such analyzed materials to specific persons under [§2-29(1)] of the Regulation on Business and Operation of Financial Investment Companies of the Korea Financial Investment Association.

(5) Upon filing the preliminary listing review application, a listing sponsor shall acquire the stocks of the listing applicant in the quantity specified in each of the following subparagraphs at the same price as the public offering or sale price by the application date for initial listing and hold the stocks until the time stipulated in each of the following subparagraphs. In such cases, the acquisition methods and the criteria for calculating quantity of the stocks to be acquired shall be stipulated in the Enforcement Rules. (Amended on April 27, 2022; December 27, 2023)

1. In the case where a listing applicant is a domestic company (excluding foreign holding companies located in Korea; hereinafter the same shall apply in this Article), the stocks shall be mandatorily held as set forth below:

(a) Prompt-transfer companies under [§31(1)]: The quantity equivalent to 5/100 of stocks to be sold through a public offering or sale (if the amount of acquisition exceeds KRW 2.5 billion, the quantity equivalent to KRW 2.5 billion) shall be mandatorily held for six (6) months from the date of listing. Provided that, in the case of a prompt-transfer company under [§31(1)3(e)], the stocks shall be mandatorily held for one (1) year from the date of listing, and upon the elapse of six (6) months from the listing date, a quantity equivalent to 5/100 or less of the initial acquisition can be sold on a monthly basis; and

(b) Domestic companies that do not fall under item (a): The quantity equivalent to 3/100 of stocks to be sold through the public offering or sale (if the amount of acquisition exceeds KRW 1 billion, the quantity equivalent to KRW 1 billion) shall be mandatorily held for three (3) months from the date of listing. Provided that the listing applicant is an innovative technology company and the listing sponsor falls under the reasons prescribed by the Enforcement Rules, the relevant quantity shall be held for six (6) months from the listing date.

2. In the case where a listing applicant is a foreign company (including foreign holding companies located in Korea; hereinafter the same shall apply in this Article), the stocks shall be mandatorily held as set forth below:

(a) Innovative technology companies: The quantity equivalent to 5/100 of stocks to be sold through the public offering or sale (if the amount of acquisition exceeds KRW 5 billion, the quantity equivalent to KRW 5 billion) shall be mandatorily held for one (1) year from the date of listing. In such cases, upon the elapse of six (6) months from the listing date, a quantity equivalent to 5/100 or less of the initial acquisition can be sold

on a monthly basis; and

- (b) Foreign companies that do not fall under item (a): The quantity equivalent to 5/100 of stocks to be sold through the public offering or sale (if the amount of acquisition exceeds KRW 2.5 billion, the quantity equivalent to KRW 2.5 billion) shall be mandatorily held for one (1) year from the date of listing. In such cases, upon the elapse of six (6) months from the listing date, a quantity equivalent to 5/100 or less of the initial acquisition can be sold on a monthly basis.

(6) Notwithstanding paragraph (5), in cases where a listing applicant falls under any of the following subparagraphs, the Exchange may not apply paragraph (5) to the listing sponsor of the concerned company:

1. A large-sized corporation. Provided that, foreign companies and prompt-transfer companies under [§31(1)3(e)] shall be excluded; or
2. A foreign company that has been listed on an eligible overseas securities market for three (3) years.

(7) A listing sponsor who has arranged a listing of a company in each of the following subparagraphs shall faithfully fulfill the obligations of investor protection including granting the rights to claim the redemption for the stocks with respect to individual investors who have acquired the relevant stocks through public offering in accordance with the Regulations on Securities Underwriting Business, etc.: (Amended on December 27, 2023)

1. A company with unrealized profit;
2. A business model company; and
3. Out of innovative technology companies, a company for which a listing sponsor falling under the proviso to paragraph (5)1(b) arranged its listing.

(8) A listing sponsor who has arranged a listing of a business model company shall disclose to investors a report that has evaluated the competitiveness and growth potential of the business model held by the company in the manner prescribed by the Enforcement Rules. (Amended on December 27, 2023)

(9) A listing sponsor of a foreign company shall fulfill its duties as a disclosure agent under [§22] of the KOSDAQ Market Disclosure Regulation (hereinafter referred to as the “Disclosure Regulation”) for a period of two (2) years from the listing date of the foreign company. Provided that, this provision shall not apply to the case where the foreign company concerned has established an office in Korea and a person in charge of disclosure who is capable of communicating in Korean (referring to the employee responsible for disclosure stipulated in [§22] of the Disclosure Regulation) works fulltime in the office.

(10) Any matters necessary for the fulfillment of obligations of listing sponsors pursuant to

paragraphs (1) through (9) shall be stipulated in the Enforcement Rules.

§14. Appointment of Listing Agent

(1) When a listing applicant intends to initially list foreign stocks, etc., it shall appoint a listing agent who has an address or residence in Korea and acts on behalf of or represents the company for all matters between the concerned company and the Exchange pursuant to this Regulation.

(2) A foreign company listed on the KOSDAQ Market shall maintain the validity of the agreement for appointment of listing agent under paragraph (1) as long as the securities concerned are listed. In such cases, when the listing agent is changed or there is any change in the appointment agreement, the company shall notify the Exchange of the details of such change in writing without delay.

(3) The notification that the Exchange sends to listing applicants or foreign companies listed on the KOSDAQ Market pursuant to this Regulation may be substituted by the notification to the listing agent pursuant to paragraph (1).

(4) Any matters necessary for the appointment of listing agent, etc. other than those prescribed in the provisions of paragraphs (1) through (3) shall be stipulated in the Enforcement Rules.

§15. Qualifications, etc. for Auditors of Foreign Companies

(1) The audit report (including audit review reports; hereinafter the same shall apply in this Article) that a listing applicant of foreign stocks, etc. submits pursuant to this Regulation shall be prepared by a person who falls under any of followings:

1. An accounting firm under Subparagraph 7(a) of Article 2 of the Act on External Audit that meets the requirements set forth in the Enforcement Rules; or
2. A foreign auditor under Article 169 (3) of the Act that meets the requirements set forth in the Enforcement Rules.

(2) Notwithstanding paragraph (1), in cases where a listing applicant of foreign stocks, etc. is established outside the locations of eligible foreign securities markets, the audit report submitted pursuant to this Regulation shall be prepared by an auditor who falls under any of the followings:

1. An accounting firm under Subparagraph 7(a) of Article 2 of the Act on External Audit that meets the requirements set forth in the Enforcement Rules; or
2. A foreign auditor under Article 169 (3) of the Act that meets the requirements set forth in the Enforcement Rules.

(3) A foreign company listed on the KOSDAQ Market shall appoint an auditor [limited to an auditor who satisfies the requirements under paragraphs (1) and (2); hereinafter the same shall apply in this Article] who has audited the financial statements of the latest business year submitted at the time of filing the application for preliminary listing review as the auditor for the three (3) consecutive business years, including the business year in which the date of application for preliminary listing review is included.

(4) In the case where the contract for the appointment of auditor under paragraph (3) is terminated, a foreign company listed on the KOSDAQ Market shall appoint an auditor to serve the entirety of the following three (3) consecutive business years.

(5) A foreign company listed on the KOSDAQ Market shall appoint its auditor within three (3) months from the starting date of each business year pursuant to paragraphs (3) and (4).

(6) Notwithstanding paragraphs (3) and (4), in cases where a foreign company listed on the KOSDAQ Market falls under any of the following subparagraphs and the Exchange acknowledges that it is unavoidable, the company may replace its auditor: (Amended on December 7, 2022)

1. Where it is necessary to comply with the laws and regulations regarding foreign financial investment business under Article 169(3) of the Act;
2. Where the auditor has closed its business;
3. Where any cause for the dismissal of auditor specified in Article 19 of the Enforcement Decree of the Act on External Audit occurs;
4. Where any cause for the delisting under [§54(1)1] occurs; and
5. Other cases recognized by the Exchange.

(7) In cases where the cause for dismissal of auditor pursuant to paragraph (6)3 has occurred, a foreign company listed on the KOSDAQ Market shall dismiss the concerned auditor within four (4) months from the end of each business year. In such cases, the company shall appoint a new auditor within two (2) months from the date of the dismissal.

(8) Notwithstanding the provisions of paragraphs (2) through (7), in cases when a foreign company listed on an overseas market submits an audit report in accordance with the laws and regulations of its home country, the Exchange may not apply the provisions of paragraphs (2) through (7).

§16. Exceptions to Mandatory Holding, Etc.

(1) The Exchange may grant an exception to the mandatory holding under this Regulation in the case where it deems that an exception to the mandatory holding is unavoidable due to falling

under any of the following subparagraphs. In such cases, a person who acquires or receives stocks, etc. pursuant to subparagraph 1 or 2 shall hold the concerned stocks, etc. for the remaining mandatory holding period: (Amended on December 7, 2022)

1. Case of fulfilling statutory obligations, etc.;
2. Case of a merger and acquisition, etc. specified in the Enforcement Rules for the purpose of enhancing the competitiveness and governance; and
3. Other cases where specified in the Enforcement Rules as deemed necessary to grant an exception to the mandatory holding.

(2) A person subject to mandatory holding pursuant to this Regulation may withdraw and establish or terminate a pledge, etc. with an approval of the Exchange in cases where it is unavoidable for the exercise of rights, etc. of stocks, etc. held mandatorily as stipulated in the Enforcement Rules.

(3) Any matters regarding the application methods of exceptions to mandatory holding and other necessary matters other than those set forth in paragraphs (1) and (2) shall be stipulated in the Enforcement Rules.

§17. Measures against Violation of Mandatory Holding

(1) A person subject to mandatory holding pursuant to this Regulation may not effectively sell the stocks, etc. subject to mandatory holding during the mandatory holding period in any of the following methods:

1. Conclusion of a stock purchase agreement (including methods like trading reservation, etc.);
2. Conclusion of a contract whose purpose is to change management rights by way of appointment of officers or amendment of the Articles of Incorporation, or any contract equivalent thereto; and
3. Other methods equivalent to item 1 or 2 that the Exchange acknowledges as *de facto* sales.

(2) In the case where it falls under any of the following subparagraphs, the Exchange may extend the mandatory holding period of a person subject to mandatory holding as stipulated in the Enforcement Rules:

1. Where a person subject to mandatory holding effectively sell stocks, etc. that shall be held mandatorily in violation of paragraph (1);
2. Where the largest shareholder who is subject to mandatory holding has evaded the

mandatory holding obligation using such methods as concealing or selling the concerned stocks, etc. in other persons' name; and

3. Other cases where the Exchange acknowledges that it is necessary to extend the mandatory holding period for investor protection and management of the KOSDAQ Market.

(3) In the case where it falls under any of subparagraphs of paragraph (2), the Exchange may impose such measures as a request to buyback for the relevant corporation or the largest shareholder as stipulated in the Enforcement Rules.

§18. Suspension and Resumption of Trading

(1) The Exchange may suspend trading of a listed issue in cases when the concerned issue falls under any of the following subparagraphs. In such cases, if the trading of common stocks are suspended, the trading of different classes of stocks issued by the concerned company shall also be suspended:

1. Case where a reason for the designation of administrative issue pursuant to this Regulation occurs;
2. Case where a formal reason for delisting or a reason for delisting subsequent to a listing maintenance review (including a case where it is confirmed that the concerned issue is subject to a listing maintenance review) pursuant to this Regulation occurs; and
3. Other cases where the Exchange acknowledges that it is necessary for public interests and investor protection.

(2) Matters necessary for the suspension and resumption of trading under paragraph (1) shall be stipulated in the Enforcement Rules.

§19. Reporting Obligations, Etc.

(1) In cases where a KOSDAQ-listed corporation appoints or dismisses an outside director or a member of the audit committee, or an outside director or a member of the audit committee resigns due to any reason other than the termination of the term of office, the corporation shall report such fact to the Exchange until the day after the date of appointment, dismissal, or resignation.

(2) In cases where a KOSDAQ-listed corporation decides to hold a general meeting of shareholders on the day when a significant number of general shareholders' meetings of other KOSDAQ-listed companies are held, the corporation shall report its reasons to the Exchange

when it sends a notice of convocation pursuant to Article 363 of the Commercial Act (including a notification of convocation under Article 542-4 of the Commercial Act).

(3) A foreign company listed on the KOSDAQ Market (including a foreign subsidiary in the case of a foreign holding company) and a foreign subsidiary of a foreign holding company located in Korea shall submit documents on the operation of the internal accounting management system (referring to the internal accounting management system in accordance with the laws and regulations of the home country in cases where the internal accounting management system is operated pursuant to the laws and regulations of the home country, which is corresponding to the system set forth in Article 8 of the Act on External Audit) as stipulated in the Enforcement Rules until the statutory deadline for annual reports every year. Provided that, foreign subsidiaries specified in the Enforcement Rules shall be excluded.

§19-2. Special Provisions on Listing of Subsidiaries, etc.

(1) The Board of Directors of a KOSDAQ-listed corporation shall implement the following matters when a company designated by the Enforcement Rules including subsidiary, etc. (hereinafter referred to as "subsidiary, etc.") intends to list common shares, DRs, or foreign stocks, etc. on the KOSPI market, KOSDAQ market, or an overseas securities market (excluding supplementary listings and listing changes):.

1. To evaluate and resolve the impact of the listing of subsidiaries, etc. on the shareholders of the KOSDAQ-listed corporation;
2. To prepare and resolve protection measures for the shareholders of the listed company;
3. To communicate with the shareholders of the KOSDAQ-listed corporation regarding the matters in subparagraphs. 1 and 2, or confirm whether the relevant shareholders consent at a general meeting of shareholders or through a similar procedure.
4. To resolve whether to approve the listing of subsidiaries, etc., taking into consideration the results of the shareholder communication under subparagraph 3 or whether the shareholders consent; and
5. To notify the subsidiaries, etc. of the decision to approve or reject the resolution made pursuant to subparagraph 4.

(2) The Board of Directors of the KOSDAQ-listed corporation shall, as determined by the Board of Directors, establish a separate Committee (hereinafter referred to as the "Committee" in this paragraph) that satisfies all of the requirements in each of the following subparagraphs, and shall undergo the deliberation procedures of the relevant Committee in advance when adopting the resolutions under paragraphs. 1, 2, and 4. In this case, matters concerning the operational procedures of the Committee meetings, etc., shall be determined by applying mutatis mutandis the provisions of Articles 390, 391, 391-3, and 392 of the Commercial Act:

1. It shall be composed of three or more members;
2. The members referred to in subparagraph 1 shall be directors or external experts who meet the qualification requirements of Article 542-8, Paragraph 2 of the Commercial Act;
3. An independent director shall serve as the chairperson, and independent directors and external experts shall constitute at least two-thirds of the members; and
4. The Committee may seek the assistance of independent experts at the company's expense.

[July 31, 2026]

§20. Disclosure on Non-submission of Documents

In cases where a KOSDAQ-listed company does not comply with the submission of documents in accordance with this Regulation, the Exchange may disclose such fact.

§21. Attendance in General Meeting of Shareholders

Any KOSDAQ-listed company falling under any of the followings shall allow the officers or employees of the Exchange to attend its general meeting of shareholders:

1. Case where it is necessary to verify a material managerial matter, etc. specified in [§5 Subparagraph 2];
2. Case where a speedy verification of outcome of the general meeting of shareholder is necessary because agenda items of the general meeting of shareholders are related to such matters as delisting;
3. Case where, due to a dispute over matters such as the management right, it is deemed difficult to appoint officers in the legitimate manners stipulated in the laws and regulations; and
4. Other cases where the Exchange acknowledges that it is necessary for listing management and investor protection to have understanding of the proceedings of the general meetings of shareholders.

§22. Application for Delisting

(1) In cases where a KOSDAQ-listed company intends to delist (including the case of applying for delisting in order to list on the KOSPI Market pursuant to [§54(1)9]) its stocks by issue

(including DRs of foreign stocks; hereinafter the same shall apply in this Article), it shall submit an application for delisting and supplementary documents stipulated in the Enforcement Rules to the Exchange. Provided that, a special purpose acquisition company and a business development investment company may not apply for delisting of its stocks. (Amended on December 7, 2022; March 4, 2026)

(2) In cases where there is an application for delisting as set forth in the provisions of paragraph (1), the Exchange shall delist the concerned stock. Provided that, in cases where the concerned stock does not fall under any cause for delisting by formality review or cause for delisting by listing maintenance review, the Exchange may not approve the application for delisting after going through the deliberation and resolution of the KOSDAQ Market Corporate Review Committee (hereinafter referred to as the “Corporate Review Committee”) in consideration of investor protection as specified in the Enforcement Rules.

§23. Allowing Trades of Delisted Securities

In cases where securities of a particular issue are delisted, the Exchange may allow trading of the securities for a maximum of seven (7) days (based on business days of the concerned securities).

PART II. LISTING AND LISTING MANAGEMENT OF COMMON STOCKS

CHAPTER I . LISTING REQUIREMENTS AND PROCEDURES

Section I . General Provisions

§24. Applicable Standards

(1) This Chapter shall apply to common stocks unless otherwise stipulated in this Regulation.

(2) Unless otherwise provided in this Regulation, the financial details set forth in this Chapter shall be applied based on the financial statements as of the end of the latest business year in accordance with each of the followings:

1. Case where the latest business year is less than one (1) year due to a change in the settlement term, etc.: The business year immediately preceding the concerned business year shall be deemed as the latest business year; and
2. Case where the business year to which the application for preliminary listing review belongs is different from the business year to which the listing application date belongs, and the settlement of accounts is not finalized as of the date of listing application: It shall be based on the date of application for preliminary listing review.

Section II. Initial Listing

§25. Application for Preliminary Listing Review

(1) Before applying for initial listing pursuant to [§27], an applicant for initial listing of common stocks shall submit an application for preliminary listing review and supplementary documents specified in the Enforcement Rules to the Exchange through a listing sponsor and undergo a preliminary listing review. Provided that, this provision shall not apply in cases where an applicant for initial listing is a KOSPI-listed corporation.

(2) In cases where it is acknowledged necessary for investor protection and the soundness of the KOSDAQ Market, the Exchange may discuss the listing procedures and timing with a listing applicant before the listing applicant applies for a preliminary listing review.

§26. Mandatory Holding in Case of Initial Listing

(1) In the case of an initial listing of common stocks, stocks, etc. of a listing applicant shall be mandatorily held pursuant to each of the following subparagraphs. Provided that, the mandatory holding period may be extended by a maximum of two (2) year in addition to the period stipulated in subparagraphs 1 through 7 in consultation with the person subject to the mandatory holding in cases where the person subject to mandatory holding makes a request in consultation with the listing sponsor or the Exchange acknowledges that it is necessary for management transparency, management stability and investor protection: (Amended on March 16, 2022; July 1, 2026)

1. The largest shareholder, etc. (the officers of a listing applicant shall include a person falling under each subparagraph of Article 401-2(1) of the Commercial Act; hereinafter the same shall apply in this Article) of the listing applicant: Six (6) months from the date of listing (one (1) year in the case of technology growth companies and prompt-transfer companies under [§31(1)]). Provided that, specially related persons may be excluded in cases where it is stipulated in the Enforcement Rules in consideration of

the purpose of holding stocks, the relationship with the largest shareholder, and the possibility of any change in management rights.

2. A person who has acquired stocks, etc. held by the largest shareholder, etc. of the listing applicant within one (1) year prior to the date of application for preliminary listing review: Six (6) months from the date of listing (one (1) year in the case of technology growth companies and prompt-transfer companies under [§31(1)]), except as otherwise stipulated in the Enforcement Rules.
3. A person who has acquired stocks, etc. issued by the listing applicant through the third-party allotment within one (1) year prior to the date of application for preliminary listing review: Six (6) months from the date of listing (one (1) year in the case of technology growth companies and prompt-transfer companies under [§31(1)]), except as otherwise stipulated in the Enforcement Rules.
4. Stocks, etc. acquired by venture capital or professional investors through a method other than a public offering or sale whose investment period is less than two (2) years (based on the date of application for preliminary listing review) (limited to stocks, etc. up to the amount equivalent to 10/100 of the capital of the listing applicant as of the date of application for listing among the stocks, etc. acquired by venture capital or professional investors): One (1) month from the date of listing, except as otherwise stipulated in the Enforcement Rules.
5. Stocks, etc. acquired by a listing sponsor (including co-manager pursuant to Article 6 of the Regulations on Securities Underwriting Business, etc.) whose investment period (based on the date of application for preliminary listing review) is less than six (6) months: Six (6) months from the date of listing. Provided that, in cases where the disparate ratio between the acquisition price and the public offering price calculated by the method specified in the Enforcement Rules is less than 30/100, it shall be three (3) months from the date of listing. (Amended on July 9, 2025)
6. Stocks acquired by the largest shareholder, etc. of the listing applicant through exercises of stock options after the date of listing: Six (6) months from the date of listing (one (1) year in the case of technology growth companies and prompt-transfer companies under [§31(1)]).
7. Person who has acquired stocks with multiple voting rights (including common stocks converted pursuant to Article 16-12 of the Venture Business Act): The period from the listing date to the later of the day preceding the date specified in Paragraph (1), Subparagraph 4 of Article 16-12 of the Venture Business Act and the end date of the mandatory holding period under subparagraph 1, etc. [July 1, 2026]
8. Other shareholders, etc. (referring to a person who owns the securities specified in each item of [§2(1)10]; hereinafter the same shall apply) whose stocks, etc. are acknowledged as necessary to be subject to mandatory holding by the Exchange for public interests and investor protection, etc.: Maximum two (2) year from the date of

listing in consultation with the Exchange.

(2) In cases where the largest shareholder of an applicant for initial listing of common stocks is a paper company stipulated in the Enforcement Rules, the largest shareholder, etc. of the paper company shall be mandated to hold the stocks, etc. of the paper company for six (6) months from the date of listing (one (1) year in the case of technology growth companies and prompt-transfer companies under [§31(1)]). Provided that, the mandatory holding period may be extended by a maximum of two (2) years in addition to the period stipulated in the main sentence hereof in consultation with the person subject to the mandatory holding, in cases where the person subject to mandatory holding makes a request in consultation with the sponsor or the Exchange acknowledges it is necessary for management transparency, management stability and investor protection.

(3) Notwithstanding paragraphs (1) and (2), in cases where an applicant for initial listing is a KOSPI-listed corporation or a company listed on a foreign securities market, the applicant may be exempted from the mandatory holding.

§27. Application for Initial Listing

(1) An applicant for initial listing of common stocks shall submit through a listing sponsor the application for initial listing and supplementary documents stipulated in the Enforcement Rules to the Exchange.

(2) Notwithstanding paragraph (1), in cases where there is no change in the documents submitted at the time of filing the application for preliminary listing review, the supplementary documents concerned may not be submitted.

(3) In cases where an applicant for initial listing conducts a public offering or sale after applying for preliminary listing review, the application for initial listing and supplementary documents under paragraph (1) shall be submitted to the Exchange by the payment due date of stock subscription with respect to such public offering or sale except for the cases acknowledged as necessary by the Exchange.

§28. Formality Review Requirements

(1) An applicant for initial listing of common stocks shall meet all the following formality review requirements in each of the following subparagraphs: (Amended on December 7, 2022)

1. Stock distribution: The applicant shall meet any one of the following requirements.
 - (a) The number of minority shareholders as of the date of application for listing shall be at least 500 and any of the following requirements shall be met:

- (i) Case where as of the date of application for preliminary listing review, the total number of stocks and the total number of common stocks held by minority shareholders (excluding the cases specified in the Enforcement Rules; hereinafter the same shall apply in this item) are less than 25/100 of the total number of issued stocks and the total number of common stocks, respectively: The total number of stocks and the total number of common stocks publicly offered (excluding the case that is deemed as a public offering pursuant to Article 11(3) of the Enforcement Decree of the Act; hereinafter the same shall apply in this item) or sold after the preliminary listing review to the date of application for listing shall be at least 10/100 of the total number of issued stocks and the total number of common stocks, respectively, as of the date of application for listing. Provided that, it shall be limited to the cases where the total number of stocks and the total number of common stocks held by minority shareholders are at least 25/100 of the total number of issued stocks and the total number of common stocks, respectively, as of the date of application for listing.
 - (ii) Case where as of the date of application for preliminary listing review, the total number of stocks and the total number of common stocks held by minority shareholders are at least 25/100 of the total number of issued stocks and the total number of common stocks, respectively: The total number of stocks and the total number of common stocks publicly offered or sold after the preliminary listing review to the date of application for listing shall be at least 5/100 of the total number of issued stocks and the total number of common stocks, respectively, as of the date of application for listing. Provided that, it shall be limited to the cases where the total amount of the public offer or sale price is equal to or greater than the amount stipulated in Article 120(1)1 of the Enforcement Decree of the Act.
- (b) The number of minority shareholders as of the date of application for listing shall be at least 500, and the total number of stocks and the total number of common stocks publicly offered or sold after the preliminary listing review to the date of application for listing shall be at least 10/100 of the total number of issued stocks and the total number of common stocks, respectively, as of the date of application for listing, and any of the following requirements shall be satisfied based on equity capital or the base market capitalization of common stocks:
- (i) The applicant shall meet any of the following requirements based on equity capital as of the date of application for preliminary listing review:
 - Ⓐ For a corporation of which equity capital is KRW 50 billion or more, but less than KRW 100 billion: Not less than one (1) million shares;
 - Ⓑ For a corporation of which equity capital is KRW 100 billion or more, but less than KRW 250 billion: Not less than two (2) million shares; and
 - Ⓒ For a corporation of which equity capital is KRW 250 billion or more: Not less than five (5) million shares.

- (ii) The applicant shall meet any of the following requirements based on base market capitalization of common stocks:
 - Ⓐ For a corporation of which base market capitalization is KRW 100 billion or more, but less than KRW 200 billion: Not less than one (1) million shares;
 - Ⓑ For a corporation of which base market capitalization is KRW 200 billion or more, but less than KRW 500 billion: Not less than two (2) million shares; and
 - Ⓒ For a corporation of which base market capitalization is KRW 500 billion or more: Not less than five (5) million shares.
- (c) The number of minority shareholders (excluding the employee stock ownership association and the members of the employee stock ownership association; hereinafter the same shall apply in this item) shall be 500 or more as of the date of application for preliminary listing review and any of the following requirements shall be met. Provided that, when the number of minority shareholders and the number of stocks held are calculated, the quantity of stocks publicly offered or sold during six (6) months prior to the date of application for preliminary listing review (based on the date of payment for stock subscription) shall be excluded:
 - (i) As of the date of application for preliminary listing review, the total number of stocks and the total number of common stocks held by minority shareholders through public offering shall be at least 25/100 of the total number of issued stocks and the total number of common stocks, respectively; or
 - (ii) As of the date of application for preliminary listing review, the total number of stocks and the total number of common stocks held by minority shareholders through public offering shall be at least 10/100 of the total number of issued stocks and the total number of common stocks, respectively, and the requirements specified in (b)(i) or (b)(ii) based on equity capital or base market capitalization shall be met.
- (d) As of the date of application for listing, the number of minority shareholder shall be at least 500, and the total number of stocks and the total number of common stocks publicly offered or sold after the preliminary listing review to the date of application for listing shall be at least 25/100 of the total number of issued stocks and the total number of common stocks, respectively; and
- (e) In the case of a corporation that conducts public offerings simultaneously in Korea and abroad, the total number of stocks and the total number of common stocks offered or sold through such simultaneous initial public offerings in Korea and abroad shall be at least 20/100 of the total number of issued stocks and the total number of common stocks, respectively, as of the application date for listing, and the total number of stocks and the total number of common stocks publicly offered or sold in Korea shall be at

least 300,000 shares, respectively. Provided that, it shall be limited to the cases where the number of minority shareholders (based on the stocks publicly offered or sold in Korea) is at least 500 as of the date of application for listing.

2. Business performance and market valuation, etc.: The applicant shall fall under any of the followings. In such cases, once the application for preliminary listing review has been filed, the requirements in each item may not be changed and applied differently.

(a) Profitability or sales shall meet any of the following requirements:

- (i) Income before tax from continuing operations: The income before tax from continuing operations (in cases where the Exchange deems it necessary under the Enforcement Rules, one-time valuation loss related to a financial product may be adjusted and applied; the same hereinafter in this item) in the latest business year shall be at least KRW 5 billion; (Amended on July 9, 2025)
- (ii) Income before tax from continuing operations and market capitalization: The income before tax from continuing operations in the latest business year shall be at least KRW 2 billion (at least KRW 1 billion in the case of venture companies), and the base market capitalization (based on common stocks; hereinafter the same shall apply in this item) shall be at least KRW 9 billion;
- (iii) Income before tax from continuing operations and equity capital: The income before tax from continuing operations in the latest business year shall be at least KRW 2 billion (at least KRW 1 billion in the case of venture companies), and the equity capital as of the date of application for preliminary listing review shall be at least KRW 3 billion (at least KRW 1.5 billion for venture companies); and
- (iv) Income before tax from continuing operations, market capitalization, and sales: There shall be income before tax from continuing operations, and the base market capitalization shall be at least KRW 20 billion, and the sales amount in the latest business year shall be at least KRW 10 billion (at least KRW 5 billion in the case of venture companies).

(b) Market valuation or growth potential shall satisfy any of the followings:

- (i) Market capitalization: The base market capitalization shall be at least KRW 100 billion;
- (ii) Ratio of market capitalization to equity capital: The base market capitalization shall be at least KRW 50 billion, and the base market capitalization to equity capital ratio after a public offering (excluding the case of conducting a public sale) shall be at least 200/100;
- (iii) Market capitalization and sales growth rate: The base market capitalization shall be at least KRW 50 billion, and the sales amount in the latest business year shall be at least KRW 3 billion, and the average sales growth rate during the past two (2)

business years is at least 20/100;

(iv) Market capitalization and sales: The base market capitalization shall be at least KRW 30 billion, and the sales amount in the latest business year shall be at least KRW 10 billion (at least KRW 5 billion in the case of venture companies); and

(v) Equity capital: The equity capital as of the date of application for preliminary listing review shall be at least KRW 25 billion.

3. Audit opinion: The audit opinion (for a corporation with a subsidiary, the audit opinion on the consolidated financial statements shall be included; hereinafter the same shall apply in this item) of an auditor (referring to the designated auditor in cases where the auditor has been designated by the SFC pursuant to Paragraph (6)1 of Article 14 of the Enforcement Decree of the Act on External Audit) on the financial statements of the latest business years shall be 'unqualified'. In such cases, for a corporation that has appointed a designated auditor during the business year in which an application for preliminary listing review was submitted, the concerned designated auditor's opinion on the financial statements of the latest quarter or half year of the concerned business year shall also be 'unqualified'.
4. Restrictions on transfer of stocks: There shall be no restrictions on the transfer of stocks. Provided that, this provision shall not apply in the case where such restriction is imposed by laws and regulations or articles of incorporation, etc. and the Exchange acknowledges that it does not impede the trading in the KOSDAQ Market.
5. Par value: In the case of a stock with par value, the par value per share shall be the amount stipulated in the Enforcement Rules.
6. Standing auditor: The obligation to appoint a standing auditor under Article 542-10 of the Commercial Act shall be satisfied.
7. Outside directors: The obligation to appoint outside directors under Article 542-8 of the Commercial Act shall be satisfied.

(2) In applying the provisions of paragraphs (1)1(a) and (b) concerning the stock distributions, the concerned shares shall be counted into calculation to the extent of 5/100 of total number of shares issued pursuant to each of the followings:

1. Equity interests invested by a venture capital one (1) year before the date of application for preliminary listing review as stipulated in the Enforcement Rules: Such equity interests shall be counted into the calculation of total number of stocks held by minority shareholders (excluding the cases stipulated in the Enforcement Rules) as of the date of application for preliminary listing review and the date of listing application.
2. Stocks publicly offered or sold (excluding the case of public sale by a minority shareholder) during the concerned period of registration or designation by the corporation that meets the requirements stipulated in the Enforcement Rules among the

registered corporations or the designated corporations under the K-OTC Market Regulations of the Korea Financial Investment Association: Such stocks shall be counted into the calculation of the total number of stocks to be publicly offered or sold from the completion of preliminary listing review to the date of listing application. Provided that, in case where, as a result of including the concerned stocks, the number of shares held by the minority shareholders, which are to be publicly offered or sold after the date of application for preliminary listing review, becomes less than 5/100, at least 5/100 of shares shall be publicly offered or sold.

3. Stocks publicly offered or sold by a KONEX-listed corporation while listed on the KONEX Market: Such stocks shall be counted into the calculation of the total number of stocks to be publicly offered or sold after the preliminary listing review. Provided that, in case where, after including the concerned stocks, the number of shares, which are to be publicly offered or sold after the date of application for preliminary listing review, becomes less than 5/100, at least 5/100 of shares shall be offered or sold.

(3) In addition to paragraph (1), a foreign holding company located in Korea shall satisfy all of the followings:

1. Before applying for a preliminary listing review, it shall discuss the listing procedures and timing with the Exchange;
2. It shall be equipped with practical business facilities, including the establishment of an office in Korea; and
3. In the case of applying for a preliminary listing review in order to list as a company with unrealized profit, the foreign subsidiary shall have been established in a country with an eligible overseas securities market (excluding the Stock Exchange of Hong Kong Ltd. and the Singapore Exchange Securities Trading Ltd.).

(4) In applying the requirements in paragraph (1) to a foreign holding company located in Korea with less than one (1) year of business year, the methods in each of the following shall be applied:

1. Business performance and market valuation, etc. under paragraph (1)2: Income before tax from continuing operations, equity capital and sales amount shall be calculated by the following methods:
 - (a) Income before tax from continuing operations: The sum of the amounts obtained by multiplying the income/loss before tax from continuing operations of foreign subsidiaries in the latest business year by the share ownership ratio in the subsidiaries of the foreign holding company located in Korea at the time of establishment or conversion.
 - (b) Equity capital: The amount calculated based on the statement of financial position at the time of establishment or conversion.

(c) Sales: Total sales of foreign subsidiaries in the latest business year.

2. Audit opinion under paragraph (1)3: The audit opinion of an auditor on the financial statements of the foreign subsidiary in the latest business year (for a corporation with a subsidiary, the audit opinion on the consolidated financial statements shall be included) shall also be ‘unqualified’.

§29. Qualitative Review Requirements

(1) The Exchange shall comprehensively take into account the matters in each of the following subparagraphs to determine whether the listing of common stocks of a listing applicant is appropriate in terms of public interests and investor protection.

1. Considering such matters as the business, financial conditions, technological prowess and growth potential, and operating environment, the ability of the corporation to survive as a going concern shall be recognized;
2. Considering such matters as the corporate governance, internal control system, disclosure system, transactions with specially related persons, and stock transactions prior to listing, the management transparency and management stability shall be recognized; and
3. Additionally, it shall be recognized that the listing of the concerned stocks does not undermine investor protection and the sound growth of the KOSDAQ Market.

(2) In cases where the Exchange examines the qualitative review requirements pursuant to paragraph (1), it may also examine business conditions, financial situation, technological prowess, growth potential, and management stability in accordance with the qualitative review requirements stipulated in the Enforcement Rules. In such cases, when examining the matters under paragraph (1)1, the qualitative review requirements for each industry specified in the Enforcement Rules may be applied.

(3) In cases where the Exchange examines the qualitative review requirements pursuant to paragraph (1), it may examine the characteristics of each industry, the effect of job creation, and the contribution to the national economy.

§30. Special Cases Concerning Technology Growth Companies

(1) In the case where a listing applicant who wishes to list common stocks and falls under any of the following subparagraphs is recognized for its technological prowess and growth potential as prescribed in the Enforcement Rules, it may apply for a preliminary listing review as an innovative technology company. (Amended on December 27, 2023)

1. In the case where the listing applicant is a domestic corporation (excluding a foreign holding company located in Korea), it shall fall under any of the followings:
 - (a) Small and medium companies under Article 2 of the Fundamental Law of Small and Medium Enterprises. Provided that if a listing applicant satisfies the requirements stipulated in the Enforcement Rules as of the date of application for preliminary listing review, the listing applicant is considered a small- and medium-sized enterprise even if it does not meet the qualifications of Article 2(1)1(b) of the same Act.; or
 - (b) Companies that do not fall under item (a) and whose average sales growth rate during the past two (2) business years is 20/100 or higher.
 2. In the case where the listing applicant is a foreign holding company located in Korea, it shall meet all of the followings:
 - (a) A foreign subsidiary of the foreign holding company located in Korea shall be established in the location of an eligible foreign securities market; and
 - (b) The listing sponsor of the foreign holding company located in Korea shall satisfy the requirements stipulated in the Enforcement Rules.
- (2) In cases where a listing sponsor who meets the requirements stipulated in the Enforcement Rules assesses and recommends the competitiveness and growth potential of a business model held by a domestic company (excluding a foreign holding company located in Korea) that falls under any of the followings, the concerned listing applicant may apply for a preliminary listing review as a business model company. In such cases, recommendation methods of the listing sponsor shall be stipulated in the Enforcement Rules. (Amended on December 12, 2023)
1. Small and medium companies under Article 2 of the Fundamental Law of Small and Medium Enterprises; or
 2. Companies that do not fall under item (a) and whose average sales growth rate during the past two (2) business years is 20/100 or higher.
- (3) For technology growth companies, the requirements for business performance and market valuation, etc. under [§28(1)2] shall be applied in lieu of any of the following requirements:
1. Equity capital: Equity capital as of the date of application for preliminary listing review shall be at least KRW 1 billion; and
 2. Market capitalization: The base market capitalization of common stocks shall be at least KRW 9 billion.

§31. Special Cases Concerning Prompt-Transfer Companies

(1) The Exchange shall not apply the requirement under [§29(1)1] from among the qualitative review requirements with respect to KONEX-listed corporations (hereinafter referred to as the “prompt-transfer company”) that meet all of the following requirements:

1. At least one (1) year has passed since the listing on the KONEX Market;
2. The recommendation shall have been made by the designated advisor (limited to cases where the terms of appointment has elapsed at least six (6) months) of the concerned corporation; and
3. Any of the followings shall be met:
 - (a) Market capitalization, sales, and operating income shall meet all of the following requirements:
 - (i) Base market capitalization (based on common stocks; hereinafter the same shall apply in this paragraph) shall be at least KRW 30 billion;
 - (ii) Sales in the recent business year shall be at least KRW 10 billion; and
 - (iii) There shall be operating income in the latest business year.
 - (b) The return on equity and income before tax from continuing operations shall meet all of the following requirements:
 - (i) Return on equity in the latest business year and in the year before the latest business year shall be at least 10/100, respectively. Provided that, it is limited to cases where equity capital is at least KRW 1 billion; and
 - (ii) Income before tax from continuing operations in the latest business year shall be at least KRW 2 billion.
 - (c) Income before tax from continuing operations and the return on equity shall meet all of the following requirements:
 - (i) Income before tax from continuing operations in the latest business year shall be at least KRW 2 billion; and
 - (ii) The return on equity in the latest business year shall be at least 20/100. Provided that, it shall be limited to cases where equity capital is at least KRW 1 billion.
 - (d) Sales, sales growth rate and operating income shall meet all of the following requirements:
 - (i) Sales in the latest business year shall be at least KRW 20 billion and have

increased by at least 20/100 compared to the sales in the year before the latest business year; and

(ii) Operating income in the latest business year shall be at least KRW 1 billion.

(e) Stock distribution and market capitalization shall meet all of the following requirements:

(i) The total number of common stocks held by minority shareholders as of the date of application for preliminary listing review shall be at least 10/100 of the total number of common stocks; and

(ii) The average daily market capitalization (referring to the arithmetic average of the daily closing price multiplied by the number of listed stocks) for the recent three (3) months from the date of application for preliminary listing review shall be at least KRW 200 billion and exceed the capital stock. Provided that, it shall be limited to the cases where the base market capitalization is at least KRW 300 billion.

4. Other requirements specified in the Enforcement Rules for the soundness of corporate management shall be met.

(2) For any prompt-transfer company that satisfies all of the following requirements, the Exchange shall not apply the requirements for management stability from among the qualitative review requirements under [§29(1)2]:

1. As of the listing application date, the total number of common stocks held by the largest shareholder (in cases where the largest shareholder and the largest voting holder are different for a company that has issued multiple voting shares, it shall refer to the largest voting holder) shall be at least 30/100 of the total number of common stocks. In such cases, the number of stocks to be increased by the exercise of rights such as conversion rights, subscription rights, etc. shall be included; (Amended on July 1, 2026)
2. There shall be no change in the largest shareholder within one (1) year prior to the date of application for preliminary listing review. Provided that, in cases where the largest shareholder and the largest voting holder of a company that has issued multiple voting stocks are different, if the largest voting holder becomes the largest shareholder or the largest shareholder becomes the largest voting holder, the largest shareholder is deemed not to have changed.; (Amended on July 1, 2026)
3. The largest shareholder shall not be a venture capital, a collective investment scheme under Article 9(18) of the Act or a paper company under the main sentence of [§26(2)]; and
4. There shall be no lawsuit that significantly affects management rights, etc., and there shall be no possibility of management disputes in light of share ownership structure, etc.

§32. Special Cases Concerning Large-sized Corporations, Etc.

(1) The Exchange shall not apply the formality review requirements under [§28(1)2] and the qualitative review requirements under [§29(1)1] to a large-sized corporation that meets all of the following requirements:

1. It shall be a Korean corporation (excluding a foreign holding company located in Korea);
2. Sales in the latest business year shall be at least KRW 100 billion; and
3. Income before tax from continuing operations in the latest business year shall be at least KRW 20 billion

(2) In cases where the Exchange acknowledges that it is necessary to realize public interests, it may not apply the formality review requirements under [§28(1)1] through [§28(1)3] and the qualitative review requirements in [§29] to a corporation that falls under any of the following subparagraphs:

1. Public corporations under Article 152(3) of the Act;
2. Corporations directly established pursuant to a special law;
3. Among the public institutions under Article 4(1)3 of the Act on the Management of Public Institutions, those institutions which the government holds at least 50/100 of the stake;
4. Corporations under Article 2 of the Act on the Improvement of Managerial Structure and Privatization of Public Enterprises; and
5. Other public institutions stipulated in the Enforcement Rules.

(3) The Exchange may not apply the qualitative review requirements under [§29] to corporations that have been listed on the KOSPI Market for two (2) year or more as of the date of application for initial listing. Provided that, the corporation designated as an administrative issue as of the date of application for initial listing shall be excluded. (Amended on July 9, 2025)

(4) With respect to the stock distribution of a domestic company listed on the foreign securities market, the requirements under [§62(1)1(c)] regarding the stock distributions of foreign companies listed on foreign securities markets shall apply *mutatis mutandis* in lieu of [§28(1)1].

Section III. Backdoor Listing

§33. Backdoor Listing

(1) In cases where, in relation to the transactions falling under any of the following subparagraphs, there is a change in the management right specified in the Enforcement Rules of a common-stock-listing corporation and there is an effect of listing the equity securities of a backdoor listing target company as stipulated in the Enforcement Rules, the Exchange shall deem it as a backdoor listing.

1. Transactions between the common-stock-listing corporation and the backdoor listing target company that fall under any of the following items:
 - (a) Mergers under Section 10, Chapter IV, Part III of the Commercial Act. Provided that the following cases shall be excluded; (Amended on July 9, 2025)
 - (i) In cases of a simplified merger pursuant to Article 527-2 of the Commercial Act, if the surviving company after the merger owns 90% or more of the total number of issued shares of the company that is extinguished due to the merger;
 - (ii) In cases of small-scale mergers under Article 527-3 of the Commercial Act; or
 - (iii) In cases of a listing after merger under [§2(1)1(f)]. (Amended on July 9, 2025)
 - (b) All-inclusive stock swap under Article 360-2(2) of the Commercial Act (hereinafter referred to as the “all-inclusive stock swap”); and
 - (c) Business transfers that require a submission of a report on material facts pursuant to Article 161(1)7 of the Act (hereinafter referred to as the “significant business transfer”).
2. Transactions between the common-stock-listed corporation and a key investor (hereinafter referred to as the “key investor”) of the backdoor listing target company specified in the Enforcement Rules, which fall under any of the following items:
 - (a) Acquisitions of material assets that require a submission of a report on material facts pursuant to Article 161(1)7 of the Act (hereinafter referred to as the “acquisition of material asset”). Provided that, assets to be acquired shall be limited to equity securities issued by the backdoor listing target company.
 - (b) Investment in kind pursuant to Article 422 of the Commercial Act (hereinafter referred to as the “investment in kind”) in which equity securities of the backdoor listing target company are paid as contribution property for stocks issued through a third-party allotment by the common-stock-listed corporation. Provided that, it shall be limited to cases where the investment value of the concerned equity securities is higher than the

amount specified in the Enforcement Rules.

3. Other transactions equivalent to those mentioned in subparagraphs 1 and 2 as specified in the Enforcement Rules.

(2) Notwithstanding the part other than each subparagraph of paragraph (1), in the event of falling under Article 176-5(4)2 of the Enforcement Decree of the Act, it shall be construed as a backdoor listing after merger. (Amended on July 9, 2025)

(3) Where a common-stock-listed corporation engages in a transaction falling under any of the subparagraphs of paragraph (1) with an unlisted corporation, resulting the effect of the listing of the equity securities of the unlisted corporation and the Exchange recognizes that the unlisted corporation is required to undergo a preliminary listing review in order to serve the public interest and protect investors as it constitutes a listing pursuant to the part other than each subparagraph of [§19-2(1)], this shall be deemed a backdoor listing. [July 31, 2026]

§34. Submission of Review Documents on Backdoor Listing, Etc.

(1) In cases where a common-stock-listed corporation falls under any causes stipulated in the Enforcement Rules such as the resolution on merger with an unlisted corporation or a KONEX-listed corporation, it shall submit a confirmation statement on backdoor listing and supplementary documents specified in the Enforcement Rules to the Exchange.

(2) A common-stock-listed corporation that has been notified that it falls under backdoor listing (hereinafter referred to as a “backdoor listing applicant”) shall submit documents for backdoor listing review and other documents acknowledged as necessary by the Exchange without delay pursuant to the Enforcement Rules. In such cases, the backdoor listing applicant shall submit the relevant documents through a listing sponsor, or in cases where the backdoor listing target company is registered in the M&A network (referring to an intermediary network established by the Exchange to provide intermediary services for M&As of small and medium-sized venture businesses; hereinafter the same shall apply), it shall submit through an institution specialized in M&A (referring to an institution designated by the Exchange to register M&A information in the M&A network).

(3) Regarding the review for backdoor listing and the notification on its result, the provisions of [§5] concerning matters to be reported after applying for preliminary listing review, the provisions under [§6] concerning preliminary listing review, etc. (excluding paragraphs (2) and (6)), the provisions of [§8] concerning invalidation of results of preliminary listing review, and the provisions in [§10] concerning appeal against preliminary listing review shall apply *mutatis mutandis*. In such cases, the “preliminary listing review” shall be construed as “backdoor listing review”, and the “application for preliminary listing review” shall be construed as “documents for backdoor listing review”.

(4) In cases where the provisions in [§6(4)] apply *mutatis mutandis* with respect to the deadline for the notification on the results of the backdoor listing review, the deadline may be set

differently as stipulated in the Enforcement Rules.

(5) In cases where a corporation that goes through a backdoor listing review is not subject to the submission of the securities registration statement for a public offering or sale, it shall publish a listing specification stating the matters stipulated in the Enforcement Rules through electronic information dissemination media by the time of filing the application for listing of new stocks issued subsequent to the relevant backdoor listing.

(6) Matters concerning the details on application methods and documents to be submitted for determining whether a transaction constitutes a backdoor listing other than those set forth in the provisions of paragraphs (1) through (5) shall be stipulated in the Enforcement Rules.

§35. Review Requirements for Backdoor Listing

(1) In the case of a backdoor listing by a merger under [§33(1)1(a)] or [§33(2)], a backdoor listing by all-inclusive stock swap under [§33(1)1(b)], a backdoor listing by an acquisition of material assets under [§33(1)2(a)], and a backdoor listing by investment in kind under [§33(1)2(b)], the backdoor listing target company shall meet all of the following formality review requirements:

1. Equity capital: As of the date of filing the report on material facts (based on the date of reporting on the issuance of stocks pursuant to [§6] of the Disclosure Regulation in the case of backdoor listing by way of investment in kind under [§33(1)2(b)]), equity capital shall be at least KRW 3 billion (in the case of venture companies, at least KRW 1.5 billion);
2. Capital status: There shall be no capital impairment as of the end of the latest business year. In such cases, the amount of the paid-in capital increase and the amount to be capitalized by the exercise of subscription rights, conversion rights, or stock options, and the asset revaluation during the business year to which submission date of the report on material facts belongs shall be taken into account;
3. Business performance: There shall be income before tax from continuing operations as of the end of the latest business year and any of the followings shall be satisfied:
 - (a) Net income shall be at least KRW 2 billion (in the case of venture companies, at least KRW 1 billion); or
 - (b) The return on equity shall be at least 10/100 (in the case of venture companies, at least 5/100).
4. Auditor's audit opinion: The audit opinion of an auditor (referring to a designated auditor in cases where the SFC have designated the auditor pursuant to Article 14(6)1 of the Enforcement Decree of the Act on External Audit) on the financial statements as of the end of the latest business year shall be 'unqualified'. In such cases, a corporation

with a subsidiary shall include the audit opinion on its consolidated financial statements.

(2) In case of a backdoor listing by a significant business acquisition under [§33(1)1(c)], the business segment subject to the acquisition shall satisfy all of the following formality review requirements as of the submission date of the report on material facts:

1. Business performance: There shall be income before tax from continuing operations at the end of the latest business year.
2. Debt ratio: Liabilities shall not exceed assets as of the end of the latest business year.
3. Auditor's audit opinion: The audit opinion of an auditor (referring to a designated auditor in cases where the SFC have designated the auditor pursuant to Article 14(6)1 of the Enforcement Decree of the Act on External Audit) on the financial statements specified in the Enforcement Rules of the backdoor listing target company shall be 'unqualified'. In such cases, a corporation with a subsidiary shall include the audit opinion on its consolidated financial statements.

(3) A backdoor listing target company shall satisfy the qualitative review requirements in [§29] as stipulated in the Enforcement Rules.

(4) In cases where a backdoor listing target company is a foreign company, the requirements for the audit report of foreign companies under [§3(2)], the qualifications for auditors of foreign companies pursuant to [§15(1)] and [§15(2)], and the methods for applying listing requirements for foreign companies under [§62(1)] shall apply *mutatis mutandis*.

(5) In cases where a backdoor listing target company issues equity securities other than stocks, the qualifications for auditors of foreign companies under [§15(1)] and [§15(2)] shall apply *mutatis mutandis* to the qualifications of auditors.

(6) Matters concerning the detailed application methods required for applying the requirements for backdoor listing other than those set forth in the provisions of paragraphs (1) through (5) shall be stipulated in the Enforcement Rules.

§36. Mandatory Holding in Case of Backdoor Listing

(1) In cases of a backdoor listing by a merger under [§33(1)1(a)] or [§33(2)] and a backdoor listing by an all-inclusive stock swap under [§33(1)1(b)], it is obligatory to hold stocks, etc. pursuant to each of the following subparagraphs: (Amended on March 16, 2022)

1. Key investors of the backdoor listing target company who are acknowledged as required to be subject to mandatory holding as specified in the Enforcement Rules (hereinafter referred to as "key investors subject to mandatory holding"): It shall be mandatory to hold stocks, etc. of the common-stock-listed corporation and the backdoor listing target company for six (6) months from the date of supplementary

listing (referring to the day on which new stocks allocated through a merger or all-inclusive stock swap are listed, or the day of stock swap in the case of exchanging new stocks with existing common stocks of the common-stock-listed corporation; hereinafter the same shall apply in this Article).

2. A person who has acquired stocks, etc. from a key investor subject to mandatory holding during the period starting from six (6) months prior to the submission date of the report on material facts about a merger or all-inclusive stock swap and ending on the supplementary listing date: It shall be mandatory to hold stocks, etc. of the backdoor listing target company for six (6) months from the date of supplementary listing, except as otherwise provided in the Enforcement Rules.
3. A person who has acquired stocks, etc. issued by way of third-party allotment by the backdoor listing target company during the period starting from the date six (6) months prior to the submission date of the report on material facts about a merger or all-inclusive stock swap and ending on the supplementary listing date: It shall be mandatory to hold stocks, etc. of the backdoor listing target company for six (6) months from the date of supplementary listing except as otherwise provided in the Enforcement Rules.
4. Stocks, etc. of the backdoor listing target company (limited to stocks, etc. equivalent to 10/100 of the capital of the backdoor listing target company as of the date of a merger or all-inclusive stock swap from among the stocks, etc. acquired by venture capital or professional investors) acquired by venture capital or professional investors through methods other than public offering or sale whose investment period (based on the submission date of the report on material facts about a merger or all-inclusive stock swap) is less than two (2) years: It shall be mandatory to hold for one (1) month from the date of supplementary listing except as otherwise provided in the Enforcement Rules.
5. Stocks acquired by a key investor subject to mandatory holding through exercises of stock options after the date of supplementary listing: It shall be mandatory to hold stocks for six (6) months from the date of supplementary listing.

(2) In cases of a backdoor listing by acquisition of significant business under [§33(1)1(c)], a backdoor listing by investment in kind under [§33(1)2(b)] and a backdoor listing by acquisition of material assets under [§33(1)2(a)], any key investors subject to mandatory holding who have participated in the relevant third-party allotment or stock transfer shall mandatorily hold the stocks, etc. specified in the following subparagraphs they own for six (6) months from the date stipulated in the Enforcement Rules. (Amended on March 16, 2022)

1. Stocks, etc. of a common-stock-listed corporation; and
2. Stocks of a common-stock-listed corporation acquired through exercises of stock options after the date stipulated in the Enforcement Rules.

(3) The mandatory holding due to the backdoor listing under [§33(1)3] shall be separately provided for by the Exchange in consideration of the nature and procedures of the transactions.

(4) Notwithstanding paragraphs (1) through (3), in cases where the person subject to mandatory holding makes a request in consultation with the listing sponsor or the Exchange acknowledges that it is necessary for management transparency, management stability and investor protection, etc., it may, in consultation with the persons subject to mandatory holding, extend the period of mandatory holding by not more than a period of two (2) years in addition to the mandatory holding period specified in paragraphs (1) through (3). (Amended on March 16, 2022)

§37. Mandatory Holding during Backdoor Listing Review

(1) In cases of backdoor listings under [§33(1)] and [§33(2)], the largest shareholder, etc. of the common-stock-listed corporation and the key investors of the backdoor listing target company subject to mandatory holding (limited to those who have participated in the relevant third-party allotment or stock transfer in the case of backdoor listing by significant business acquisition, acquisition of material assets and investment in kind) shall hold stocks, etc. of the common-stock-listed corporation they own from the date of the review for backdoor listing to the period specified in each of the following subparagraphs:

1. Backdoor listing by merger under [§33(1)1(a)] or [§33(2)]: The date of supplementary listing;
2. Backdoor listing by all-inclusive stock swap under [§33(1)1(b)]: The date of stock swap; and
3. Backdoor listing by significant business acquisition under [§33(1)1(c)], backdoor listing by acquisition of material assets under [§33(1)2(a)], and backdoor listing by investment in kind under [§33(1)2(b)]: The date specified in the Enforcement Rules.

(2) Notwithstanding paragraph (1), in cases where a decision on backdoor listing is canceled or it is deemed unavoidable for fulfillment of statutory obligations or any other reasons, the Exchange may grant an exception to the mandatory holding.

§38. Publication of Mandatory Holding

In cases where a backdoor listing is completed, the Exchange may make public the backdoor listing of the relevant applicant as stipulated in the Enforcement Rules.

Section IV. Re-listing

§39. Re-listing

The re-listing of common stocks shall be classified into each of the followings:

1. Re-listing after spin-off: Case where stocks of a corporation, which was incorporated as a result of spin-off or merger after spin-off (limited to a case where the counterparty of the merger is a common-stock-listed corporation) of a common-stock-listed corporation pursuant to Article 530-2 of the Commercial Act, are listed. Provided that, the spin-off or the merger after spin-off which are conducted as a consequence of carve-out pursuant to Article 530-12 of the Commercial Act shall be excluded; and
2. Re-listing after merger: Case where stocks of a corporation, which was incorporated as a result of the merger between common-stock-listed corporations pursuant to Article 522 of the Commercial Act, are listed.

§40. Application for Re-preliminary listing review

(1) An applicant for re-listing after spin-off shall undergo a preliminary listing review prior to the application for re-listing pursuant to [§42]. In such cases, the applicant for re-listing after spin-off shall submit the application for re-preliminary listing review and the supplementary documents stipulated in the Enforcement Rules to the Exchange without delay through a listing sponsor after the resolution of the Board of Directors on the spin-off or the merger after spin-off.

(2) In cases where it is deemed necessary for investor protection and the soundness of the KOSDAQ Market, the Exchange may discuss in advance the listing procedures and timing with a listing applicant before the listing applicant applies for a preliminary listing review.

§41. Mandatory Holding in Case of Re-listing

(1) In the case of re-listing of common stocks, a person subject to mandatory holding of common-stock-listed corporations prior to spin-off, merger after spin-off, or merger shall mandatorily hold the relevant stocks for the remaining period of the mandatory holding after the date of re-listing.

(2) In the case of re-listing pursuant to [§43(3)], a person subject to mandatory holding who falls under any of the following subparagraphs shall mandatorily hold stocks, etc. of the applicant for re-listing as stipulated in each subparagraph:

1. A person who has acquired stocks, etc. owned by the largest shareholder, etc. (the officers of the applicant for re-listing shall include persons falling under Article 401-2(1) of the Commercial Act) of the applicant for re-listing within one (1) year prior to the date of application for re-listing: Six (6) months from the date of re-listing except as otherwise provided in the Enforcement Rules.; and
2. A person who has acquired stocks, etc. issued through a third-party allotment by the applicant for re-listing within one (1) year prior to the date of application for re-listing: Six (6) months from the date of re-listing except as otherwise provided in the Enforcement Rules.

§42. Application for Re-listing

(1) An applicant for re-listing shall submit the application for re-listing and the supplementary documents stipulated in the Enforcement Rules to the Exchange. Provided that, in cases where there are no changes in the supplementary documents submitted at the time when the applicant for re-listing after spin-off applied for preliminary listing review, the submission of the supplementary documents may be omitted.

(2) An applicant for re-listing shall apply for re-listing under paragraph (1) within one (1) month from the registration date of incorporation. Provided that, an applicant for re-listing with respect to whom the review requirements under [§43(3)] apply shall file an application for re-listing within one (1) month after the financial statements of the business year to which the spin-off date belongs (in cases where the period between the spin-off date and the end date of business year is less than three (3) months, it shall refer to the next business year) have been finalized.

(3) With respect to applicants for re-listing, the provisions on the reporting after application for preliminary listing review under subparagraphs 1, 2, and 5 of [§5] shall apply *mutatis mutandis*. In such cases, the “application for preliminary listing review” shall be construed as the “submission of application for re-listing”.

§43. Review Requirements for Re-listing

(1) An applicant for re-listing after spin-off shall meet all of the following formality review requirements:

1. The equity capital shall be at least KRW 3 billion (KRW 1.5 billion in the case of venture companies) as of the date of application for re-listing, and there shall be no capital impairment as of the date of spin-off or the date of merger after spin-off.
2. The total number of common stocks to be re-listed shall be at least one (1) million. Provided that, stocks held by the largest shareholder, etc. shall be excluded.

3. The business performance of the business segment to be transferred shall meet all of the following requirements. In such cases, it shall be based on the business year immediately preceding the business year which includes the date of resolution of board of directors on the spin-off or the merger after spin-off:
 - (a) There shall be income before tax from continuing operations; and
 - (b) Any one of the followings shall be met:
 - (i) The return on equity shall be at least 10/100 (in the case of venture companies, 5/100);
 - (ii) The net income shall be at least KRW 2 billion (KRW 1 billion in the case of venture companies); and
 - (iii) Sales amount shall be at least KRW 10 billion (KRW 5 billion in the case of venture companies)
 4. The auditor's audit opinion on the financial statements as of the date of spin-off or the date of merger after spin-off shall be 'unqualified'. In such cases, a corporation with a subsidiary shall include the auditor's opinion on its consolidated financial statements.
 5. The requirement for the restriction on the transfer of stocks under [§28(1)4] shall be satisfied;
 6. The requirement for par value under [§28(1)5] shall be satisfied;
 7. The requirement for standing auditors under [§28(1)6] shall be satisfied;
 8. The requirement for outside directors under [§28(1)7] shall be satisfied; and
 9. The review opinion of an auditor in the review report regarding the matters specified in each of the followings shall be 'unqualified'.
 - (a) Sales and profit status of the business segment to be transferred by the spin-off or the merger after spin-off for the business year immediately preceding the business year to which the date of resolution of board of directors on the spin-off or the merger after spin-off belongs; and
 - (b) Sales and profit status of the business segment to be transferred by the spin-off or the merger after spin-off for the half of the business year to which the date of resolution of board of directors on the spin-off or the merger after spin-off belongs. Provided that, this provision shall be applicable only when 45 days have elapsed after the end of the half year period of the concerned business year.
- (2) An applicant for re-listing after merger shall meet all of the following formality review

requirements:

1. The requirement for the restriction on the transfer of stocks under [§28(1)4] shall be satisfied;
2. The requirement for par value under [§28(1)5] shall be satisfied;
3. The requirement for standing auditor under [§28(1)6] shall be satisfied; and
4. The requirement for outside director under [§28(1)7] shall be satisfied.

(3) Notwithstanding paragraph (1), in cases where a common-stock-listed corporation has merged (excluding the case of small-scale merger pursuant to Article 527-3 of the Commercial Act) with an unlisted corporation or a KONEX-listed corporation and applies for re-listing after spin-off as a result of a spin-off or merger after spin-off within three (3) years from the date of the aforesaid merger, all of the following requirements shall be met:

1. The final financial statements of the business year (referring to the following business year in cases when the concerned business year is less three (3) months; hereinafter the same shall apply in this paragraph) to which the date of spin-off or merger after spin-off belongs have been finalized;
2. The equity capital shall be at least KRW 3 billion (KRW 1.5 billion in the case of venture companies) as of the date of application for re-listing;
3. There shall be no capital impairment as of the date of spin-off or the date of merger after spin-off;
4. The total number of common stocks to be re-listed shall be at least one (1) million as of the date of application for re-listing. Provided that, stocks held by the largest shareholder, etc. shall be excluded;
5. The business performance for the business year to which the date of spin-off or the date of merger after spin-off belongs shall meet all of the following requirements:
 - (a) There shall be income before tax from continuing operations; and
 - (b) Any one of the followings shall be met:
 - (i) The return on equity shall be at least 10/100 (5/100 in the case of venture companies);
 - (ii) The net income shall be at least KRW 2 billion (KRW 1 billion in the case of venture companies); and
 - (iii) Sales amount shall be at least KRW 10 billion (KRW 5 billion in the case of venture companies)

6. The auditor's audit opinion on the financial statements as of the end of the business year which includes the date of spin-off or the date of merger after spin-off shall be 'unqualified'. In such cases, a corporation with a subsidiary shall include the auditor's opinion on its consolidated financial statements;
 7. The requirement for the restriction on the transfer of stocks under [§28(1)4] shall be satisfied;
 8. The requirement for par value under [§28(1)5] shall be satisfied;
 9. The requirement for standing auditors under [§28(1)6] shall be satisfied; and
 10. The requirement for outside directors under [§28(1)7] shall be satisfied
- (4) An applicant for re-listing shall meet the qualitative review requirements in [§29].
- (5) In addition to the provisions of paragraphs (1) through (4), the necessary matters concerning the re-listing review requirements shall be stipulated in the Enforcement Rules.

Section V. Listing Change and Supplementary Listing

§44. Listing Change and Supplementary Listing

- (1) In cases where there has been a change in the class, existence of par-value stock and amount of par value (if any), issue, or quantity of the listed issue, a common-stock-listed corporation shall submit to the Exchange the application for listing changes or supplementary listing and the documents attached thereto as specified in the Enforcement Rules within one (1) month from the occurrence date of the concerned change.
- (2) In cases where the subscription warrants issued by an applicant who requests a listing change of common stocks due to a change in par value, issue or quantity have already been listed, the application for listing change of the subscription warrants may be replaced by recording the details on the listing change of the subscription warrants in the application for listing change of common stocks.
- (3) In the case of listing change due to stock split or reverse stock split, the par value per share shall be the amount stipulated in the Enforcement Rules. (Amended on May 13, 2026)

§45. Shelf-listing

(1) A common-stock-listed corporation that has issued the subscription warrants, bonds with warrants or convertible bonds or granted stock options may apply for shelf-listing of the total number of new stocks to be issued by way of exercise of subscription rights, conversion rights or stock options. In such cases, the applicant for supplementary listing shall submit the application for shelf-listing stipulated in the Enforcement Rules to the Exchange before the commencement of the exercise period for the subscription rights, conversion rights or stock options.

(2) In order to apply for listing of new stocks issued by way of exercise of the relevant rights, a common-stock-listed corporation that has submitted an application for shelf-listing pursuant to paragraph (1) shall submit a notice on issuance of new stocks and supplementary documents to the Exchange specified in the Enforcement Rules.

§46. Deferment of Listing

(1) In cases when the stocks for which an applicant for listing change or supplementary listing has applied for listing fall under any of the followings, the listing of the relevant stocks may be deferred until the causes concerned are resolved:

1. Where a lawsuit has been filed regarding the validity of the issuance of new stocks, etc. Provided that this provision shall not apply to the cases stipulated in the Enforcement Rules, such as where there is little risk of impairing the safety of transactions;
2. Where the record dates of stocks for dividends vary for each class of stocks;
3. Where the review requirements for backdoor listing under [§35] are not satisfied, or the review of the Exchange for backdoor listing has not been completed; and
4. Where the supplementary documents stipulated in the Enforcement Rules on the details of the use of funds subsequent to paid-in capital increase by way of third-party allotment have not been submitted except for the cases specified in the Enforcement Rules.

(2) In cases where a common-stock-listed corporation infringes the financial management standards under the Regulations on Issuance and Public Disclosure, etc. of Securities, the Exchange may defer the listing change or supplementary listing for one (1) year from the date of occurrence of infringement.

(3) An applicant for the listing change or supplementary listing whose listing has been deferred due to the reasons provided in the main sentence of paragraph (1) may file an objection with the Exchange.

(4) In case of an objection under paragraph (3), the Exchange shall hold the Listing Committee to deliberate and decide whether or not to defer the listing change or supplementary listing.

(5) Any necessary matters concerning the methods and procedures for filing an objection and the deliberation of the Listing Committee other than those set forth in the provisions of paragraphs (1) through (4) shall be stipulated in the Enforcement Rules.

CHAPTER II. MANAGEMENT OF LISTED ISSUES

§47. Assignment and Change of Company Category

(1) By taking into consideration the nature of business and the needs for investor protection, including such factors as company size, financial conditions, management performance, soundness of corporate management, and industrial sector of a common-stock-listed corporation, the Exchange may assign a company category to the corporation. Provided that, foreign holding company located in Korea and common-stock-listed corporations designated as investment attention issues or administrative issues shall be excluded.

(2) The company categories in paragraph (1) shall be classified as follows:

1. Premier company category: Companies that meet the requirements specified in the Enforcement Rules in view of company size, financial conditions, management performance, soundness of corporate management, etc.
2. Technology growth company category: Technology growth companies, prompt-transfer companies, prompt-listing-after-merger companies, or companies with unrealized profits.
3. Venture company category: Companies falling under any of the followings:
 - (a) Companies that meet the requirements specified in the Enforcement Rules in view of technological prowess, growth potential, etc.;
 - (b) Companies recognized for their technological prowess by the method specified in the Enforcement Rules; and
 - (c) Companies designated in the Enforcement Rules in consideration of market share, etc.
4. Standard company category: Companies falling under any of the followings:
 - (a) Common-stock-listed corporations that do not fall under any of company categories under items 1 through 3; and
 - (b) Initially listed or re-listed companies as specified in the Enforcement Rules.

(3) The Exchange shall assign or change the company categories by reviewing the business report, etc. of the latest business year submitted by a common-stock-listed corporation on the first trading day in May of each year.

(4) Notwithstanding paragraph (3), in cases where any cause for change in the company category specified in the Enforcement Rules occurs, the Exchange may review and change the company category of common-stock-listed corporations at any time.

(5) Any necessary matters concerning the criteria and procedures etc. of the assignment and change of the company category other than those set forth in provisions of paragraphs (1) through (4) shall be stipulated in the Enforcement Rules.

§47-2. Selection and Publication of Companies with Low Price-to-Book Ratios

(1) The Exchange may select and announce common stock-listed companies as companies with low price-to-book ratios (hereinafter referred to as "low PBR companies") whose ratio of market capitalization to net assets (hereinafter referred to as the "Price-to-Book Ratio") in the latest two consecutive periodic reports (excluding quarterly reports) falls within the bottom twenty (20) percent of the industry sector and within the ratio specified in the Enforcement Rules.

(2) Regarding the selection and announcement of low PBR companies under paragraph (1), necessary matters such as industry classification, criteria for calculating the PBR ratio, and methods for publicizing low PBR companies shall be determined separately by the Exchange.

[July 1, 2026]

§48. Mandatory Holding Subsequent to Merger or All-inclusive Stock Swap

(1) In cases where a common-stock-listed corporation merges with an unlisted corporation or a KONEX-listed corporation, or an unlisted corporation or a KONEX-listed corporation becomes a wholly owned subsidiary of a common-stock-listed corporation by way of all-inclusive stock swap, the stocks, etc. of the unlisted corporation or the KONEX-listed corporation shall be held mandatorily as specified in each of the following subparagraphs:

1. The largest shareholder, etc. of the unlisted corporation or the KONEX-listed corporation (the officers of an unlisted corporation or a KONEX-listed corporation shall include a person falling under each subparagraph of Article 401-2(1) of the Commercial Act; hereinafter the same shall apply in this Article): For six (6) months from the date of supplementary listing (referring to the listing date of the new stocks delivered subsequent to the merger or the all-inclusive stock swap, and in the case of swapping existing stocks of the common-stock-listed corporation, it shall be the date

of stock swap; hereinafter the same shall apply in this Article)

2. The persons who acquired the stocks, etc. held by the largest shareholders, etc. of an unlisted corporation or a KONEX-listed corporation during the period starting on the submission date of the report on material facts about a merger or all-inclusive stock swap and ending on the date of supplementary listing: For six (6) months from the date of supplementary listing. Provided that, the acquisition of the stocks, etc. held by the largest shareholder, etc. in the KONEX market shall be excluded.
3. The stocks, etc. acquired by venture capital or professional investors through a method other than a public offering or sale whose investment period is less than two (2) years (based on the submission date of the report on material facts subsequent to merger or all-inclusive stock swap) (limited to stocks, etc. up to the amount equivalent to 10/100 based on the capital stock of an unlisted corporation or a KONEX-listed corporation as of the date of merger or stock swap among the stocks, etc. acquired by venture capitals or professional investors): For one (1) month from the date of supplementary listing, except for the cases stipulated in the Enforcement Rules.

(2) Notwithstanding paragraph (1), in cases where the Exchange acknowledges that it is necessary for management transparency, management stability and investor protection, the period of mandatory holding may be extended by a maximum of two (2) years in addition to the period stipulated in paragraph (1) in consultation with the person subject to the mandatory holding.

(3) Notwithstanding paragraphs (1) and (2), the mandatory holding under this Article shall not apply in the case of the backdoor listing subsequent to a merger under [§33(1)1(a)] or [§33(2)] or the backdoor listing by all-inclusive stock swap under [§33(1)1(b)].

§49. Mandatory Holding subsequent to Business Acquisition, Etc.

(1) In cases where a common-stock-listed corporation acquires a material business segment of an unlisted corporation or a KONEX-listed corporation, and the largest shareholder, etc. of the unlisted corporation or the KONEX-listed corporation (the officers of the concerned corporation shall include a person falling under each subparagraph of Article 401-2(1) of the Commercial Act; hereinafter the same shall apply in this Article) acquires the stocks, etc. issued through a third-party allotment method by the common-stock-listed corporation within six (6) months from the submission date of the report on material facts subsequent to the acquisition of material business, the largest shareholder, etc. shall hold the allotted stocks, etc. for six (6) months from the date of supplementary listing.

(2) In cases where a common-stock-listed corporation acquires a material asset from the largest shareholder, etc. of an unlisted corporation or a KONEX-listed corporation, and the largest shareholder, etc. of the unlisted corporation or the KONEX-listed corporation acquires the stocks, etc. issued by way of third-party allotment by the common-stock-listed corporation within six (6) months from the submission date of the report on material facts subsequent to

the acquisition of material asset, the largest shareholder, etc. shall mandatorily hold the allotted stocks, etc. for six (6) months from the date of supplementary listing. Provided that, it shall be limited to a case where the subject of the material asset acquisition is equity securities issued by the unlisted corporation or the KONEX-listed corporation.

(3) In cases where the largest shareholder, etc. of an unlisted corporation or a KONEX-listed corporation acquires stocks issued by way of third-party allotment by a common-stock-listed corporation, and the largest shareholder, etc. makes payment for the allotted stocks by investment in-kind with equity securities of the unlisted corporation or KONEX-listed corporation, the largest shareholder, etc. shall mandatorily hold the allotted stocks for six (6) months from the date of supplementary listing. Provided that, it shall be limited to the case where the value of the investment in kind is 10/100 or more of the total assets of the common-stock-listed corporation as of the end of the latest business year (referring to the end of the business year immediately preceding the latest business year if it is before the reporting date under [§6(1)2(e)(i)] of the Disclosure Regulation).

(4) In cases where the Exchange acknowledges that it is necessary for the realization of public interests and investor protection, it may request mandatory holdings with regard to material business acquisitions, material asset acquisitions, or investment in-kind as stipulated in the Enforcement Rules.

(5) Notwithstanding paragraphs (1) through (4), in cases of the backdoor listing by the material business acquisition under [§33(1)1(c)], the backdoor listing by the acquisition of material assets in [§33(1)2(a)], or the backdoor listing by the investment in kind under [§33(1)2(b)], the mandatory holding under this Article shall not apply.

§50. Mandatory Holding in Case of Paid-in Capital Increase through Third-party Allotment

(1) In cases where a common-stock-listed corporation undertakes a paid-in capital increase by way of third-party allotment of new stocks, a person falling under any of the following subparagraphs shall hold the allotted stocks mandatorily for the period specified in each subparagraph: (Amended on December 7, 2022)

1. A person who participated in the paid-in capital increase (including the case resulted from the handling of unclaimed stocks as stipulated in the Enforcement Rules) in the case where the largest shareholder of the common-stock-listed corporation has changed [excluding cases where, if the largest shareholder and the largest voting holder of a company that has issued multiple voting stocks are different, the largest voting holder becomes the largest shareholder or the largest shareholder becomes the largest voting holder; the same hereinafter in paragraph (2)] as a result of the concerned paid-in capital increase by third-party allotment: From the issuance date to six (6) months after the supplementary listing (Amended on July 1, 2026)
2. A person who participated in the paid-in capital increase in cases where a common-

stock-listed corporation, which has been designated as an investment attention issue under [§52] or administrative issue due to an occurrence of a loss before tax from continuing operations under [§53(1)2], capital impairment, etc. under [§53(1)3], failure to meet shareholders' equity requirement under [§53(1)4] or failure to meet market capitalization requirement under [§53(1)5] as of the issuance date of new stocks, undertakes the paid-in capital increases by third-party allotment: From the issuance date to six (6) months after the supplementary listing

3. A person who participated in the paid-in capital increase in cases where a decision is made on advanced payment, suspense payment, cash loan, stock loan (referring to the stocks, bills and transferable certificates of deposit under each subparagraph of Article 4(2) of the Act), investment (referring to the acquisition of the stocks, etc. and the capital contribution certificates issued by other companies, etc.) with respect to the person who acquired new stocks before the listing of the new stocks issued by third-party allotment: For six (6) months from the supplementary listing.

(2) Notwithstanding subparagraphs 1 and 2 of paragraph (1), in the case where a common-stock-listed corporation for which a decision has been made to commence the rehabilitation procedures under the Debtor Rehabilitation and Bankruptcy Act (including the simplified rehabilitation procedures; hereinafter the same shall apply) undertakes a paid-in capital increase by third-party allotment subsequent to debt for equity swap, subparagraphs 1 and 2 of paragraph (1) shall apply only to the new largest shareholder, etc. (the officers of the common-stock-listed corporation shall include a person falling under each subparagraph of Article 401-2(1) of the Commercial Act) who will be changed.

(3) Any necessary matters concerning documents to be submitted other than those stipulated in the provisions of paragraph (1) and (2) shall be stipulated in the Enforcement Rules.

§51. Mandatory Holding in Case of Change of Largest Shareholder

(1) In cases where there is a change of the largest shareholder in a common-stock-listed corporation as specified in the Enforcement Rules and a new largest shareholder falls under persons specified in the Enforcement Rules as they are in appearance a corporation or an association, etc., but do not engage in actual business activities (the officers of the common-stock-listed corporation shall include a person falling under each subparagraph of Article 401-2(1) of the Commercial Act), the relevant largest shareholder, etc. changed shall mandatorily hold the stocks, etc. in each of the following subparagraphs for one (1) year from the date of submitting the documents set forth in the Enforcement Rules:

1. Stocks, etc. that are taken over or acquired in connection with the change of the largest shareholder; and
2. Stocks, etc. that have already been held before the date of disclosure on the change of the largest shareholder.

(2) Documents to be submitted and other necessary matters concerning the mandatory holding pursuant to paragraph (1) shall be stipulated in the Enforcement Rules.

§52. Investment Attention Issues

(1) In the case where a common-stock-listed corporation falls under any of the following subparagraphs, the Exchange shall designate the stocks of the corporation as an investment attention issue: (Amended on December 7, 2022)

1. Regular designation: Cases where a common-stock-listed corporation falls under the criteria for identification of insolvency risk stipulated in the Enforcement Rules in consideration of the quantitative and qualitative parameters related to the corporation's business, finance, and management; and
2. Timely designation: Cases where a common-stock-listed corporation falls under any of the followings:
 - (a) Where, as a result of the review or audit performed by an auditor on the operational status of the internal accounting management system pursuant to Article 8 of the Act on External Audit, there exists a material vulnerability or a significant limitation on the scope of review or audit, or the review or audit opinion was not expressed;
 - (b) Where the stocks, etc. subject to mandatory holding under this Regulation have been *de facto* sold in violation of [§17(1)]. Provided that, it shall be limited to cases involving a change of the largest shareholder;
 - (c) Where it is confirmed through disclosures, etc. that an advance payment, suspense payment, cash loan, stock loan (referring to the stocks, bills and transferable certificates of deposit under each subparagraph of Article 4(2) of the Act), investment (referring to the acquisitions of the stocks, etc. and the capital contribution certificates issued by another company), etc. have been made to a person who has acquired the new shares of the concerned common-stock-listed corporation following the paid-in capital increase by way of third-party allotment within six (6) months from the date of the concerned acquisition;
 - (d) Where the auditor's audit opinion on the individual or consolidated financial statements for the latest business year is a qualified opinion due to the uncertainty over the company's ability to survive as a going concern;
 - (e) Where it is not confirmed whether the largest shareholder is subject to the obligation of mandatory holding under [§51(1)] as a result of a change of the largest shareholder;
 - (f) Where the person subject to the obligation of mandatory holding pursuant to [§51(1)] fails to fulfill such obligation;

- (g) Where operating loss has incurred in each of the five (5) latest business years. Provided that this shall not apply to a technology growth company stipulated in the Enforcement Rules;
 - (h) Where the rate of capital impairment as of the end of the latest semi-annual business period is 50/100 or more;
 - (i) Where the equity capital as of the end of the latest semi-annual business period is less than KRW 1 billion; or,
 - (j) Where the auditor's review opinion or audit opinion on the individual or consolidated financial statements of the latest semi-annual business period is adverse opinion, disclaimer of opinion or qualified opinion due to the limit to the scope of audit.
- (2) In the case of designating a common-stock-listed corporation as an investment attention issue or releasing it therefrom, the Exchange shall make such fact public through disclosure media without delay.
- (3) The method of application of the reason for designation as an investment attention issue, the timing of designation and release therefrom, and other necessary matters shall be stipulated in the Enforcement Rules.

§53. Administrative Issues

- (1) In the case where a common-stock-listed corporation falls under any of the following subparagraphs, the Exchange shall designate the relevant common stocks as an administrative issue: (Amended on December 7, 2022)
- 1. Revenue below the required level: Case where the sales amount of the latest business year is less than KRW 10 billion. Provided that, in the event of falling under any of the following items, this provision shall not apply with respect to the period specified therein: (Amended on July 9, 2025)
 - (a) For companies with unrealized profit specified in the Enforcement Rules or technology growth companies specified in the Enforcement Rules: Five (5) consecutive business years including the business year which includes the date of initial listing (in the case of the listing after merger of a special purpose acquisition company, it shall be the date of listing after merger). Provided that, in cases where the period from the listing date to the end of the year which includes the listing date is less than three (3) months, it shall be the business year which includes the listing date and the subsequent five (5) business years thereafter. (Amended on July 1, 2026)
 - (b) Case where an innovative pharmaceutical company under subparagraph 3 of Article 2 of the Special Act on Fostering and Support of Pharmaceutical Industry among

technology growth companies specified in the Enforcement Rules meets the requirements stipulated in the Enforcement Rules as of the end of the latest business year: The latest business year. (Amended on July 9, 2025)

- (c) For companies whose average daily market capitalization for the latest business year calculated according to the method prescribed by the Enforcement Rules is KRW 60 billion or more: The latest business year (Amended on July 9, 2025)
2. Incurrence of loss before tax from continuing operations: Case where there has been a loss from continuing operations before tax (excluding the amount specified in the Enforcement Rules; hereinafter the same in this subparagraph) of at least KRW 1 billion, which exceeds 50/100 of equity capital as of the end of the relevant business year for two (2) out of the three (3) latest business years, respectively and there is a loss before tax from continuing operations for the latest business year. Provided that, in the case of falling under any of the followings, the requirements in the main sentence shall not apply for the business years in which a loss incurred:
 - (a) For a company with unrealized profit specified in the Enforcement Rules; Five (5) consecutive business years including the business year to which the date of initial listing belongs. Provided that, in cases where the period from the listing date to the end of the year which includes the listing date is less than three (3) months, it shall be the business year which includes the listing date and the subsequent five (5) business years thereafter. (Amended on July 1, 2026)
 - (b) For a technology growth company specified in the Enforcement Rules: Three (3) consecutive business years including the business year which includes the date of initial listing (in the case of the listing after merger of a special purpose acquisition company, it shall be the date of listing after merger). Provided that, in cases where the period from the listing date to the end of the year to which the listing date belongs is less than three (3) months, it shall be the business year to which the listing date belongs and the subsequent three (3) business years thereafter.
 3. Capital impairment: Cases where the rate of capital impairment as of the end of the latest business year is 50/100 or higher.
 4. Failure to meet the minimum shareholders' equity requirement: Case where the equity capital as of the end of the latest business year is less than KRW 1 billion.
 5. Failure to meet the minimum market capitalization requirement: Case where the market capitalization of common stocks of a common-stock-listed corporation falls below KRW 30 billion and such situation continues for 30 consecutive days (it shall be based on business days of the concerned issue; hereinafter the same shall apply in this paragraph). Provided that, in cases where the Exchange acknowledges that it is necessary for market management due to natural disasters or other rapid changes in market conditions, it may not designate the concerned stock as an administrative issue. (Amended on July 9, 2025)

5-2. Failure to meet share price requirement: Case where the closing price of common stocks remains below KRW 1,000 for thirty (30) consecutive days. In this case, the proviso to previous paragraph shall apply mutatis mutandis. [May 13, 2026]

6. Failure to submit regular reports: Case of failing to submit the annual report, semi-annual report, or quarterly report under [§19(1)] of the Disclosure Regulation by the statutory submission deadline.

7. Failure to meet corporate governance requirements: Case where the corporate governance of a corporation falls under any of the followings. Provided that, this provision shall not be applicable to any corporation that has fallen under any of the following events due to a shortage of the quorum for the shareholders' general meeting but is acknowledged by the Exchange in comprehensive view of the fact that it has made efforts to hold the shareholders' general meeting as set forth in the Enforcement Rules such as by introducing the electronic ballot system, etc.:

(a) Case where the number of outside directors under the annual report of the latest business year falls below the number specified in Article 542-8 of the Commercial Act; and

(b) Case where, based on the annual report of the latest business year, the audit committee specified in Article 542-11 of the Commercial Act has not been established or the composition of audit committee has failed to meet the specified requirements.

8. Failure to meet the minimum trading volume requirement: Case where, in terms of the trading volume in the KOSDAQ Market, the average monthly trading volume of common stocks in a quarter is less than 1/100 of the number of floating stocks. Provided that, this provision shall not apply to cases falling under any of the followings:

(a) Case of initially listed corporations. Provided that, it shall be limited to the quarter which includes the date of initial listing;

(b) Where the average monthly trading volume of a quarter is higher than 10,000 shares. In such cases, if a common-stock-listed corporation issues stocks with par value, it shall be based on a par value of KRW 5,000;

(c) Where the number of common shares held by minority shareholders who are stipulated in the Enforcement Rules is 20/100 or more of the number of floating stocks, and the number of the relevant minority shareholders is 300 or higher. In such cases, the number of shares held by minority shareholders and the number of minority shareholders shall be based at the end of the latest business year, but in cases where the shareholders' register is closed after the end of latest business year, it shall be based on the shareholders' register submitted to the Exchange at the time of closing and the list of holders in accordance with the Act on Electronic Registration of Stocks and Bonds, etc.; and

(d) Where the liquidity provision agreement pursuant to [§12-3(1)] of the KOSDAQ

Market Business Regulation (hereinafter referred to as the “Business Regulation” has been entered into.

9. Stock distribution not up to standards: Case where the number of minority shareholders (referring to the minority shareholders specified in the Enforcement Rules; hereinafter the same shall apply in this subparagraph) or the number of shares held by minority shareholders as of the end of the latest business year falls under any of the following items. In such cases, the latter part of subparagraph 8(c) shall apply *mutatis mutandis*:
 - (a) Where the number of minority shareholders is less than 200; and
 - (b) Where the number of stocks held by the minority shareholders is less than 20/100 of the number of floating stocks, except for cases falling under any of the followings:
 - (i) Case where the number of minority shareholders is 300 or more, and the number of stocks held by the minority shareholders is at least one (1) million and 10/100 or higher of the number of floating stocks; and
 - (ii) Case where the relevant stock is listed on a foreign securities market.
 10. Application for commencement of rehabilitation procedures: Case where an application for the commencement of rehabilitation procedures pursuant to the Debtor Rehabilitation and Bankruptcy Act has been filed.
 11. Application for bankruptcy: Case where an application for bankruptcy pursuant to Article 294 of the Debtor Rehabilitation and Bankruptcy Act has been filed, except where the Exchange stipulates in the Enforcement Rules that the designation of an administrative issue is not necessary in light of public interests and investor protection, etc.
 12. Causes for delisting: Case where causes for delisting by formality review or delisting by listing maintenance review occur. Provided that, the causes for delisting under [§54(1)3] (limited to cases of being merged into a KOSDAQ-listed corporation or KOSPI-listed company) or [§54(1)9] shall be excluded.
 13. Infringements of financial management standards: Case where the financial management standards pursuant to the Regulations on Issuance, Public Disclosure, Etc. of Securities have been infringed during the deferment period for listing change or supplementary listing pursuant to [§46(2)].
- (2) In cases where a cause for designation of an administrative issue or release therefrom occurs, the concerned common-stock-listed corporation shall report such fact to the Exchange without delay.
- (3) The Exchange may request a common-stock-listed corporation to confirm necessary facts regarding the designation of administrative issues and release therefrom. In such cases, the

concerned corporation shall comply with the request unless there is a justifiable reason.

(4) A common-stock-listed corporation designated as an administrative issue due to any causes specified in the Enforcement Rules may file an objection within seven (7) days (based on business days) from the date of notification on the administrative issue designation. In such cases, the objection does not suspend the validity of the administrative issue designation.

(5) In case of an objection pursuant to paragraph (4), the Exchange shall make a decision on the objection within 10 days (based on business days) from the date of objection and notify the relevant corporation of the result. In such cases, the concerned common-stock-listed corporation may not file an objection to such decision again.

(6) In applying paragraph (1), in cases where a special purpose acquisition company merges with an unlisted corporation or a KONEX-listed corporation, the Exchange shall apply subparagraphs 1, 2 and 9 of paragraph (1) to the surviving company from the business year following the business year which includes the registration date of the merger, and paragraph (1)8 shall apply starting from the quarter following the quarter which includes the registration date of the merger.

(7) In the event of designation as an administrative issue or release therefrom, the Exchange shall make such fact public through disclosure media without delay.

(8) The methods of applying the causes for designation as administrative issues, the timing of designating administrative issues and releasing therefrom, and other necessary matters shall be stipulated in the Enforcement Rules.

§53-2. Penalty for Breach of Listing Agreement

(1) If a KOSDAQ-listed corporation fails to fulfill its obligation to protect shareholders regarding the listing of a subsidiary, etc., violating [§78-2] and such subsidiary is subsequently listed (including cases where it is listed on an overseas securities market), the Exchange may, following deliberation by the Listing Disclosure Committee, impose a penalty for breach of listing agreement (hereinafter referred to as "penalty") within KRW 1 billion.

(2) Necessary matters regarding the imposition of the penalty under paragraph 1, such as imposition criteria, the amount of the penalty, and the imposition procedure, shall be prescribed in the Enforcement Rules by the Exchange.

(3) If the Exchange imposes a penalty pursuant to paragraph 1, it may publicize the details of the violation, the relevant regulations, and other related information.

(4) If a KOSDAQ-listed corporation fails to pay the penalty pursuant to paragraph 1 within the payment deadline, the Exchange may take necessary measures, such as applying for a payment order.

[July 31, 2026]

CHAPTER III. DELISTING

§54. Delisting by Formality Review

(1) In cases when a common-stock-listed corporation falls under any of the following subparagraphs, the Exchange shall delist the concerned common stocks: (Amended on December 7, 2022)

1. Failure to obtain an unqualified audit opinion: Case where the auditor's audit opinion on the individual or consolidated financial statements for the latest business year is adverse, disclaimer of opinion, or qualified due to limitations placed on the scope of audit. Provided that, in the case where the auditor's opinion is adverse or disclaimer of opinion due to uncertainties over the company's ability to continue as a going concern and the Exchange accepts the auditor's confirmation letter specified in the Enforcement Rules (limited to the confirmation letter prepared by the auditor who completed the concerned audit report) stating the resolution of the relevant event which is submitted within 10 days from the day after the statutory submission deadline of the annual report to the Exchange, it shall be a case falling under any of the followings based on the half-year period to which the date of such submission belongs:
 - (a) Case where the auditor's audit opinion on the individual or consolidated financial statements for the latest half year is adverse, disclaimer of opinion, or qualified due to the limitations on the scope of audit; and
 - (b) Where the semi-annual audit report has not been submitted within 10 days from the day after the statutory deadline for submission of the semi-annual report. In such cases, a corporation with a subsidiary shall include its audit report on the consolidated financial statements.
- 1-2 Failure to obtain an unqualified audit opinion for two (2) consecutive years, etc.: In the case of falling under any of the followings in the state without resolving the auditors' opinion that it is not up to standards as mentioned in subparagraph 2: (Amended on July 9, 2025)
 - (a) Where the audit opinion on the individual financial statement or the consolidated financial statement for the latest business year is adverse opinion, disclaimer of opinion or qualified opinion due to the limitation of the scope of the audit; or (Amended on July 9, 2025)

- (b) Where the annual report for the latest business year is not submitted within ten (10) days from the statutory deadline for submission. (Amended on July 9, 2025)
2. Default or suspension of transactions with banks: Case where the bills or checks issued are processed as default by the principal partner bank or suspended from trading by partner banks;
 3. Dissolution, etc.: Case where the cause for dissolution in accordance with the laws due to absorbed merger or bankruptcy declaration, etc. occurs, or where the corporation becomes a wholly owned subsidiary of other corporation as a result of an all-inclusive stock swap, etc.;
 4. Trading volume not up to standards: Case where, while being designated as an administrative issue due to trading volume not up to standards pursuant to [§53(1)8], the shortfall in trading volume pursuant to the relevant regulation continues in the following quarter;
 5. Stock distribution not up to standards: Case where a common-stock-listed corporation, which is being designated as an administrative issue due to the stock distribution not up to standards pursuant to [§53(1)9], fails to resolve the shortfall in its stock distribution pursuant to the relevant regulation within one (1) year;
 6. Impairment of entire capital: Cases where the entire capital is impaired as of the end of the latest business year. Provided that, cases where the financial statements proving the resolution of the capital impairment and the audit report (limited to cases where the audit opinion is ‘unqualified’) of the auditor (limited to the auditor who also prepared the audit report on the regular financial statements) on the financial statements are submitted by the statutory submission deadline for the annual report.
 7. Non-submission of regular reports: In the case of falling under any of the following items:
 - (a) Where, while being designated as an administrative issue due to non-submissions of the annual report, semiannual report, or quarterly report under [§53(1)6], the annual report, semi-annual report, or quarterly report pursuant to [§19(1)] of the Disclosure Regulation has not been submitted by the statutory submission deadline;
 - (b) Where the annual report, semi-annual report, or quarterly report pursuant to [§19(1)] of the Disclosure Regulation has not been submitted by the statutory submission deadline at least three (3) times over the past two (2) years; and
 - (c) Where, while being designated as an administrative issue due to a non-submission of annual report pursuant to [§53(1)6], the concerned annual report has not been submitted within 10 days from the day after the statutory deadline for submission.
 8. Restriction on transfer of stocks: Case where the transfer of stocks is restricted.

Provided that, this provision shall not apply to the cases where the transfer of stocks is restricted in accordance with the laws or regulations or the articles of incorporation, etc., and the Exchange acknowledges that such restriction does not impede the trading in the KOSDAQ Market.

9. Transfer between securities markets: Case where a delisting has been applied for the purpose of listing in the KOSPI Market;
10. Non-compliance with the backdoor listing criteria: In the case of falling under any of the followings in connection with backdoor listing. Provided that, this provision shall not apply to the case where there has been a resolution or decision to cancel the business combination between concerned companies and the implementation of that resolution or decision has been confirmed:
 - (a) Case where the backdoor listing has been completed through a merger, an all-inclusive stock swap, a material business transfer, an acquisition of material asset, an issuance of stocks, etc. without satisfying the review requirements for backdoor listing in [§35]; and
 - (b) Case where the backdoor listing has been completed without fulfilling the mandatory holding obligations following backdoor listing under [§36] and [§37].
11. Corporate governance not up to standards: In the case of falling under any of the following causes, except where such causes occur due to the shortage of the quorum for the shareholders' general meeting:
 - (a) Where a common-stock-listed corporation designated as an administrative issue pursuant to the provision of [§53(1)7(a)] falls again under the conditions specified in the relevant provision in the following business year; and
 - (b) Where a common-stock-listed corporation of which stock is designated as an administrative issue pursuant to the provision of [§53(1)7(b)] falls again under the conditions specified in the relevant provision in the following business year.
12. Failure to meet the minimum market capitalization requirement: Case where, after the designation as an administrative issue pursuant to [§53(1)5], the market capitalization of the concerned common stocks has failed to maintain market capitalization of KRW 30 billion or more for forty five (45) consecutive days during 90 days (it shall be based on business days of the concerned issue; hereinafter the same shall apply in this subparagraph). In such cases, the proviso to [§53(1)5] shall apply *mutatis mutandis*: (Amended on May 13, 2026)
 - (a) [Deleted on May 13, 2026]
 - (b) [Deleted on May 13, 2026]
13. Failure to meet the minimum share price requirement: Case of falling under any of the

following subparagraphs. In this case, the proviso to [§53(1)5] shall apply mutatis mutandis; [May 13, 2026]

- (a) Case where the closing price of the relevant common stocks does not remain at KRW 1,000 or higher for forty-five (45) consecutive days within ninety (90) days after the designation as an administrative issue pursuant to [§53(1)5-2]; [May 13, 2026]
 - (b) Case where a stock that underwent a listing change due to a reverse stock split or capital reduction within the past one (1) year from the date of designation as an administrative issue pursuant to [§53(1)5-2] has completed a listing change due to a reverse stock split or capital reduction; or [May 13, 2026]
 - (c) Case where a stock completed a listing change due to a reverse stock split or capital reduction one (1) or more times within ninety (90) days from the date of designation as an administrative issue pursuant to [§53(1)5-2] and the total ratio of the relevant reverse stock split or capital reduction exceeds 10 to 1. [May 13, 2026]
- (2) For the semi-annual period pursuant to the proviso to the part other than each item of paragraph (1)1, the auditor's audit opinion on the semi-annual report shall be included.
- (3) In cases where the cause for delisting by formality review under paragraph (1) occurs, the Exchange shall notify the relevant corporation of the following matters in writing. Provided that, this provision shall not be applicable to causes for delisting for which the filing of objection is permitted pursuant to [§55(1)]:
- 1. Reasons and grounds for delisting;
 - 2. The purport that an objection to the delisting may be filed; and
 - 3. Other matters regarding delisting and objection recognized as necessary by the Exchange.
- (4) The Exchange shall disclose the details of procedures related to the delisting by formality review of a common-stock-listed corporation as market notes.
- (5) The methods of applying the causes for delisting by formality review and other necessary matters other than those set forth in the provisions of paragraphs (1) through (4) shall be stipulated in the Enforcement Rules.

§55. Objection to Delisting by Formality Review, Etc.

- (1) In cases where a common-stock-listed corporation, which falls under the causes for delisting provided in each of the following subparagraphs, has an objection to the delisting, it may file an objection by submitting documents specified in the Enforcement Rules within 15 days (based on business days) from the date when the corporation receives the notice under

[§54(3)]: (Amended on December 7, 2022)

1. The auditor's opinion not up to standards provided in [§54(1)1];
2. The trading volume not up to standards provided in [§54(1)4];
3. The stock distribution not up to standards provided in [§54(1)5];
4. Failure in submission of regular report provided in [§54(1)7];
5. The restriction on transfer of stocks provided in [§54(1)8];
6. The non-compliance with the backdoor listing criteria provided in [§54(1)10];
7. The corporate governance not up to standards provided in [§54(1)11];
8. Case where the auditor's audit opinion on the financial statements for the latest business year is 'qualified' due to a non-compliance with the accounting standards, and where the impairment of entire capital under [§54(1)6] occurs based on the financial statements reflecting the corrected details in the audit report pursuant to the proviso to [§3(6)].

(2) In case of an objection pursuant to paragraph (1), the Exchange shall decide whether to delist or grant an improvement period, etc. through the deliberation and resolution of the Corporate Review Committee. In such cases, in the event where the objection is raised as a result of the cause for delisting due to auditor's opinion not up to standards under [§54(1)1], the Exchange shall deliberate in consideration of a possibility of change in the audit opinion on the concerned audit report or a possibility of receiving an 'unqualified' opinion on the audit report for the next business year. (Amended on December 7, 2022)

(3) In cases when the improvement period granted pursuant to paragraph (2) ends, the Exchange shall decide whether to delist or not through the deliberation and resolution of the Corporate Review Committee. Provided that, in cases falling under any of the following subparagraphs, the Exchange may decide whether to delist or not through the deliberation and resolution of the Corporate Review Committee even before the end of the improvement period:

1. Case where the improvement plan has not been implemented;
2. Case where the corporation's survival as a going concern is acknowledged as difficult as it does not own the assets necessary for business operation or its business operation has been *de facto* suspended; and
3. Case where the relevant common-stock-listed corporation has applied for delisting.

(4) Notwithstanding paragraphs (2) and (3), in cases where the Enforcement Rules stipulates that the deliberation and resolution of the Corporate Review Committee are not necessary in consideration of the grounds for objection and the details of the improvement plan, the

deliberation and resolution of the Corporate Review Committee may not take place.

(5) Notwithstanding paragraph (3), in cases where a corporation listed its common stocks which has been granted an improvement period due to the occurrence of a reason for delisting stipulated in [§54(1)1] falls under a reason for delisting stipulated in [§54(1)1-2] (excluding cases where delisting has been postponed pursuant to [§55-2(1)]), the Exchange shall delist the common stock without deliberation and resolution by the Corporate Review Committee even during the improvement period. (Amended on July 9, 2025)

(6) Any necessary matters concerning the methods and procedures for filing the objection and the deliberation and resolution of the Corporate Review Committee, etc. other than those set forth in the provisions of paragraphs (1) through (5) shall be stipulated in the Enforcement Rules. (Amended on July 9, 2025)

§55-2. Postponement of Delisting

(1) In case where a corporation that listed its common stocks corresponding to the delisting requirements stipulated in [§54(1)1-2(a)] satisfies all requirements in the following subparagraphs and is judged that the delisting of the corporation may have a significant impact on the national economy, the Exchange may, after deliberation by the Corporate Review Committee, postpone delisting for a period of up to one (1) year. In this case, the procedures under [§55] shall not be conducted in relation to the auditor's opinion not up to standards under [§54(1)1]:

1. The reason for falling under [§54(1)1-2(a)] shall be the uncertainty regarding the company's ability to continue as a going concern;
2. The corporation must have been approved for a rehabilitation plan under the Debtor Rehabilitation and Bankruptcy Act or have entered into an agreement for the implementation of a corporate improvement plan under the Corporate Restructuring Promotion Act;
3. An auditor's confirmation stating that the audit opinion can be changed after the rehabilitation plan or corporate improvement plan under subparagraph 2 is completed must have been submitted within five (5) days (it shall be based on the business day) from the date falling under the reason stipulated in [§54(1)1-2(a)]

(2) In cases where the audit opinion on the audit report for the latest fiscal year of a corporation that listed its common stocks whose delisting has been postponed pursuant to paragraph (1) is changed to unqualified opinion, the Exchange shall deem the reason for the relevant delisting to have been resolved.

(3) In addition to the provisions of paragraphs (1) and (2), the method and procedure for applying the postponement of delisting and other necessary matters shall be determined by the Enforcement Rules.

[July 9, 2025]

§56. Delisting subject to Listing Maintenance Review

(1) In the event where the Exchange recognizes that, after conducting a listing maintenance review pursuant to [§57] for a corporation that listed its common stocks that fall under any reason in the following subparagraphs, delisting is necessary after comprehensively considering the business continuity and management transparency of the corporation, the soundness of the KOSDAQ market, etc., it shall delist the relevant common stock. In this case, the specific criteria for judgment and the application of financial requirements shall be determined by the Enforcement Rules

1. Case where, while being designated as an administrative issue pursuant to [§53(1)10] due to filing an application for commencement of rehabilitation procedures, the court has dismissed the application for commencement of rehabilitation procedures, canceled the decision to commence the rehabilitation procedures, disapproved of the rehabilitation plan, terminated the rehabilitation procedures, etc. Provided that, this provision shall not apply to simplified rehabilitation procedures for which a decision to commence rehabilitation procedures pursuant to Article 293-5(2)2(a) of the Debtor Rehabilitation and Bankruptcy Act has been rendered or when the rehabilitation procedures resume pursuant to paragraph (4) of the same Article;
2. Case where it is found that material matters for investor protection have been falsely stated or omitted in the documents submitted for listing or listing maintenance review; and
3. Where it is acknowledged that the capital increase, spin-off, sale of business unit, etc. have been undertaken to circumvent the delisting by formality review or the listing maintenance review;
4. Where a suspicion of embezzlement or misappropriation of a significant scale is confirmed through disclosures, etc.;
5. Where it is confirmed that a material violation of Article 5(3) of the Act on External Audit was committed;
6. Where the main business has been suspended;
- 6-2. Where a technology growth company that has not been listed for five (5) years adds or changes its business objectives through an amendment to its articles of incorporation. [July 1, 2026]
7. Where the causes for delisting by formality review under the main sentence of [§54(1)6] have been resolved by submitting the auditor's audit report pursuant to the proviso to [§54(1)6]. Provided that, this provision shall not apply to a corporation that has decided to commence rehabilitation procedures;

8. Where a significant amount of impairment loss from receivables other than account receivables is confirmed through disclosures, etc.;
9. Where a common-stock-listed corporation of which stock is designated as an administrative issue (excluding cases designated as administrative issues pursuant to [§53(1)7 through 9] or an investment attention issue falls under any of the followings:
 - (a) Where a change in management rights has been confirmed through disclosures, etc. Provided that, this provision shall not apply to a case where the change in the management rights has taken place as a result of issuance of new stocks in relation to the paid-in capital increase and the conversion of debts to equity investment for the purpose of normalizing business conditions; and
 - (b) Where it is confirmed through disclosures, etc. that a decision on the advance payment, suspense payment, cash loan, stock loan (referring to the stocks, bills and transferable certificates of deposit under each subparagraph of Article 4(2) of the Act), or investment (referring to the acquisitions of the stocks, etc. and the capital contribution certificates issued by another company) are made for the persons who acquired new shares issued following the paid-in capital increase through a third-party allotment by the concerned corporation within six (6) months from the concerned acquisition date of the new shares;
10. Where a common-stock-listed corporation undergoes a spin-off or a merger after spin-off under Article 530-2 of the Commercial Act and falls under any of the followings:
 - (a) Where a company that will survive after spin-off or merger after spin-off fails to meet any of the following requirements with respect to the business segment that is expected to survive as of the date of resolution for the concerned spin-off or merger after spin-off. Provided that, this provision shall not apply to the case where the Exchange acknowledges as necessary, such as the spin-off for the conversion into a holding company:
 - (i) Equity capital shall be at least KRW 3 billion (KRW 1.5 billion in the case of venture companies);
 - (ii) There shall be no capital impairment;
 - (iii) The requirements under [§43(1)3] shall be met. In such cases, “the business to be transferred” shall be construed as “the business to be continued”; and
 - (iv) The review opinion of the auditor in the review report on the financial details pursuant to a) through c) shall be unqualified.
 - (b) Where the board of directors of a common-stock-listed corporation makes decision on spin-off within three (3) years after a merger (excluding small-scale mergers under Article 527-3 of the Commercial Act) with an unlisted corporation or a

KONEX-listed corporation and the main business of the company that will survive after the spin-off is the business of the unlisted corporation or the KONEX-listed corporation at the time of the merger. Provided that, this provision shall not apply to the case where the common-stock-listed corporation underwent the backdoor listing review at the time of merger.

11. Where it is confirmed through disclosures, etc., that a company with unrealized profit recorded a significant decline in sales during the period in which the company is exempted from the designation as an administrative issue due to its sales not up to standards or loss from continuing operations before tax pursuant to [§53(1)1(a)] or [§53(1)2(a)];
12. Where penalty points are imposed pursuant to the Disclosure Regulation and the total demerit points, including those imposed in accordance with the Disclosure Regulation, accumulated within the recent one (1) year are ten (10) or above or where the motive for the violation is intentional and the severity of the violation constitutes a material violation; (Amended on May 13, 2026)
13. Where a common-stock-listed corporation that falls under the delisting criteria by formality review due to the audit opinion not up to standards under [§54(1)1] resolves the cause for delisting due to the concerned audit opinion by changing the audit opinion on the concerned audit report through filing an objection under [§55(1)] or by receiving the audit opinion of ‘unqualified’ in the audit report for the business year. In this case, it shall include cases where the reason for delisting is deemed to have been resolved pursuant to [§55-2(2)];
14. Where the auditor’s audit opinion on the individual or consolidated financial statements for the latest business year of a common-stock-listed corporation that was designated as an investment attention issue due to the auditor’s opinion of ‘qualified’ because of uncertainties over its ability to survive as a going concern pursuant to [§52(1)2(d)] is ‘qualified’ due to uncertainties over its ability to survive as a going concern again;
15. Where the sales amount is less than KRW 10 billion in the latest business year as well while being designated as an administrative issue due to the sales amount not up to standards pursuant to [§53(1)1]. Provided that this subparagraph shall not apply to cases falling under [§53(1)1(c)];
16. Where loss from continuing operations before corporate tax in the latest business year as well, which amounts over 50/100 of the equity capital as of the end of the latest business year and KRW 1 billion or more, occurs, while being designated as an administrative issue due to incurrence of loss from continuing operations before corporate tax pursuant to [§53(1)2]. In such cases, the amount specified in the Enforcement Rules shall be excluded from the loss from continuing operations before corporate tax;
17. Where the rate of capital impairment as of the end of the latest business year is 50/100

or higher while being designated as an administrative issue due to capital impairment pursuant to [§53(1)3];

17-2. Where the entire capital stock is in a state of impairment as of the end of the latest half-year. [May 13, 2026]

18. Where the equity capital as of the end of the latest business year is less than KRW 1 billion while being designated as an administrative issue due to equity capital not up to standards pursuant to [§53(1)4]; or,

19. Where the Exchange recognizes that it is necessary to delist for the protection of investors due to any cause equivalent to causes for listing maintenance review under subparagraph 1 through subparagraph 18 and causes for delisting by formality review under [§54].

(2) The application methods of the causes for listing maintenance review and other necessary matters shall be stipulated in the Enforcement Rules.

(Wholly amended on July 9, 2025)

§57. Procedures, Etc. for Listing Maintenance Review

(1) The Exchange shall decide whether a common-stock-listed corporation is subject to listing maintenance review within 15 days (based on business days; hereinafter the same shall apply in this paragraph) from the date on which it confirmed that the relevant common-stock-listed corporation falls under any of subparagraphs in [§56(1)]. Provided that, in cases where further investigation is required to determine whether the corporation is subject to listing maintenance review, the deadline may be extended by up to 15 days. (Amended on July 9, 2025)

(2) In cases when the Exchange makes a decision on whether a common-stock-listed corporation is subject to the listing maintenance review pursuant to paragraph (1), it shall notify the concerned corporation of the reasons and grounds for such decision, the schedule and main procedures for the listing maintenance review without delay.

(3) In cases where the Exchange decides that a common-stock-listed corporation is subject to the listing maintenance review pursuant to paragraph (1), it shall decide whether to delist, or whether to grant a grace period for improvement through the deliberation and resolution of the Corporate Review Committee. Provided that, in cases where the Chairperson of the Corporate Review Committee acknowledges that the deliberation and resolution of the Market Committee is necessary, the decision on whether to delist, or whether to grant a grace period for improvement shall be made through the deliberation and resolution of the Market Committee.

(4) In cases where a grace period for improvement granted pursuant to the main sentence of paragraph (3) has expired, the Exchange shall decide whether to delist through the deliberation

and resolution of the Corporate Review Committee. In such cases, the Corporate Review Committee shall take into account the results of implementation of the improvement plan, etc. when it conducts the deliberation and resolution on delisting.

(5) [Deleted on July 9, 2025]

(6) In cases where a grace period for improvement granted pursuant to the proviso to paragraph (3) has expired, the Exchange shall decide whether to delist through the deliberation and resolution of the Market Committee. In such cases, the Corporate Review Committee shall take into account the results of implementation of the improvement plan, etc. when it conducts the deliberation and resolution. (Amended on July 9, 2025)

(7) Notwithstanding paragraphs (4) and (6), in cases of falling under any of the following subparagraphs, the Exchange may decide to delist before the end of a grace period for improvement subject to the deliberation and resolution of the Corporate Review Committee or the Market Committee:

1. Where the improvement plan has not been implemented;
2. Where the corporation's survival as a going concern is acknowledged as difficult as it does not own the assets necessary for business operation or its business operation has been de facto suspended; and
3. Where the relevant common-stock-listed corporation requests for it.

(8) In cases where a decision on whether to delist or whether to grant a grace period for improvement is made through the deliberation and resolution of the Corporate Review Committee or the Market Committee pursuant to the proviso to paragraph (3), the Exchange shall notify the concerned common-stock-listed corporation of such fact in writing. In such cases, when a decision for delisting has been made, the following matters shall be included in the notification:

1. The reasons and grounds for the delisting;
2. The purport that an objection to the delisting may be filed; and
3. Other matters recognized as necessary by the Exchange.

(9) The Exchange shall disclose the subsequent detailed procedures related to the listing maintenance review of common-stock-listed corporations as market notes.

(10) In cases where it is recognized as necessary for listing maintenance review, the Exchange may request the concerned common-stock-listed corporation to submit the relevant materials, present opinion statements, or conduct an on-site investigation.

(11) In cases where a common-stock-listed corporation is determined as the subject of listing maintenance review pursuant to paragraph (1), the Exchange may require shareholders, etc. of

the concerned common-stock-listed corporation to mandatorily hold their shares for a period not exceeding three (3) years from the date on which the trading suspension is lifted when it acknowledges such mandatory holding is necessary for management stability and investor protection. In such cases, a person subject to mandatory holding shall submit to the Exchange documents specified in the Enforcement Rules.

(12) Other than those matters set forth in provisions of paragraphs (1) through (11), matters concerning the criteria for listing maintenance review and the composition and operation of the Corporate Review Committee shall be stipulated in the Enforcement Rules and matters required with respect to the detailed review methods and procedures, etc. shall be separately provided for by the Exchange.

§58. Objection to Delisting subject to Listing Maintenance Review

(1) In cases where a common-stock-listed corporation whose delisting has been decided by the listing maintenance review has an objection to the delisting, it may file an objection by submitting documents stipulated in the Enforcement Rules within 15 days (based on business days) from the date on which it received the notification mentioned in the latter part of [§57(8)].

(2) In case of an objection pursuant to paragraph (1), the Exchange shall decide whether to delist or whether to grant a grace period for improvement through the deliberation and resolution of the Market Committee.

(3) In cases when an improvement period granted pursuant to paragraph (2) expires, the Exchange shall decide whether to delist through the deliberation and resolution of the Market Committee. In such cases, the Market Committee shall take into account the results of implementation of the improvement plan, etc. when it conducts the deliberation and resolution.

(4) Notwithstanding paragraph (3), in cases of falling under any of the following subparagraphs, the Exchange may decide whether to delist before the end of a grace period for improvement subject to the deliberation and resolution of the Market Committee:

1. Where the improvement plan has not been implemented;
2. Where the corporation's survival as a going concern is acknowledged as difficult as it does not own the assets necessary for business operation or its business operation has been *de facto* suspended; and
3. Where the relevant common-stock-listed corporation requests for it

(5) Any matters necessary regarding the objection to delisting by listing maintenance review the deliberation and resolution of the Market Committee other than those set forth in the provisions of paragraphs (1) through (4) shall be stipulated in the Enforcement Rules.

§58-2. Granting of Additional Improvement Period

Notwithstanding [§57(4) and (6)] and [§58(3)], the Corporate Review Committee or Market Committee may grant an additional improvement period as stipulated in the Enforcement Rules. In such cases, the deliberation procedures following the expiration of the granted additional improvement period shall be governed as stipulated in each relevant provision.

[July 9, 2025]

PART III. LISTING AND LISTING MANAGEMENT OF OTHER SECURITIES

CHAPTER I. COMMON PROVISIONS

§59. Applicable Standards for Other Securities

In cases where the Exchange acknowledges as necessary, the provisions on common stocks may apply *mutatis mutandis* to foreign stocks, etc., stocks of special purpose acquisition companies, different classes of shares (including foreign different classes of shares), subscription warrants and subscription right certificates unless otherwise specified in this Part.

CHAPTER II. FOREIGN STOCKS, ETC.

§60. Preliminary Listing Review, etc. of Foreign Stocks, Etc.

(1) Applicants for initial listing of foreign stocks, etc. shall discuss the listing procedure and timing with the Exchange before applying for a preliminary listing review.

(2) The provisions of [§25] concerning the application for preliminary listing review of common stocks and [§27] concerning the application for initial listing shall apply *mutatis mutandis* to the application for preliminary listing review and application for initial listing with respect to the initial listing of foreign stocks, etc.

(3) In cases of calculating the number of stocks with respect to DRs of foreign stocks in accordance with this Regulation, it shall be based on the number of the DRs of foreign stocks, unless otherwise provided in this Regulation.

(4) The listing of offshore holding company under [§2(1)29(a)] shall be limited to cases where a major foreign subsidiary of a foreign holding company is established in the location of an eligible foreign securities market.

§61. Mandatory Holding in Cases of Initial Listing of Foreign Stocks, Etc.

(1) In the case of initial listing of foreign stocks, etc., the stocks, etc. of an applicant for initial listing shall be held mandatorily in accordance with the following subparagraphs. Provided that, the mandatory holding period may be extended by a maximum of two (2) years in addition to the period stipulated in subparagraphs 1 through 6 in consultation with the person subject to the mandatory holding in cases where the person subject to mandatory holding makes a request in consultation with the listing sponsor or the Exchange acknowledges that it is necessary for management transparency, management stability and investor protection: (Amended on March 16, 2022)

1. The largest shareholder, etc. (the officers of a listing applicant shall include a person falling under each subparagraph of Article 401-2(1) of the Commercial Act; hereinafter the same shall apply in this Article) of the listing applicant: One (1) year from the date of listing. Provided that, specially related persons may be excluded as stipulated in the Enforcement Rules in consideration of the purpose of stock holding, the relationship with the largest shareholder, and the possibility of a change in management rights;
2. A person who has acquired stocks, etc. held by the largest shareholder, etc. of the listing applicant within one (1) year prior to the date of application for preliminary listing review: One (1) year from the date of listing, except as otherwise stipulated in the Enforcement Rules;
3. A person who has acquired stocks, etc. issued by the listing applicant through a third-party allotment within one (1) year prior to the date of application for preliminary listing review: One (1) year from the date of listing, except as otherwise stipulated in the Enforcement Rules;
4. Stocks, etc. acquired by venture capital or professional investors through a method other than a public offering or sale whose investment period (based on the date of application for preliminary listing review) is less than two (2) year (limited to stocks, etc. up to the amount equivalent to 10/100 of the capital of the listing applicant as of the date of application for listing among the stocks, etc. acquired by venture capital or professional investors): One (1) month from the date of listing, except as otherwise stipulated in the Enforcement Rules;
5. Stocks, etc. acquired by listing sponsors (including co-lead managers pursuant to Article 6 of the Regulations on Securities Underwriting Business, etc.) whose investment period (based on the date of application for preliminary listing review) is less than six (6) months: Six (6) months from the date of listing. Provided that, in cases

where the disparate ratio between the acquisition price and the public offering price calculated by the method specified in the Enforcement Rules is less than 50/100, it shall be one (1) month from the date of listing;

6. Stocks acquired by the largest shareholder, etc. of the listing applicant through exercises of stock options after the date of listing: One (1) year from the date of listing; and
7. Stocks, etc. held by other shareholders recognized as necessary to be subject to mandatory holding by the Exchange for public interests and investor protection, etc.: The period not exceeding two (2) years from the date of listing as determined in consultation with the Exchange.

(2) The provisions of [§26(2)] and [§26(3)] concerning the mandatory holding for initial listing of common stocks shall apply *mutatis mutandis* to the mandatory holding for initial listing of foreign stocks, etc.

§62. Review Requirements for Initial Listing of Foreign Stocks, Etc.

(1) An applicant for initial listing of foreign stocks, etc. shall meet the following review requirements:

1. Stock distribution: The applicant shall meet any of the following requirements:
 - (a) The number of minority shareholders (based on the stocks publicly offered or sold in Korea; hereinafter the same shall apply in this item) as of the date of application for listing is 500 or more and any of the followings shall be met:
 - (i) Case where as of the date of application for preliminary listing review, the total number of stocks and the total number of common stocks (referring to stocks issued by a foreign company pursuant to the laws and regulations of its home country and of which rights are equivalent to the rights of common stocks; hereinafter the same shall apply in this Article) held by minority shareholders (excluding the cases specified in the Enforcement Rules; hereinafter the same shall apply in this item) are less than 25/100 of the total number of stocks issued and the total number of common stocks, respectively: The total number of stocks and the total number of common stocks publicly offered (excluding the case where is deemed as a public offering pursuant to Article 11(3) of the Enforcement Decree of the Act; hereinafter the same shall apply in this item) or sold after the preliminary listing review to the date of application for listing shall be at least 10/100 of the total number of issued stocks and the total number of common stocks issued, respectively, as of the date of application for listing. Provided that, it shall be limited to the cases where the total number of stocks and the total number of common stocks held by minority shareholders are at least 25/100 of the total number of stocks issued and the total number of

common stocks issued, respectively, as of the date of application for listing.

- (ii) Case where as of the date of application for preliminary listing review, the total number of stocks and the total number of common stocks held by minority shareholders are at least 25/100 of the total number of stocks issued and the total number of common stocks, respectively: The total number of stocks and the total number of common stocks publicly offered or sold after the preliminary listing review to the date of application for listing shall be at least 5/100 of the total number of stocks issued and the total number of common stocks, respectively, as of the date of application for listing. Provided that, it shall be limited to the cases where the aggregate value of the public offering or sale price is equal to or greater than the amount stipulated in Article 120(1)1 of the Enforcement Decree of the Act.

(b) The number of minority shareholders (based on the stocks publicly offered or sold in Korea) as of the date of application for listing is 500 or more, and the total number of stocks and the total number of common stocks publicly offered or sold after the preliminary listing review to the date of application for listing shall be at least 10/100 of the total number of stocks issued and the total number of common stocks, respectively, as of the date of application for listing, and any of the following requirements shall be satisfied based on equity capital or the base market capitalization of common stocks:

- (i) The applicant shall meet any of the following requirements based on equity capital as of the date of application for preliminary listing review:
 - Ⓐ For a corporation of which equity capital is KRW 50 billion or more, but less than KRW 100 billion: Not less than one (1) million shares;
 - Ⓑ For a corporation of which equity capital is KRW 100 billion or more, but less than KRW 250 billion: Not less than two (2) million shares; and
 - Ⓒ For a corporation of which equity capital is KRW 250 billion or more: Not less than five (5) million shares.
- (ii) The applicant shall meet any of the following requirements based on base market capitalization of common stocks:
 - Ⓐ For a corporation of which base market capitalization is KRW 100 billion or more, but less than KRW 200 billion: Not less than one (1) million shares;
 - Ⓑ For a corporation of which base market capitalization is KRW 200 billion or more, but less than KRW 500 billion: Not less than two (2) million shares; and
 - Ⓒ For a corporation of which base market capitalization is KRW 500 billion or more: Not less than five (5) million shares.

(c) In case of a foreign company listed on a foreign securities market, the number of minority shareholders (based on the stocks publicly offered or sold in Korea) shall be 500 or more as of the date of application for preliminary listing review, and the total number of stocks and the total number of common stocks offered or sold publicly in Korea shall be 300,000 or more, respectively.

(d) As of the date of application for listing, the number of minority shareholder is 500 or more, and the total number of stocks and the total number of common stocks publicly offered or sold after the preliminary listing review to the date of application for listing shall be at least 25/100 of the total number of stocks issued and the total number of common stocks, respectively; and

(e) In the case of a corporation that conducts public offerings simultaneously in Korea and abroad, the total number of stocks and the total number of common stocks issued or sold through such simultaneous public offerings in Korea and abroad shall be at least 20/100 of the total number of stocks issued and the total number of common stocks, respectively, as of the application date for listing, and the total number of stocks and the total number of common stocks publicly offered or sold in Korea shall be at least 300,000 shares, respectively. Provided that, it shall be limited to the cases where the number of minority shareholders (based on the stocks publicly offered or sold in Korea) is at least 500 as of the date of application for listing.

2. Business performance and market valuation, etc.: The requirements under [§28(1)2] shall be satisfied. Provided that, the requirements in [§28(1)2(b)] shall apply only to foreign companies (including foreign subsidiaries in the case of a foreign holding company) established in the location of an eligible foreign securities market (excluding the Stock Exchange of Hong Kong Ltd. and the Singapore Exchange Securities Trading Ltd.)
3. Audit opinion: The auditor's audit opinion (a corporation with a subsidiary shall include the audit opinion on its consolidated financial statements; hereinafter the same shall apply in this subparagraph) on the financial statements of the latest business year shall be 'unqualified'. Provided that, in cases where a foreign corporation prepares its financial statements in accordance with the international accounting standards or US GAAP, it shall be based on the audit opinion on the consolidated financial statements.
4. Restrictions on the transfer of stocks: The requirement under [§28(1)4] shall be satisfied.
5. Standing auditor and outside director: The requirements under [§28(1)6] and [§28(1)7] shall be satisfied. Provided that, in cases where a listing applicant listed stocks on an eligible securities market and three (3) or more years have elapsed since the date of listing, the Exchange may take into account the standards of the home country and the concerned overseas securities market when it reviews such requirements.
6. Qualitative review requirements: The qualitative review requirements under [§29] shall be satisfied. In such cases, the Exchange may take into account the laws of home

country, languages used, or geographical conditions of the foreign company when it reviews such requirements

(2) In applying the requirements of paragraph (1) to a foreign holding company with the latest business year of less than one (1) year, the application methods in each of the following subparagraphs shall be applied:

1. Business performance and market valuation, etc. under paragraph (1)2: Income before tax from continuing operations, equity capital and sales amount shall be calculated by the following methods:
 - (a) Income before tax from continuing operations: The sum of the amounts obtained by multiplying the income/loss before tax from continuing operations of foreign subsidiaries in the latest business year by the ownership ratio of a foreign holding company in the subsidiaries at the time of establishment or conversion of the foreign holding company.
 - (b) Equity capital: The amount calculated based on the statement of financial position at the time of establishment or conversion of a foreign holding company.
 - (c) Sales: Total sales of foreign subsidiaries in the latest business year.
2. Audit opinion under paragraph (1)3: The auditor's audit opinion on the financial statements of the foreign subsidiary in the latest business year (including the auditor's opinion on the consolidated financial statements of a corporation with subsidiaries) shall also be 'unqualified'.

§63. Special Cases Concerning Initial Listing of Foreign Stocks, Etc.

(1) In cases where an applicant for initial listing of foreign stocks, etc. meets all of the following subparagraphs, and its technological prowess and growth potential are recognized in accordance with the Enforcement Rules, the concerned listing applicant may apply for the preliminary listing review as an innovative technology company. In such cases, the requirements for business performance and market valuation, etc. under [§28(1)2] shall be replaced with the requirements in each subparagraph of [§30(3)]: (Amended on December 27, 2023)

1. The foreign company (including a foreign subsidiary in the case of a foreign holding company) shall be established in the location of an eligible foreign securities market; and
2. The listing sponsor of the foreign company shall meet the requirements specified in the Enforcement Rules.

(2) In cases where the foreign company falls under any of the following subparagraphs, the

qualitative review requirements under [§62(1)6] may not apply:

1. Foreign companies that meet all of the following requirements:
 - (a) As of the date of application for preliminary listing review, at least five (5) years shall have passed since the listing on an eligible foreign securities market;
 - (b) The base market capitalization of the foreign stocks, etc. listed on an eligible foreign securities market shall be at least KRW 2 trillion;
 - (c) Sales in the latest business year shall be at least KRW 2 trillion, and the average sales in the recent three (3) business years shall be at least KRW 1 trillion;
 - (d) The profit in the latest business year shall be at least KRW 300 billion, and the sum of the profits for the recent three (3) business years shall be at least KRW 700 billion. In such cases, the profit amount shall be based on the lowest among the operating profit, the profit before tax from continuing operations and the net profit of each business year; and
 - (e) No disciplinary actions, etc. have been imposed by an overseas stock market on which the stocks are listed, the regulator or the exchange of home country over the past three (3) years.
2. As of the date of application for preliminary listing review, foreign companies that have been listed on the KOSPI Market for two (2) year or more, except where the relevant stocks have been designated as administrative issues as of the date of application for preliminary listing review.

§64. Backdoor Listing of Foreign Stocks, Etc.

With respect to the backdoor listing of a foreign company listed on the KOSDAQ Market, the provisions under [§33] through [§38] concerning the backdoor listing of common stocks shall apply *mutatis mutandis*. In such cases, the review requirements for backdoor listing under [§35] shall be subject to the application methods of the review requirements for initial listing of foreign stocks, etc. specified in [§62].

§65. Listing Change, Supplementary Listing, Etc. of Foreign Stocks, Etc.

(1) With respect to foreign stocks, etc., the provisions in [§44(1)] and [§44(2)] regarding the listing change and supplementary listing of common stocks, [§45] regarding shelf listing, [§46] regarding deferment of listing, and [§48] through [§51] regarding mandatory holding shall apply *mutatis mutandis*.

(2) Notwithstanding paragraph (1), in cases where a corporation that has listed DRs of foreign stocks converts the DRs of foreign stocks into foreign stocks or vice versa, which results in changes of the number of the DRs of foreign stocks, it shall be excluded from the subject of application for listing change.

§66. Designation of Foreign Stocks, Etc. as Investment Attention Issues

(1) With respect to the designation of a foreign company listed on the KOSDAQ Market as an investment attention issue, the provisions under [§52] regarding the designation as investment attention issues of common stocks shall apply *mutatis mutandis*. In such cases, the application shall be based on each of the following subparagraphs: (Amended on December 7, 2022)

1. The reason under [§52(1)2(a)] shall apply on the basis of internal accounting management system pursuant to [§19(3)];
2. The reason under [§52(1)2(h)] shall not apply to the case of having issued a non-par value stocks; and,
3. The reason under [§52(1)2(j)] shall apply to those cases where the review or audit opinion is adverse, disclaimer of opinion, or qualified due to limitation placed on the scope of audit, including other cases equivalent to them. In such cases, for foreign corporations which applied the international accounting standards or the US GAAP, it shall be based on the review or audit opinion on the consolidated financial statements.

(2) In addition to paragraph (1), in cases where it is confirmed through disclosures, etc. that a foreign company listed on the KOSDAQ Market has appointed, dismissed, or changed its auditor in violation of [§15(2)] through [§15(7)], the concerned foreign company listed on the KOSDAQ Market shall be designated as an investment attention issue.

§67. Designation of Foreign Stocks, Etc. as Administrative Issues

(1) With respect to the designation of foreign stocks, etc. as administrative issues, the provisions under [§53] regarding the designation as an administrative issue of common stocks shall apply *mutatis mutandis*. In such cases, the application methods shall be in accordance with each of the following subparagraphs: (Amended on December 7, 2022)

1. Capital impairment, etc. under [§53(1)3]: It shall not apply in cases where it issued non-par value stocks;
2. Market capitalization not up to standards under [§53(1)5]: In cases where DRs of foreign stocks have been listed, it shall be calculated based on the number of listed DRs of foreign stocks;

3. Trading volume not up to standards under [§53(1)8]: It shall apply in accordance with each of the followings:
 - (a) In cases where DRs of foreign stocks have been listed, it shall be calculated based on the number of listed DRs of foreign stocks; and
 - (b) The number of minority shareholders, the number of stocks held by minority shareholders and the number of floating stocks shall be calculated based on the number of stocks deposited in Korea.
 4. Stock distribution not up to standards under [§53(1)9]: It shall apply in accordance with each of the followings:
 - (a) In cases where DRs of foreign stocks have been listed, it shall be calculated based on the number of listed DRs of foreign stocks;
 - (b) The number of minority shareholders, the number of stocks held by minority shareholders and the number of floating stocks shall be calculated based on the number of stocks deposited in Korea; and
 - (c) In case of a foreign company listed on the KOSDAQ Market, which is listed on a foreign securities market, the requirement under [§53(1)9(b)] shall not apply.
 5. Application for commencement of rehabilitation procedures under [§53(1)10] and application for bankruptcy under [§53(1)11]: It shall also apply where an application for any procedures equivalent to the rehabilitation or bankruptcy procedures in accordance with the laws and regulations of the home country has been filed.
- (2) In addition to paragraph (1), in cases where a foreign company listed on the KOSDAQ Market falls under any of the following subparagraphs, the Exchange shall designate the concerned foreign stocks, etc. as an administrative issue. In such cases, matters necessary for the designation as an administrative issue and the release therefrom shall be stipulated in the Enforcement Rules:
1. Where it is confirmed through the annual report or semi-annual report that the accounting standards have been changed in violation of [§3(4)]; and
 2. Where it is confirmed through the annual report or semi-annual report that an auditor has been appointed in violation of [§15(3)], [§15(4)] and [§15(6)].
- (3) In cases of applying the provisions under [§53(4)] concerning the objection to the designation as an administrative issue *mutatis mutandis* to foreign stocks, etc., the deadlines for the objection, etc. may be set differently if acknowledged as necessary by the Exchange.

§68. Delisting of Foreign Stocks, Etc.

(1) With respect to delisting of foreign stocks, etc., the provisions under [§54] through [§58] concerning the delisting by formality review, the objection to delisting by formality review, the delisting by listing maintenance review, the procedures etc. for listing maintenance review, and the objection to delisting according to the result of listing maintenance review, etc. of common stocks shall apply *mutatis mutandis*. In such cases, the application methods shall be in accordance with each of the following subparagraphs: (Amended on December 7, 2022)

1. Auditor's opinion not up to standards under [§54(1)1 and 1-2(a)]: Cases where the audit opinion is adverse, disclaimer of opinion, or qualified due to the limitations placed on the scope of audit, and any other cases equivalent thereto. In such cases, for foreign companies that applies the international accounting standards or US GAAP, it shall be based on the audit opinion on the consolidated financial statements; (Amended on July 9, 2025)
2. Dissolution, etc. under [§54(1)3]: It shall apply in accordance with the laws and regulations of the home country;
3. Market capitalization not up to standards under [§54(1)12]: In cases where DRs of foreign stocks have been listed, it shall be calculated based on the number of listed DRs of foreign stocks;
4. Dismissal, etc. of the application for commencement of rehabilitation procedures under [§56(1)1]: It shall also apply when a cause corresponding to [§56(1)1] occurs under the laws and regulations of the home country;
5. Material violation of the accounting standards under [§56(1)5]: It shall also apply to cases where any violation of the laws and regulations of the home country equivalent to a material violation of Article 5(3) of the Act on External Audit has been confirmed; (Amended on July 9, 2025)
6. Causes under [§56(1)6 through 18]: Matters concerning financial details, financial statements and review and audit opinions of a foreign company that applies the international accounting standards or US GAAP shall be applied based on the consolidated financial statements and the review and audit opinions on the consolidated financial statements; (Amended on July 9, 2025)
7. Capital impairment under [§54(1)6] and [§56(1)17]: It shall not apply to foreign corporations that issued non-par value stocks. (Amended on July 9, 2025)

(2) In addition to paragraph (1), in cases where a foreign company listed on the KOSDAQ Market falls under any of the following subparagraphs, the Exchange shall delist the concerned foreign stocks, etc.:

1. Case where the number of listed DRs of foreign stocks is less than 100,000;

2. Case where a KOSDAQ-listed corporation that has listed foreign stocks, etc. on an overseas securities market falls under the conditions for delisting of the relevant overseas securities market. Provided that, this provision shall not be applicable where the Exchange acknowledges that it is necessary to maintain the listing of foreign stocks, etc. in view of the impacts on domestic investors;
 3. Case where, while being designated as an administrative issue due to a violation of the restriction on the change of accounting standards pursuant to [§67(2)1], it is confirmed through the annual report or the semi-annual report for the first business year or semi-annual period that comes after the date of designation as an administrative issue that the concerned foreign company has not changed its accounting standards to meet the standards under [§3(4)]; and
 4. Case where, while being designated as an administrative issue due to a violation of the appointment of an auditor pursuant to [§67(2)2], it is confirmed through the annual report or the semi-annual report for the first business year or semi-annual period that comes after the date of designation as an administrative issue that an auditor specified in paragraphs (3), (4) and (6) of [§15] has not been appointed.
- (3) Notwithstanding paragraph (1), the deadline for filing an objection to delisting, etc. may be determined differently in cases where acknowledged as necessary by the Exchange.

CHAPTER III. STOCKS OF SPECIAL PURPOSE ACQUISITION COMPANIES

Section I . Listing and Management of Listing

§69. Application for Preliminary Listing Review, Etc. of Stocks of Special Purpose Acquisition Companies

- (1) With respect to the applications for preliminary listing review and initial listing of stocks of special purpose acquisition companies, the provisions under [§25] regarding the application for preliminary listing review of common stocks and the provisions under [§27] concerning the application for initial listing of common stocks shall apply *mutatis mutandis*.
- (2) Shareholders, etc. of special purpose acquisition companies as of the date of preliminary listing review shall mandatorily hold the stocks, etc. of the special purpose acquisition companies from the date of initial listing until six (6) months following the listing after merger. In such cases, the stocks, etc. shall include the stocks, etc. issued in connection with the listing

after merger pursuant to [§2(1)1(f)(ii)] by the counterparty of the merger.

(3) Notwithstanding paragraph (2), in cases where it is recognized as necessary for management transparency, management stability and investor protection, etc., the Exchange may, in consultation with the persons subject to mandatory holding, extend the period of mandatory holding by a maximum of two (2) years in addition to the mandatory holding period specified in paragraph (2).

§70. Review Requirements for Initial Listing of Stocks of Special Purpose Acquisition Companies

(1) An applicant for initial listing of stocks of a special purpose acquisition company shall satisfy all of the following formality review requirements:

1. Size of corporation: As of the application date for initial listing, any of the following requirements shall be met:
 - (a) Equity capital shall be at least KRW 3 billion; and
 - (b) The base market capitalization shall be at least KRW 20 billion.
2. Stock distribution: As of the application date for initial listing, the stock distribution requirements under items(a), (b) and (d) of [§28(1)1] shall be satisfied. In such cases, “500” in the same subparagraph shall be construed as “200”, respectively;
3. Audit opinion: The auditor’s audit opinion on the financial statements as of the date of registration of establishment shall be ‘unqualified’. Provided that, in cases where an audit report on the financial statements of the latest quarter, half year or business year has been submitted, the concerned audit opinion shall be ‘unqualified’;
4. Restriction on the transfer of stocks: The requirement for the restriction on the transfer of stocks under [§28(1)4] shall be met;
5. Face value: The requirement for face value under [§28(1)5] shall be satisfied;
6. Appointment of standing auditor and outside director: The requirement for appointment of a standing auditor under [§28(1)6] and the requirement for appointment of an outside director under [§28(1)7] shall be met;
7. Qualification of officers: Officers shall satisfy the requirements under Article 5 of the Act on the Governance of Financial Companies;
8. The issuance amount of stocks, etc. held by a financial investment entity: In accordance with Article 6(4)14(c) of the Enforcement Decree of the Act, the issuance amount of stocks, etc. held by a financial investment company as of the application date for initial

listing shall be 5/100 or more of the total amount of stocks, etc. issued by the special purpose acquisition company;

9. Articles of incorporation: Matters in each of the followings shall be provided for in the articles of incorporation as stipulated in the Enforcement Rules:

- (a) The sole business purpose shall be to merge with another company (excluding special purpose acquisition companies);
- (b) At least 90/100 of the funds raised by issuing stocks (excluding the stocks issued before the initial public offering) shall be deposited or entrusted in the deposit institution, etc. (referring to an institution designated and announced by the Financial Services Commission pursuant to Article 1-4-2(2) of the Regulations on Financial Investment Business; hereinafter the same shall apply) until the day after the payment date for subscription of stocks (based on business days);
- (c) A person who acquired the stocks under [§2(1)10] [excluding item (e) and bond certificates that can be exchanged into or redeemed for stocks under item (e)] before the initial public offering of stocks shall be excluded from the payment of the funds deposited or entrusted in the deposit institutions. Provided that, this provision shall apply only to the quantity of stocks acquired before the initial public offering of stocks; and
- (d) In case of falling under any of the followings, a special purpose acquisition company shall be dissolved and the funds deposited or entrusted in the deposit institutions, etc. shall be paid back to the shareholders [excluding those shareholders who shall be excluded from the payment pursuant to item (c)] based on their stockholding ratio:
 - (i) Case where it has not been listed on the stock market within the period specified in Paragraph (4)14(e) of Article 6 of the Enforcement Decree of the Act;
 - (ii) Case where the registration of merger has not been completed within the period specified in Paragraph (4)14(f) of Article 6 of the Enforcement Decree of the Act; and
 - (iii) Case where the stocks of the special purpose acquisition company concerned are delisted. Provided that, the case where the stocks of the special purpose acquisition company are delisted due to listing after merger pursuant to [§2(1)1(f)(ii)] shall be excluded.
- (e) Issuance of debt securities (limited to issuance after the initial public offering of stocks), borrowing, provision of debt guarantee and provision of collateral shall be prohibited;
- (f) Other matters separately specified by the Exchange for public interests and investor protection.

10. An agreement shall be entered into among shareholders, etc. of the special purpose acquisition company as of the date of application for preliminary listing review on the matters stipulated in the Enforcement Rules such as restriction on exercise of voting rights, restriction on exercise of appraisal rights, liability of damages, etc.

(2) With respect to the qualitative review for stocks of a special purpose acquisition company, the provision of [§29] concerning the qualitative review requirements for initial listing of common stocks shall apply *mutatis mutandis*. Provided that, the requirement under [§29(1)1] shall not apply *mutatis mutandis*.

§71. Listing Change, Supplementary Listing, etc. of Stocks of Special Purpose Acquisition Companies

(1) With respect to listing change and supplementary listing of stocks of special purpose acquisition companies, the provisions under [§44] concerning the listing change and supplementary listing of common stocks, the provisions under [§45] concerning the shelf-listing of common stocks, and the provisions in [§46] concerning deferment of listing shall apply *mutatis mutandis*.

(2) With respect to mandatory holding of stocks of special purpose acquisition companies, the provisions under [§50] regarding the mandatory holding in the case of capital increase by way of third-party allotment and the provisions in [§51] concerning the mandatory holding in the case of any change of the largest shareholder shall apply *mutatis mutandis*. In such cases, the mandatory holding period under [§50(1)1] shall be from the date of issuance until six (6) months following the listing after merger.

§72. Designation of Stocks of Special Purpose Acquisition Companies as Administrative Issue

(1) With respect to the designation of stocks of special purpose acquisition companies as an administrative issue, the provisions under [§53] regarding the designation of common stocks as an administrative issue shall apply *mutatis mutandis*. Provided, however, that, the provisions under [§53(1)1] concerning revenue below the required level, the provisions in [§53(1)2] regarding losses from continuing operations before tax, the provisions in [§53(1)3] regarding capital impairment, the provisions in [§53(1)5] regarding market capitalization below the required level, the provisions in [§53(1)5-2] regarding stock price below the required level, the provisions in [§53(1)8] concerning trading volumes below the required level, and the provisions in [§53(1)9] regarding stock distributions below the required level shall not apply *mutatis mutandis*. (Amended on December 7, 2022; May 13, 2026)

(2) In addition to paragraph (1), in cases where a special purpose acquisition company falls under any of the following subparagraphs, the Exchange shall designate the stocks of the concerned special purpose acquisition company as an administrative issue:

1. Case where it has been confirmed that officers have failed to meet the qualifications under [§70(1)7] is confirmed. Provided that, this provision shall not apply to the case where the number of directors who meets the concerned requirements is at least three (3) and the number of auditors is at least one;
2. Case where the stock distribution as of the end of the latest business year falls under any of the followings. In such cases, the number of shares held by minority shareholders and the number of minority shareholders shall be based on the numbers as of the end of the latest business year, but in cases where the shareholders' register is closed after the end of latest business year, they shall be based on the shareholders' register submitted to the Exchange at the time of closing and the list of holders in accordance with the Act on Electronic Registration of Stocks and Bonds, etc.:
 - (a) Where the number of minority shareholders is less than 40; and
 - (b) Where the number of stocks owned by minority shareholders is less than 10/100 of the number of floating stocks. Provided that, this item shall not apply to the cases where the number of minority shareholders is 60 or more and the number of stocks owned by minority shareholders is at least 5/100 of the number of floating stocks.
3. Case falling under any of the followings:
 - (a) Where the non-compliance with the obligation to deposit or entrust the funds raised by issuing stocks (excluding the stocks issued before the initial public offering) pursuant to Article 6(4)14(a) of the Enforcement Decree of the Act is confirmed; and
 - (b) Where it is confirmed that the funds deposited or entrusted in the deposit institutions have been withdrawn or provided as collateral in violation of Article 6(4)14(b) of the Enforcement Decree of the Act.
4. Case where it has been confirmed that the restrictions on financial activities stipulated in the articles of incorporation such as issuance of debt securities, borrowing, provision of debt guarantee, or provision of collateral have been violated;
5. Case where the application for preliminary listing review for listing after merger has not been submitted by six (6) months prior to the expiry of duration specified in the articles of incorporation of the special purpose acquisition company (in the case of a merger with a KOSDAQ-listed corporation, which is not subject to the application for preliminary listing review pursuant to [§74], it refers to the case where the report on the resolution or decision on the merger pursuant to [§6(1)3(a)(viii)] of the Disclosure Regulation has not been filed). In such cases, in cases where a special purpose acquisition whose duration is less than six (6) months withdraws the application for preliminary listing review for listing after merger, the preliminary listing review is disapproved, or the resolution or decision on the merger is canceled (including the case of a merger with a KOSDAQ-listed corporation that is not subject to the application for preliminary listing review pursuant to [§74]), it shall be construed that the

application for preliminary listing review has not been submitted;

6. Case where it has been confirmed that the issuance amount of stocks, etc. held by a financial investment business entity under Article 6(4)14(c) of the Enforcement Decree of the Act is less than 5/100 of the total amount of the stocks, etc. issued by the concerned special purpose acquisition company;

(3) Notwithstanding paragraphs (1) and (2), in cases where a special purpose acquisition company merges with another corporation, the Exchange shall deem that the cause for the designation as an administrative issue pursuant to paragraphs (1) and (2) has been resolved. Provided that, this provision shall not apply to the cases where any cause for delisting by formality review or any cause for delisting by listing maintenance review occurs with respect to the counterparty of the merger.

(4) The Exchange shall stipulate the application methods for causes of the designation as an administrative issue, the timing of designation as an administrative issue and release therefrom, and other necessary matters in the Enforcement Rules.

§73. Delisting of Stocks of Special Purpose Acquisition Companies

(1) With respect to delisting of stocks of special purpose acquisition companies, the provisions from [§54] to [§58] regarding the delisting of common stocks shall apply *mutatis mutandis*. Provided that, the provisions in [§54(1)4] concerning trading volume below the required level, the provisions in [§54(1)5] concerning stock distributions below the required level, the provisions in [§54(1)6] concerning entire capital impairment, the provisions in [§54(1)12] concerning market capitalization below the required level, the provisions in [§54(1)13] concerning stock price below the required level, cases specified in the Enforcement Rules regarding violations of the Act on External Audit on Stock Companies in [§56(1)5], provisions in [§56(1)6] regarding suspension of man business, provisions in [§56(1)9] concerning change of management rights, etc., provisions in [§56(1)15] regarding sales amount below the required level, and the provisions in [§56(1)16] regarding losses from continuing operations before tax, the provisions in [§56(1)17] regarding capital impairment, and the provisions in [§56(1)17-2] regarding entire capital impairment as of the end of half-year shall not apply *mutatis mutandis*. (Amended on December 7, 2022; July 9, 2025; May 13, 2026)

(2) In addition to paragraph (1), in cases where a special purpose acquisition company falls under any of the following subparagraphs, the Exchange shall delist the stocks of the concerned special purpose acquisition company:

1. Case where the special purpose acquisition company that has been designated as an administrative issue due to failure to meet qualifications by officers pursuant to [§72(2)1] fails to resolve the concerned cause within six (6) months from the date of designation;
2. Case where the special purpose acquisition company that has been designated as an

administrative issue due to the stock distribution not up to standards pursuant to [§72(2)2] fails to resolve the concerned cause within one (1) year from the date of designation;

3. Case where the special purpose acquisition company that has been designated as an administrative issue due to the non-compliance with the obligations to deposit the funds, etc. pursuant to [§72(2)3] fails to resolve the concerned cause within 10 days from the date of designation;
4. Case where the special purpose acquisition company that has been designated as an administrative issue due to the violation of restrictions on financial activities pursuant to [§72(2)4] fails to resolve the concerned cause within 10 days from the date of designation;
5. Case where the special purpose acquisition company that has been designated as an administrative issue due to the non-submission of application for preliminary listing review, etc. pursuant to [§72(2)5] does not resolve the concerned cause of designation within one (1) month from the date of designation;
6. Case where the special purpose acquisition company that has been designated as an administrative issue due to the non-compliance with the minimum investment obligation for a financial investment company pursuant to [§72(2)6] does not resolve the concerned cause of designation within three (3) months from the date of designation;
7. Case where it has been confirmed that the shareholders, etc. of the special purpose acquisition company have violated the agreement under [§70(1)10] concerning the restriction on the exercise of voting rights, etc. as of the application date for preliminary listing review;
8. Case where it is confirmed that business activities other than the merger, including the holding of the stocks of other company, acquisition of business and assets from other company, spin-off, or merger after spin-off, etc. have been undertaken.
9. Case of falling under any of the followings in relation to the resolution on merger:
 - (a) Where the decision to merge with a corporation falling under any of the followings is made at the general meeting of shareholders:
 - (i) A corporation that received a notice of ‘ineligibility’ as a result of the eligibility review for listing after merger;
 - (ii) A corporation whose merger value calculated according to each subparagraph of Article 176-5(1) of the Enforcement Decree of the Act and the total assets under the statement of financial position as of the end of the latest business year fall short of the requirement specified in [§75(1)4];
 - (iii) A KOSDAQ-listed corporation or a common-stock-listed corporation on the

KOSPI market that has been designated as an administrative issue pursuant to this Regulation or the KOSPI Market Listing Regulation; and

- (iv) A corporation that has special interests specified in the Enforcement Rules with the special purpose acquisition company (including shareholders, etc. and officers of the special purpose acquisition company as of the application date for preliminary listing review under [§69(1)]).
- (b) Where, after the special purpose acquisition company made the decision to merge with a KOSDAQ-listed corporation or a common-stock-listed corporation on the KOSPI market, the concerned KOSDAQ-listed corporation or the KOSPI-listed corporation has been designated as an administrative issue pursuant to this Regulation or the KOSPI Market Listing Regulation;
- (c) Where the decision is made at the general meeting of shareholders to incorporate a corporation by way of merger or to conduct merger that will turn the corporation concerned into an unlisted corporation. Provided that, this provision shall not apply to the case of listing after merger pursuant to [§2(1)1(f)(ii)]; and
- (d) Where the special purpose acquisition company makes a decision on a merger which violates the requirement under [§75(1)6].

Section I I . Listing after Merger

§74. Preliminary Listing Review for Listing after Merger

In cases where a special purpose acquisition company resolves or decides to merge with the counterparty of merger that does not constitute a KOSDAQ-listed corporation (hereinafter referred to as the “merger target company” in this Section), the applicant for eligibility review for listing after merger shall submit the application for preliminary listing review and the supplementary documents specified in the Enforcement Rules through a listing sponsor to the Exchange without delay and undergo the preliminary listing review.

§75. Review Requirements for Listing after Merger

(1) In cases where a special purpose acquisition company and a merger target company intend to list stocks after merger, the merger target company shall satisfy all the formality review requirements provided in each of the following subparagraphs as of the application date for preliminary listing review. In such cases, the applicable standards under [§24(2)] shall apply *mutatis mutandis* to the financial details based on the financial statements as of the end of the

latest business year:

1. Business performance, etc.: Any of the followings shall be met:
 - (a) The income before tax from continuing operations (in cases where the Exchange deems it necessary under the Enforcement Rules, , one-time valuation loss related to a financial product may be adjusted and applied; the same hereinafter in this item) in the latest business year shall be at least KRW 2 billion (at least KRW 1 billion in the case of venture companies); (Amended on July 9, 2025)
 - (b) There shall be income before tax from continuing operations in the latest business year, and the sales in the latest business year shall be at least KRW 10 billion (at least KRW 5 billion in the case of venture companies).
 2. The requirement for the audit opinion under [§28(1)3] shall be met;
 3. The requirement for the restrictions on the transfer of stocks under [§28(1)4] shall be satisfied;
 4. The merger value calculated pursuant to Article 176-5(2) and (3) of the Enforcement Decree of the Act or the total assets under the statement of financial position as of the end of the latest business year shall be at least 80/100 of the amount deposited or entrusted in the deposit institutions pursuant to Article 6(4)14(a) of the Enforcement Decree of the Act. In such cases, if there are multiple merger target companies, it shall be based on the aggregated amount of the merger value or the total asset of each company, respectively;
 5. In the case of a special purpose acquisition company established for the purpose of merging with a venture company, the merger target company shall be the venture company;
 6. All or part of the merger consideration shall not be received in cash. Provided that, this provision shall not apply to the case where the Exchange acknowledges that the cash payment for merger is inevitable for the handling of odd lots, etc.
- (2) In cases where the merger target company (excluding foreign companies and foreign holding companies located in Korea) meets the requirements under [§30(1)], it may apply for preliminary listing review as an innovative technology company. In such cases, such company shall have an equity capital of at least KRW 1 billion as of the date of application for preliminary listing review in lieu of the requirement on the business performance, etc. under paragraph (1)1. (Amended on December 27, 2023)
- (3) The merger target company shall satisfy the qualitative review requirements under [§29]. Provided that, in cases where the merger target company is a KOSPI-listed corporation, the qualitative review requirements under [§29] may not apply.
- (4) Notwithstanding the main sentence of paragraph (3), the requirement under [§29(1)1]

among the qualitative review requirements may not apply to cases falling under any of the followings, except where acknowledged as necessary by the Exchange due to significant slowdown in business of a merger target company, etc.:

1. Case where the merger target company is a KONEX-listed corporation that meets all of the following requirements (hereinafter referred to as the “prompt listing-after-merger company”):
 - (a) Net income shall be at least KRW 1 billion and there shall exist operating profit in each of the latest two (2) business years (including the business year to which the date of listing belongs since the listing on the KONEX market, and in cases where the period from the date of listing to the end of the business year is less than six (6) months, it refers to the following business year);
 - (b) One (1) year or more shall have passed since the date of listing on the KONEX market;
 - (c) The designated advisor of the concerned corporation shall make a recommendation. Provided that, it shall be limited to corporations whose designated advisor’s appointment period has elapsed for six (6) months or more; and
 - (d) In addition, all requirements stipulated in the Enforcement Rules shall be satisfied considering the soundness of corporate management.
2. In cases where the merger target company has been registered in the M&A network, and the concerned merger meets all of the following requirements:
 - (a) The merger target company shall have been registered in the M&A network within one (1) year before the submission of the application for preliminary listing review;
 - (b) One (1) month or more has elapsed since the merger target company was registered in the M&A network (based on the submission date of application for preliminary listing review); and
 - (c) All requirements stipulated in the Enforcement Rules such as sales and profits in the latest business year shall be satisfied.
- (5) In cases where a special purpose acquisition company merges with a KOSDAQ-listed corporation or a KOSPI-listed corporation, the concerned KOSDAQ-listed corporation or KOSPI-listed corporation shall not be an administrative issue pursuant to this Regulation or [§47(1)] of the KOSPI Market Listing Regulation as of the submission date of a report on material facts (in cases where the counterparty of the merger is a KOSPI-listed corporation it shall be the date of application for preliminary listing review).
- (6) In cases where a securities registration statement on offering public offering or sale is not submitted in relation to the listing after merger, a listing specification stipulated in the Enforcement Rules shall be published through electronic information dissemination media

before the application for listing after merger.

§76. Application for Listing after Merger

(1) An applicant for listing after merger who has been notified of the approval of the listing after merger eligibility review shall conduct the listing after merger in accordance with the following classifications:

1. Listing after merger pursuant to [§2(1)1(f)(i)]: The special purpose acquisition company shall conduct the supplementary listing of stocks newly issued after the merger pursuant to [§44]; and
2. Listing after merger pursuant to [§2(1)1(f)(ii)]: The application for listing after merger and the supplementary documents shall be submitted to the Exchange in accordance with the Enforcement Rules. In such cases, the requirements specified in the Enforcement Rules such as face value shall be satisfied.

(2) The provisions under [§46] concerning the deferment of listing for common stocks shall apply *mutatis mutandis* to the listing after merger pursuant to paragraph (1). In such cases, the reasons for the deferment of listing and other matters necessary to apply the deferment of listing *mutatis mutandis* shall be stipulated in the Enforcement Rules.

(3) The Exchange shall specify the methods and procedures for the application for listing after merger and other necessary matters in the Enforcement Rules.

§77. Mandatory Holding in Case of Listing after Merger

In cases where a special purpose acquisition company intends to list stocks after a merger, it shall mandatorily hold the stocks, etc. of the merger target company in accordance with each of the following subparagraphs. Provided that in cases where the person subject to mandatory holding makes a request in consultation with the listing sponsor or the Exchange acknowledges that it is necessary for management transparency, management stability and investor protection, etc., the mandatory holding period may be extended by a maximum of two (2) years in addition to the period stipulated in each subparagraph in consultation with the person subject to the mandatory holding: (Amended on March 16, 2022)

1. The largest shareholder, etc. (the officers of the merger target company shall include the persons falling under each subparagraph of Article 401-2(1) of the Commercial Act; hereinafter the same shall apply in this Article) of the merger target company: Six (6) months [in cases where the merger target company is a technology growth company or a prompt listing-after-merger company, it shall be one (1) year] from the date of listing after merger;

2. A person who has acquired stocks, etc. owned by the largest shareholder, etc. of the merger target company from the date six (6) months prior to the submission date of a report on material facts regarding the merger to the date of listing after merger: Six (6) months [in cases where the merger target company is a technology growth company or a prompt listing-after-merger company, it shall be one (1) year] from the date of listing after merger, except as otherwise stipulated in the Enforcement Rules ;
3. A person who has acquired stocks, etc. issued by the merger target company through a third-party allotment from the date six (6) months prior to the submission date of a report on material facts regarding the merger to the date of listing after merger: Six (6) months [in cases where the merger target company is a technology growth company or a prompt listing-after-merger company, it shall be one (1) year] from the date of listing after merger, except as otherwise stipulated in the Enforcement Rules;
4. Stocks, etc. acquired by venture capital or professional investors through a method other than a public offering or sale whose investment period (based on the submission date of a report on material facts regarding the merger) is less than two (2) year, (limited to stocks, etc. up to the amount equivalent to 10/100 of the capital of the merger target company as of the date of merger among the stocks, etc. acquired by the venture capital or professional investors): One (1) month from the date of listing after merger, except as otherwise stipulated in the Enforcement Rules; and
5. Stocks acquired by the largest shareholder, etc. of the merger target company through exercises of stock options after the date of listing after merger: Six (6) months from the date of listing after merger (one (1) year in cases where the merger target company is a technology growth company or prompt-transfer company).
6. Person who has acquired stocks with multiple voting rights (including common stocks converted pursuant to Article 16-12 of the Venture Business Act): The period from the listing date to the later of the day preceding the date specified in Paragraph (1), Subparagraph 4 of Article 16-12 of the Venture Business Act and the end date of the mandatory holding period under subparagraph 1, etc. [July 1, 2026]

CHAPTER IV. DIFFERENT CLASSES OF STOCKS

§78. Preliminary Listing Review and Application for Initial Listing of Different Classes of Stocks

(1) With respect to the preliminary listing review and the application for initial listing regarding the initial listing of different classes of stocks (including foreign different classes of stocks; hereinafter the same shall apply in this Chapter), the provisions under [§25] concerning the

preliminary listing review of common stocks and the provisions under [§27] regarding the application for initial listing of common stocks shall apply *mutatis mutandis*.

(2) Notwithstanding paragraph (1), in the case of applying for initial listing of common stocks or foreign stocks, etc., the submission of an application for preliminary listing review or listing review of different classes of stocks may be replaced with the details stated on the different classes of stocks in the application for preliminary listing review or listing review of the common stocks or foreign stocks, etc.

§79. Review Requirements for Initial Listing of Different Classes of Stocks

With respect to each issue of the different class of stocks, an applicant for initial listing of different classes of stocks shall satisfy all the requirements in each of the followings:

1. Issuers: The applicant for initial listing shall fall under any of the followings:
 - (a) A KOSDAQ-listed corporation. Provided that, a special purpose acquisition company or a corporation designated as an administrative issue or an investment attention issue shall be excluded; and
 - (b) A corporation that has applied for a preliminary listing review of common stocks or foreign stocks, etc.
2. Number of listed stocks: The number of stocks to be listed shall be at least one (1) million as of the listing application date;
3. Base market capitalization: As of the listing application date, the base market capitalization shall be at least KRW 5 billion. In such cases, the base market capitalization shall be calculated in accordance with the method under [§2(1)34(a)], but in case where a public offering (excluding the cases that are construed as public offerings pursuant to Article 11(3) of the Enforcement Decree of the Act; hereinafter the same shall apply in this subparagraph) or a public sale has been conducted in Korea prior to the date of application for preliminary listing review, it shall be calculated based on the price of the stocks recently offered or sold as of the date of application for preliminary listing review;
4. Stock distribution: As of date of application for preliminary listing review, all of the following requirements shall be met. Provided that, in the case of a corporation that conducts a public offering (excluding the cases that are construed as public offerings pursuant to Article 11(3) of the Enforcement Decree of the Act; hereinafter the same shall apply in this subparagraph) or a public sale prior to the date of application for preliminary listing review, it shall be based on the listing application date:
 - (a) The number of stocks publicly offered or sold in Korea shall be at least 25/100 of the total number of different class of stocks; and

- (b) The number of shareholders shall be at least 300 or more.
5. The remaining period for exercise of rights, etc.: The remaining period for exercise of rights or the maturity shall be at least one (1) year from the date of listing application;
 6. There shall be no restriction on transfer of stocks. Provided that, this provision shall not apply to the cases where the transfer of stocks is restricted in accordance with the laws and regulations (in the case of different classes of foreign stocks, referring to the laws and regulations of the home country), the articles of incorporation, etc., and the Exchange acknowledges that such restriction does not impede the trading in the KOSDAQ Market;
 7. In case where it is acknowledged that the issuance of different class of stocks is likely to constitute abuse of the management rights or infringement upon the interests of existing shareholders, it shall not fall under any criteria specified in the Enforcement Rules; and
 8. It shall be acknowledged that there are no other inappropriate reasons in terms of public interests and investor protection.

§80. Listing Change, Supplementary Listing, Etc. of Different Classes of Stocks

With respect to the listing change and the supplementary listing of the different classes of stocks, the provisions in [§44] concerning listing change and supplementary listing of common stocks, the provisions in [§45] concerning shelf-listing, and the provisions in [§46] concerning deferment of listing shall apply *mutatis mutandis*.

§81. Designation of Different Classes of Stocks as Administrative Issues

(1) In cases where a different class of stock falls under any of the following subparagraphs, the Exchange shall designate the concerned stocks as an administrative issue:

1. Case where the common stocks or the foreign stocks, etc. of a corporation that has listed different class of stocks are designated as administrative issues;
2. Case where the number of shareholders for the concerned different class of stocks is less than 100 as of the end of the latest business year;
3. Case where, as of the end of the latest half year or business year, the number of listed stocks of the concerned different class of stocks is less than (200,000);
4. Case where the market capitalization of the concerned different class of stocks has been

less than KRW 2 billion for 30 consecutive days (based on business days of the relevant stocks). Provided that, the Exchange may not designate the concerned stocks as an administrative issue in cases where it is acknowledged as necessary for market management due to natural disasters or other rapid changes in market conditions, etc.;

5. Case where the average monthly trading volume of the concerned different class of stocks in a quarter is less than 10,000 shares. Provided that, this provision shall not apply to cases falling under any of the followings:
 - (a) Case where the different class of stock is initially listed. Provided that it shall be limited to the quarter to which the initial listing date belongs;
 - (b) Case where the number of trading suspension days during a quarter is at least 50/100 of the number of business days in the relevant quarter; and
 - (c) Case where the liquidity provision agreement pursuant to [§12-3(1)] of the Business Regulation has been entered into.
- (2) In cases when the Exchange designates a different class of stocks as an administrative issue or releases them therefrom, it shall publish such fact through the disclosure media without delay.
- (3) Other necessary matters concerning the designation of administrative issues and release therefrom shall be stipulated in the Enforcement Rules.

§82. Delisting of Different Classes of Stocks

- (1) In cases where a different class of stock falls under any of the following subparagraphs, the Exchange shall delist the concerned issue:
1. Case where the common stocks or the foreign stocks, etc. of a corporation that has listed different class of stocks are delisted;
 2. Case where, while being designated as an administrative issue due to a shortfall in the number of shareholders pursuant to [§81(1)2], the number of shareholders for the concerned different class of stocks is less than 100 at the end of the following business year;
 3. Case where, while being designated as an administrative issue due to a shortfall in the number of shares pursuant to [§81(1)3], the number of listed stocks of the concerned different class of stocks is less than 200,000 at the end of the following half year or business year;
 4. Case where, for 90 days (based on business days of the concerned issue; hereinafter the same shall apply in this subparagraph) after the date of designation as an

administrative issue due to a shortfall in market capitalization pursuant to [§81(1)4], the market capitalization of the concerned different class of stocks has not satisfied any of the following items. In such cases, the proviso to [§81(1)4] shall apply *mutatis mutandis*:

- (a) The market capitalization of KRW 2 billion or more shall continue for 10 days or more; and
 - (b) The number of days when the market capitalization is KRW 2 billion or more shall be at least 30 days.
5. Case where, while being designated as an administrative issue due to a shortfall in the trading volume pursuant to [§81(1)5], the shortfall in trading volume pursuant to the same provision of the concerned different class of stocks continues in the following quarter.
6. Case where there is a restriction on transfer of the concerned different class of stocks. Provided that, this provision shall not apply to the cases where the transfer of stocks is restricted in accordance with the laws and regulations, the articles of incorporation, etc. and the Exchange acknowledges that such restriction does not impede the trading in the KOSDAQ Market;
- (2) In the case where a cause for delisting under paragraph (1)6 occurs, the Exchange shall notify the concerned corporation of the matters under each item of [§54(3)] in writing.
- (3) In cases where a corporation that has listed different class stocks has been notified of delisting due to the cause under paragraph (1)6 and has an objection to the relevant delisting, it may file an objection with the Exchange. In such cases, the provisions of [§55] concerning the objection to delisting of common stocks by formality review shall apply *mutatis mutandis*.
- (4) The Exchange shall disclose the details of procedures related to delisting of different class of stocks as market notes.
- (5) Other necessary matters such as methods for applying the delisting causes of different class of stocks shall be stipulated in the Enforcement Rules.

CHAPTER V. SUBSCRIPTION WARRANTS AND SUBSCRIPTION RIGHT CERTIFICATES

§83. Initial Listing of Subscription Warrants and Subscription Right Certificates

(1) An applicant for the initial listing of subscription warrants or subscription right certificates shall submit to the Exchange the application for initial listing and the supplementary documents stipulated in the Enforcement Rules:

(2) In order to list subscription warrants, all of the following review requirements shall be met:

1. The stocks (including DRs of foreign stocks; hereinafter the same shall apply in this Chapter) of the issuer of subscription warrants shall have been listed on the KOSDAQ Market;
2. The listed stocks of the issuer of subscription warrants shall have not been designated as an administrative issue pursuant to this Regulation as of the date of listing application, and they shall not fall under any cause for delisting by formality review or delisting as a result of listing maintenance review;
3. The total number of issued subscription warrants shall be at least 10,000. In such cases, where the new stocks to which the holder is entitled under the warrant are the stocks with par value, it shall be based on a par value of KRW 5,000;
4. The remaining period for exercise of the subscription warrants shall be at least one (1) year as of the application date for listing; and
5. The bonds with subscription warrants shall have been issued through offering public offering or sale. Provided that, this subparagraph shall not apply to the case where the subscription rights of the bonds concerned have been given to the shareholders.

(3) In order to initially list subscription right certificates, all of the following review requirements shall be met:

1. The stocks of the issuer of the subscription right certificates shall have been listed on the KOSDAQ Market;
2. The listed stocks of the issuer of the subscription right certificates shall have not been designated an administrative issue pursuant to this Regulation as of the date of listing application, and they shall not fall under any cause for delisting by formality review or delisting as a result of listing maintenance review;
3. The transfer of subscription right certificates shall be allowed, and the subscription right certificates shall have been issued to all shareholders who are entitled to the subscription rights;
4. The total number of issued subscription right certificates shall be at least 10,000. In such cases, where the new stocks to which the holder is entitled under the subscription right certificates are the stocks with par value, it shall be based on a par value of KRW 5,000; and
5. The trading period for subscription right certificates shall be at least five (5) days

(based on business days).

§84. Listing Change of Subscription Warrants and Subscription Right Certificates

(1) With respect to the listing change of subscription warrants and subscription right certificates, the provision of [§44] regarding the listing change of common stocks shall apply *mutatis mutandis*.

(2) In cases where subscription warrants issued by a company which has been merged into a KOSDAQ-listed corporation have already been listed on the KOSDAQ Market, the concerned stocks shall be deemed to have been changed and listed as the stocks of a surviving company without a separate application for listing if the matters concerning the listing change of the stocks issued by the extinct company are stated in the application for listing change and supplementary listing.

(3) In the case of a listing change of stocks that have already been listed due to the spin-off or the merger after spin-off of the company (including the split-off or the merger after split-off which are conducted as a consequence of carve-out) and transfers of asset and liabilities (including transfer of receivables due to business transfer), the provision of paragraph (2) shall apply *mutatis mutandis*.

§85. Delisting of Subscription Warrants and Subscription Right Certificates

(1) In cases where subscription warrants fall under any of the following subparagraphs, the Exchange shall delist the concerned subscription warrant:

1. Where the stocks subject to exercise of warrants are designated as administrative issues, or a cause for delisting by formality review or delisting as a result of listing maintenance review occurs;
2. Where the stocks subject to exercise of warrants are delisted due to an application for delisting;
3. Where the period for exercising the subscription rights has terminated or the exercise of such rights has been completed; and
4. Other cases where the Exchange acknowledges that the delisting of the concerned subscription warrants is necessary for public interests and investor protection.

(2) In cases where subscription right certificates fall under any of the following subparagraphs, the Exchange shall delist the concerned subscription right certificates:

1. Where the stocks to which the subscription right certificates are entitled are designated

as administrative issues, or any cause for delisting by formality review or delisting as a result of listing maintenance review occur;

2. Where the stocks to which the subscription right certificates are entitled are delisted due to an application for delisting;
3. Where it is five (5) days (based on business days) before the starting date of subscription application for new stocks. Provided that, in cases where otherwise determined by the Enforcement Rules in view of the trading situation of the subscription right certificates, it shall be prior to the aforementioned period; and
4. Other cases where the Exchange acknowledges that the delisting of the concerned subscription right certificates is necessary for public interests and investor protection.

CHAPTER VI. BUSINESS DEVELOPMENT COLLECTIVE INVESTMENT SECURITIES

[March 4, 2026]

Section I. General Provisions

[March 4, 2026]

§85-2. Definitions

The terms used in this Chapter shall be defined as follows:

1. The term “business development collective investment vehicle” means the business development collective investment vehicle under Subparagraph 6 of Article 229 of the Act;
2. The term “business development investment company” means a business development collective investment vehicle that is established as an investment company;
3. The term “business development investment trust” means a business development collective investment vehicle that is established as an investment trust;
4. The term “business development investment company stocks” means stocks of a business development investment company; and
5. The term “business development investment trust beneficiary certificates” means

beneficiary certificates of a business development investment trust.

[March 4, 2026]

§85-3. Matters to Be Reported after Applying for Preliminary Listing Review

A listing applicant of a business development investment company stocks or business development investment trust beneficiary certificates shall report to the Exchange if any event falling under any of the followings occurs after the date of application for preliminary listing review and before the date of listing:

1. Resolution of the board of directors, general meeting of shareholders, or general meeting of beneficiaries;
2. Material management events such as merger, filing of a lawsuit, suspension of business activities, changes in major assets, etc.;
3. Reporting on a public offering or a secondary offering. In such cases, an investment prospectus (including a preliminary investment prospectus) including any correction made to its details shall be submitted; and
4. Holding of a meeting of board of directors, general meeting of shareholders, or general meeting of beneficiaries for the approval of financial statements for the latest business year. In such cases, the financial statements and the auditor's audit report thereon of the latest business year shall be submitted.

§85-4. Applicable Standards for Accounting Standards and Financial Statements

Financial statements applicable to a business development investment company or a business development investment trust shall be prepared in accordance with the accounting standards under Article 240, Paragraph 1 of the Act.

[March 4, 2026]

Section II. Business Development Investment Company Stocks

§85-5. Application for Preliminary Listing Review of Business Development Investment Company Stocks

(1) Applicants for initial listing of business development investment company stocks shall discuss the listing procedure and timing with the Exchange before applying for a preliminary listing review.

(2) With respect to the applications for preliminary listing review and initial listing of business development investment company stocks, the provisions under [§25] regarding the application for preliminary listing review of common stocks and the provisions under [§27] concerning the application for initial listing of common stocks shall apply *mutatis mutandis*.

[March 4, 2026]

§85-6. Review Requirements for Initial Listing of Business Development Investment Company Stocks

(1) An applicant for initial listing of business development investment company stocks shall satisfy all of the following requirements:

1. The business development investment company shall be registered with the Financial Services Commission pursuant to Article 182 of the Act;
2. There shall be no restrictions on the transfer of stocks. Provided that, this subparagraph shall not apply in cases where the transfer of stocks is restricted pursuant to laws, articles of incorporations, etc., and the Exchange recognizes that such restriction does not impede trading on the KOSDAQ market;
3. The articles of incorporation shall stipulate that the business development investment company shall be dissolved in the event of delisting;
4. The public offering amount of the business development investment company as of the date of application for listing shall be equal to or greater than the amount specified in Article 241-3, Paragraph (3) of the Enforcement Decree of the Act;
5. Other requirements that the Exchange stipulates in the Enforcement Rules, taking into consideration investor protection and liquidity, shall be satisfied;
6. There shall be no disputes, such as lawsuits, that have a significant impact on the management of the business development investment company; and
7. With respect to the qualitative review for business development investment company stocks, the provision of [§29] concerning the qualitative review requirements for initial listing of common stocks shall apply *mutatis mutandis*. Provided that, the requirement under [§29(1)1] shall not apply *mutatis mutandis*.

(2) Notwithstanding paragraph (1), the Exchange may refuse to list business development investment company stocks if it recognizes that such listing is not suitable for the realization of the public interest and the protection of investors.

[March 4, 2026]

§85-7. Supplementary Listing of Business Development Investment Company Stocks

(1) If a company that has listed business development investment company stocks intends to issue and list new stocks of business development investment company of the same type as those already listed, it shall submit an application for supplementary listing and supporting documents prescribed by the Enforcement Rules to the Exchange.

(2) The application for additional listing under paragraph (1) shall be made without delay after the issuance of the relevant new stocks has taken effect.

[March 4, 2026]

§85-8. Listing Change of Business Development Investment Company Stocks

(1) If a company that has listed business development investment company stocks changes the issue name, the number, etc. of the relevant stocks, it shall submit an application for listing change and supporting documents prescribed by the Enforcement Rules to the Exchange.

(2) The application for listing change under paragraph (1) shall be made without delay after the relevant grounds for change have taken effect.

[March 4, 2026]

§85-9. Designation of Business Development Investment Company Stocks as Administrative Issue

(1) The Exchange shall designate the stocks of a business development investment company as an administrative issue if the company that has listed such stocks falls under any of the following subparagraphs:

1. Where equity capital is less than KRW 5 billion as of the end of the latest fiscal year;
2. Where the number of violations of disclosure regulations within the past one (1) year is three (3) or more;

3. Where it is confirmed that measures have been taken by the Financial Services Commission due to failure to meet the investment ratio under Article 81 of the Act or violations of operational regulations;
4. Where the auditor's opinion on the financial statements for the latest fiscal year is other than unqualified: or
5. Where a person subject to mandatory holding under these Regulations sells the stocks subject to mandatory holding during the holding period (including cases where a sale was made in effect pursuant to [§17(1)]).

(2) A company that has listed business development investment company stocks shall report to the Exchange without delay any occurrence of causes for the designation as an administrative issue or the release therefrom.

(3) The Exchange may request a company that listed business development investment company stocks to confirm necessary facts regarding the designation as an administrative issue and the release therefrom. In this case, the relevant company shall comply with the request unless there is a justifiable reason otherwise.

(4) When the Exchange designates an administrative issue or releases therefrom, it shall announce this on disclosure media without delay.

(5) The method of applying causes for designation as an administrative issue, the timing of designation and release therefrom, and other necessary matters shall be stipulated by the Enforcement Rules.

[March 4, 2026]

§85-10. Delisting of Business Development Investment Company Stocks

- (4) When a company that has listed business development investment company stocks falls under any of the following subparagraphs, the Exchange shall delist the relevant stocks: In such cases, the method of applying the grounds for delisting and other necessary matters shall be prescribed by the Enforcement Rules:
 4. In cases where equity capital is less than KRW 5 billion as of the end of the latest fiscal year while already designated as an administrative issue pursuant to [§85-9(1)1];
 4. In cases where the auditor's opinion on the financial statements for the latest fiscal year is other than unqualified while already designated as an administrative issue pursuant to [§85-9(1)4];
 4. In cases where quarterly business reports under Article 186 of the Act or financial

statements under Article 239 of the Act are not submitted;

4. In cases where it is confirmed that all business operations have been suspended or are in a state equivalent thereto;
4. In cases where a cause for dissolution of an investment company under Article 202, Paragraph 1 of the Act occurs;
4. In cases where it is found that important matters for investor protection have been falsely stated or omitted in documents submitted in relation with listing; or
4. Other cases where the Exchange deems delisting necessary for the realization of public interest and investor protection.

(2) Notwithstanding paragraph (1), a company that listed business development investment company stocks falls under paragraph (1)1, paragraph (1)3, or paragraph (1)4, the Exchange may defer delisting for one (1) month. In this case, the starting date for calculating the grace period for delisting shall be as follows;

1. In the case of paragraph (1)1 or paragraph (1)3, the day following the deadline for submitting the business report or financial statements; or
2. In the case of paragraph (1)4, the day on which the occurrence of the relevant business suspension, etc. is confirmed.

(3) A corporation that has listed business development investment company stocks and received notice from the Exchange by falling under paragraph (1)1 or paragraph (1)6 may file an objection by applying [§55] concerning an objection against the delisting by formality review mutatis mutandis.

(4) Matters necessary for the method and procedure for objection under paragraph (3) and the deliberation and resolution of the Corporate Review Committee, etc. shall be stipulated in the Enforcement Rules.

[March 4, 2026]

§85-11. Mandatory Holding in Cases of Initial Listing of Business Development Investment Company Stocks

(1) In the case of an initial listing of business development investment company stocks, the stocks of the listing applicant shall be held mandatorily as specified in the following subparagraphs. Provided that, if the Exchange deems it necessary for the protection of investors, etc., it may

extend the mandatory holding period within a range of up to two (2) years in addition to the period specified in subparagraph 1 or 2, in consultation with the person subject to the mandatory holding:

1. Persons who acquired stocks issued by the listing applicant through methods other than initial public offering or secondary offering within one (1) year prior to the application date for the preliminary listing review: One (1) year from the date of listing; or
 2. Other persons recognized as necessary to be subject to mandatory holding by the Exchange for the realization of public interest and investor protection, etc.: The period not exceeding two (2) years from the date of listing as determined in consultation with the Exchange.
- (2) The provisions of [§17(2)] shall apply *mutatis mutandis* to measures for violations of the mandatory holding regulation for business development investment company stocks.

[March 4, 2026]

Section III. Business Development Investment Trust Beneficiary Certificates

§85-12. Application for Preliminary Listing Review of Business Development Investment Trust Beneficiary Certificates

- (1) Applicants for initial listing of business development investment trust beneficiary certificates shall discuss the listing procedure and timing with the Exchange before applying for a preliminary listing review.
- (2) The provisions of [§25] concerning the application for preliminary listing review of common stocks and [§27] concerning the application for initial listing shall apply *mutatis mutandis* to the application for preliminary listing review and application for initial listing with respect to the initial listing of business development investment trust beneficiary certificates. In this case, “common stocks” shall be construed as “beneficiary certificates”.

[March 4, 2026]

§85-13. Review Requirements for Initial Listing of Business Development Investment Trust Beneficiary Certificates

- (1) An applicant for initial listing of business development investment trust beneficiary certificates shall meet the following review requirements:

1. The business development investment trust beneficiary certificates shall be registered with the Financial Services Commission pursuant to Article 182 of the Act;
2. There shall be no restrictions on the transfer of beneficiary certificates. Provided that, this subparagraph shall not apply in cases where the transfer of beneficiary certificates is restricted pursuant to laws, trust agreement, etc. and the Exchange recognizes that such restriction does not impede trading on the KOSDAQ market;
3. The trust agreement shall stipulate that the business development investment trust shall be terminated in the event of delisting;
4. The public offering amount of the business development investment trust as of the date of application for listing shall be equal to or greater than the amount specified in Article 241-3, Paragraph (3) of the Enforcement Decree of the Act;
5. Other requirements that the Exchange stipulates in the Enforcement Rules, taking into consideration investor protection and liquidity, shall be satisfied;
6. There shall be no disputes, such as lawsuits, that have a significant impact on the management of the business development investment trust;
7. The principal amount per unit of the business development investment trust shall be KRW 5,000 or more; and
8. With respect to the qualitative review for the business development investment trust, the provision of [§29] concerning the qualitative review requirements for initial listing of common stocks shall apply *mutatis mutandis*. Provided that, the requirement under [§29(1)1] shall not apply *mutatis mutandis*.

(2) Notwithstanding paragraph (1), the Exchange may refuse to list the business development investment trust if it recognizes that such listing is not suitable for the realization of the public interest and the protection of investors.

[March 4, 2026]

§85-14. Supplementary Listing of Business Development Investment Trust Beneficiary Certificates

(1) If a company that has listed business development investment company stocks intends to issue and list new stocks of business development investment company of the same type as those already listed, it shall submit an application for supplementary listing and supporting documents prescribed by the Enforcement Rules to the Exchange.

(2) The application for additional listing under paragraph (1) shall be made without delay after the issuance of the relevant new stocks has taken effect.

[March 4, 2026]

§85-15. Listing Change of Business Development Investment Trust Beneficiary Certificates

(1) If a business development investment trust changes the issue name, the number, etc. of the relevant beneficiary certificates, it shall submit an application for listing change and supporting documents prescribed by the Enforcement Rules to the Exchange.

(2) The application for listing change under paragraph (1) shall be made without delay after the relevant grounds for change have taken effect.

[March 4, 2026]

§85-16. Designation of Business Development Investment Trust Beneficiary Certificates as Administrative Issue

1. Where the principal amount of the trust is less than KRW 5 billion as of the end of the latest fiscal year;
2. Where the number of violations of disclosure regulations within the past one (1) year is three (3) or more;
3. Where it is confirmed that measures have been taken by the Financial Services Commission due to the failure to meet the investment ratio under Article 81 of the Act or violations of operational regulations;
4. Where the auditor's opinion on the financial statements for the latest fiscal year is other than unqualified: or
5. Where a person subject to mandatory holding under these Regulations sells the beneficiary certificates subject to mandatory holding during the holding period (including cases where a sale was made in effect pursuant to [§17(1)]).

(2) A company that has listed business development investment trust beneficiary certificates shall report to the Exchange without delay any occurrence of causes for the designation as an administrative issue or the release therefrom.

(3) The Exchange may request a company that has listed business development investment

trust beneficiary certificates to confirm necessary facts regarding the designation as an administrative issue and the release therefrom. In this case, the relevant company shall comply with the request unless there is a justifiable reason otherwise.

(4) When the Exchange designates an administrative issue or releases therefrom, it shall announce this on disclosure media without delay.

(5) The method of applying causes for designation as an administrative issue, the timing of designation and release therefrom, and other necessary matters shall be stipulated by the Enforcement Rules.

[March 4, 2026]

§85-17. Delisting of Business Development Investment Trust Beneficiary Certificates

(1) When business development investment trust beneficiary certificates falls under any of the following subparagraphs, the Exchange shall delist the relevant beneficiary certificates. In such cases, the method of applying the grounds for delisting and other necessary matters shall be prescribed by the Enforcement Rules:

1. In cases where the principal amount of the trust is less than KRW 5 billion as of the end of the latest fiscal year while already designated as an administrative issue pursuant to [§85-16(1)1];
2. In cases where the auditor's opinion on the financial statements for the latest fiscal year is other than unqualified while already designated as an administrative issue pursuant to [§85-16(1)4];
3. In cases where quarterly business reports under Article 90 of the Act or financial statements under Article 239 of the Act are not submitted;
4. In cases where it is confirmed that all business operations have been suspended or are in a state equivalent thereto;
5. In cases where a cause for dissolution of an investment trust under Article 202, Paragraph (1) or (2) of the Act occurs;
6. In cases where it is found that important matters for investor protection have been falsely stated or omitted in documents submitted in relation with listing; or
7. Other cases where the Exchange deems delisting necessary for the realization of public interest and investor protection.

(2) Notwithstanding paragraph (1), a company that listed business development investment trust beneficiary certificates falls under paragraph (1)1, paragraph (1)3, or paragraph (1)4, the

Exchange may defer delisting for one (1) month. In this case, the starting date for calculating the grace period for delisting shall be as follows;

1. In the case of paragraph (1)1 or paragraph (1)3, the day following the deadline for submitting the business report or financial statements; or
2. In the case of paragraph (1)4, the day on which the occurrence of the relevant business suspension, etc. is confirmed.

(3) A corporation that has listed business development investment trust beneficiary certificates and received notice from the Exchange by falling under paragraph (1)1 or paragraph (1)6 may file an objection by applying [§55] concerning an objection against the delisting by formality review mutatis mutandis. In this case, “common stocks” shall be construed as “beneficiary certificates”

(4) Matters necessary for the method and procedure for objection under paragraph (3) and the deliberation and resolution of the Corporate Review Committee, etc. shall be stipulated in the Enforcement Rules.

[March 4, 2026]

§85-18. Mandatory Holding in Cases of Initial Listing of Business Development Investment Trust Beneficiary Certificates

(1) In the case of an initial listing of business development investment trust beneficiary certificates, the beneficiary certificates (in this case, the beneficiary certificates shall be deemed to fall under the category of stocks, etc. under [§2(18)]) of listing applicant shall be held mandatorily as specified in the following subparagraphs. Provided that, if the Exchange deems it necessary for the protection of investors, etc., it may extend the mandatory holding period within a range of up to two (2) years in addition to the period specified in subparagraph 1 or 2, in consultation with the person subject to the mandatory holding:

1. Persons who acquired beneficiary certificates issued by the listing applicant through methods other than initial public offering or secondary offering within one (1) year prior to the application date for the preliminary listing review: One (1) year from the date of listing; or
2. Other persons recognized as necessary to be subject to mandatory holding by the Exchange for the realization of public interest and investor protection, etc.: The period not exceeding two (2) years from the date of listing as determined in consultation with the Exchange.

(2) The provisions of [§17(2)] shall apply mutatis mutandis to measures for violations of the mandatory holding regulation for business development investment trust beneficiary

certificates. In this case, “stocks” shall be deemed “beneficiary certificates”, and “articles of incorporation” are deemed “trust agreements”.

[March 4, 2026]

PART IV. SUPPLEMENTARY PROVISIONS

§86. No Return of Listing Application Documents

The documents submitted in accordance with this Regulation shall not be returned even if the listing has been rejected or the listing application or the application for preliminary listing review has been withdrawn.

§87. Methods for Preparation of Documents Submitted by Foreign Companies

The language and the currency unit to be used when preparing documents that foreign companies submit or report to the Exchange shall be stipulated in the Enforcement Rules.

§88. Listing Fees and Annual Dues

(1) A listing applicant shall pay the listing fees, and the KOSDAQ-listed corporations shall pay annual dues as long as their securities are listed. Provided that, in case where acknowledged as necessary by the Exchange, the listing fees and the annual dues may be exempted.

(2) The fee rates, methods of calculation and payment, scope of exemption and other necessary matters concerning the listing fees and the annual dues under paragraph (1) shall be stipulated in the Enforcement Rules.

§89. Industry Classification

The Exchange may classify the industries of KOSDAQ-listed corporations in accordance with the Enforcement Rules for its listing management.

§90. Opinion Gathering

In case where this Regulation (including its Enforcement Rules) is to be amended, the public

opinion of interested parties shall be gathered pursuant to the Enforcement Rules.

§91. Enforcement Rules

The matters necessary for implementing this Regulation shall be stipulated in the Enforcement Rules.

ADDENDA

(Regulation No. 1977 / August 25, 2021)

§1. Effective Date

This Regulation shall become effective on the date stipulated in the Enforcement Rules.

§2. General Interim Measures

The application, request, determination, procedures, and other activities pursuant to the previous KOSDAQ Market Listing Regulation at the time this Regulation became effective shall be construed as having been undertaken pursuant to this Regulation.

§3. Interim Measures Concerning Listing after Merger of Special Purpose Acquisition Companies

The amended provisions of [§69(2)] shall also apply to special purpose acquisition companies that are listed as of the effective date of this Regulation.

§4. Interim Measures Concerning Technology Growth Corporations

The new growth engine companies pursuant to the previous Regulation (referring to the Regulation before the Partial Amendment Regulation No. 895 of the KOSDAQ Market Listing Regulation) before April 1, 2013 shall be construed as technology growth companies from April 1, 2013 which is the effective date of the Partial Amendment Regulation No. 895 of the KOSDAQ Market Listing Regulation.

§5. Interim Measures Concerning Designation of Administrative Issues according to Change in Review Requirements

In applying the amended provisions of [§13(7)], [§47(2)2], [§53(1)1(a)], [§53(1)2(a)] and [§56(1)3(j)], corporations listed by meeting the requirements under [§6(1)6(b) and (c)], [§7(1)2(b) and (c)] or [§7-2(3)1(c)(iv) and (v)] of the previous Regulation before April 9, 2018 (referring to the Regulation before the Partial Amendment Regulation No. 1549 of the KOSDAQ Market Listing Regulation) shall be deemed as corporations listed by meeting the amended provisions of [§2(1)41].

§6. Interim Measures Concerning Designation as Administrative Issues and Listing Maintenance Review of R&D Enterprises

Pursuant to the amended provisions of [§28-3] in the Partial Amendment Regulation No. 1613 of the KOSDAQ Market Listing Regulation, in applying the designation criteria for administrative issues under the amended provisions of [§53(1)3] to a company that has submitted an application for special cases for listing management pursuant to [§2] of the

Addenda of the same Regulation by December 31, 2019, the concerned provisions shall apply based on the operating loss incurred from the business year starting after December 31, 2022.

§7. Interim Measures for Appointment, etc. of Auditors of Foreign Companies

(1) For foreign companies listed on the KOSDAQ Market whose business year of initial listing, etc. pursuant to the amended provisions of [§3-2(2)] in the Partial Amendment Regulation No. 1689 of the KOSDAQ Market Listing Regulation has not elapsed as of July 1, 2019, the amended provisions of [§3-2(2) and (3)] of the same Regulation shall be deemed to have been applied from the business year to which the request date for preliminary listing review belongs.

(2) Notwithstanding paragraph (1), in cases where a contract for the appointment of an auditor with the qualifications falling under any of the subparagraphs of [§3-2(1)] of the previous Regulation was entered into pursuant to [§3-2(3)] of the previous Regulation (referring to the Regulation before the Partial Amendment Regulation No. 1689 of the KOSDAQ Market Listing Regulation; hereinafter the same shall apply in this Article) before July 1, 2019, the amended provisions of [§3-2(2) and (3)] in the Partial Amendment Regulation No. 1689 of the KOSDAQ Market Listing Regulation shall apply from the business year commencing after the end of the business year in which the concerned contract was entered into.

§8. Interim Measures Concerning Designation as Administrative Issues and Delisting of Different Classes of Stocks

(1) Notwithstanding the amended provisions of [§81(1)3],[§81(1)4] and [§82(1)4], in case of different classes of stocks that are listed as of October 1, 2020, the number of listed stocks pursuant to amended provisions of [§81(1)3] and the market capitalization pursuant to amended provisions of [§81(1)4] and [§82(1)4] shall be based on the number of listed and market capitalization in the following table:

Applicable Period	Number of Listed Stocks	Market Capitalization
Until Sep. 30, 2021	50,000	KRW 500 million
From Oct. 1, 2021 to Sep. 30, 2022	100,000	KRW 1 billion

(2) In case of the designation as an administrative issue pursuant to [§40-2(1)3 and 4] of the previous Regulation at the time the Partial Amendment Regulation No. 1857 of the KOSDAQ Market Listing Regulation was applied, it shall be deemed to have been designated pursuant to the Partial Amendment Regulation No. 1857 of the KOSDAQ Market Listing Regulation.

(3) The number of days shortfall in terms of the market capitalization requirement pursuant to [§40-2(1)4] and [§40-2(2)4] of the previous Regulation at the time the Partial Amendment Regulation No. 1857 of the KOSDAQ Market Listing Regulation was applied shall be construed as the number of days pursuant to the amended provisions of the Partial Amendment Regulation No. 1857 of the KOSDAQ Market Listing Regulation.

§9. Relation with Other Regulations

In cases when other Regulations cited provisions of the previous “KOSDAQ Market Listing Regulation” at the time when this Regulation was effective, it shall be deemed that the concerned provisions of this Regulation have been cited in lieu of the previous Regulation if there is a corresponding provision in this Regulation.

§10. Amendments of Other Regulations

(1) A part of the KOSDAQ Market Committee Operation Regulation shall be amended as follows:

“KOSDAQ Market Listing Committee under [§8(1)]” stipulated in [§12-2(1)1] shall be “KOSDAQ Market Listing Committee under [§6(1)]”.

“[§38(2)] of the Listing Regulation” stipulated in [§12-2(1)2] shall be “[§57(3)] of the Listing Regulation”.

“[§8(1)] of the Listing Regulation” stipulated in [§12-2(2)1] shall be “[§6(1)] of the Listing Regulation”.

“[§38(1)] of the Listing Regulation” stipulated in [§12-2(3)1] shall be “[§54(1)] of the Listing Regulation”.

“[§38(2)] of the Listing Regulation” stipulated in [§12-2(3)2] shall be “[§57(3)] of the Listing Regulation”.

“[§45(1) and (2)] of the Listing Regulation” stipulated in [§12-2(3)3] shall be “[§22(1)] of the Listing Regulation”.

(2) A part of the KOSDAQ Market Business Regulation shall be amended as follows:

“Depository Receipts (DRs) of foreign stocks pursuant to [§2(26)]” stipulated in [§2(19)] shall be “depository receipts (DRs) of foreign stocks pursuant to [§2(1)30]”.

“[§29(2)] of the Listing Regulation” stipulated in [§18(1)4] shall be “[§18(2)] of the Listing Regulation”.

“[§47] of the Listing Regulation” stipulated in [§23(1)2] shall be “[§23] of the Listing Regulation”.

(3) A part of the KOSDAQ Market Disclosure Regulation shall be amended as follows:

“[§2(10)] of the KOSDAQ Market Listing Regulation” stipulated in [§2(7)] shall be “[§2(1)14] of the KOSDAQ Market Listing Regulation”.

“[§2(31)] of the KOSDAQ Market Listing Regulation” stipulated in [§2(26)] shall be “[§2(1)39] of the KOSDAQ Market Listing Regulation”.

“[§28(1)2 through 4(b)] of the KOSDAQ Market Listing Regulation” stipulated in [§6(1)2(e)(iii)b)] shall be “[§53(1)1 through 4(b)] of the KOSDAQ Market Listing Regulation”.

“[§38(1)4 through 4-2 and 10(a) through 10(c)] and any of the items under [§38(2)5(j)] of the KOSDAQ Market Listing Regulation” stipulated in [§6(1)2(e)(iii)c)] shall be “[§54(1)3 through 4 and 8(a) through 8(c)] and any of the items under [§56(1)3(i)] of the KOSDAQ Market Listing Regulation”.

“[§28] of the KOSDAQ Market Listing Regulation” stipulated in [§9-2(2)1(b)] shall be “[§53] of the KOSDAQ Market Listing Regulation”.

“[§38(1)24(i)(iv)] of the KOSDAQ Market Listing Regulation” stipulated in [§9-2(2)1(c)] shall be “[§73(2)9(a)(iv)] of the KOSDAQ Market Listing Regulation”

“A method in which a new corporation is established or the concerned KOSDAQ-listed company that is a special purpose acquisition company becomes extinct as a result of the merger (limited to the case of merging with an unlisted corporation” stipulated in [§9-2(2)1(d)] shall be “a method in which a new corporation is established”.

“[§4-3(1)2] of the KOSDAQ Market Listing Regulation” stipulated in [§9-2(2)2(b)] shall be “[§69(2)] of the KOSDAQ Market Listing Regulation”.

“[§3-2(2) through (7)] of the KOSDAQ Market Listing Regulation” stipulated in [§20(1)9] shall be “[§15(2) through (7)] of the KOSDAQ Market Listing Regulation”.

“[§38(2)5l] of the KOSDAQ Market Listing Regulation” stipulated in [§33(1)] shall be “[§56(1)3k] of the KOSDAQ Market Listing Regulation”.

“[§23(2)] of the KOSDAQ Market Listing Regulation” stipulated in [§38(1)13] shall be “[§51(1)] of the KOSDAQ Market Listing Regulation”.

“[§27] of the KOSDAQ Market Listing Regulation” stipulated in [§40(1)1] shall be “[§47] of the KOSDAQ Market Listing Regulation”.

“[§28-2] of the KOSDAQ Market Listing Regulation” and “[§29(1)] of the KOSDAQ Market Listing Regulation” stipulated in [§40(1)2] shall be “[§52] of the KOSDAQ Market Listing Regulation”, and “[§18(1)] of the KOSDAQ Market Listing Regulation”, respectively.

(4) A part of the KONEX Market Listing Regulation shall be amended as follows:

“[§7(9)] of the KOSDAQ Market Listing Regulation”, “[§28(1)] of the KOSDAQ Market Listing Regulation” and “[§38(1) and (2)] of the KOSDAQ Market Listing Regulation” stipulated in [§7(3)1] shall be “[§31(1)] of the KOSDAQ Market Listing Regulation”, “[§53(1)] of the KOSDAQ Market Listing Regulation”, and “[§54(1)] and [§56(1)] of the KOSDAQ Market Listing Regulation”, respectively.

“Any of each subparagraph of [§7(9)3] of the KOSDAQ Market Listing Regulation” stipulated

in [§26-9(2)] shall be “any of each subparagraph of [§31(1)3] of the KOSDAQ Market Listing Regulation”.

“Any of each subparagraph of [§7(9)3] of the KOSDAQ Market Listing Regulation” stipulated in [§26-9(3)] shall be “any of each subparagraph of [§31(1)3] of the KOSDAQ Market Listing Regulation”.

ADDENDA

(Regulation No. 2027 / March 16, 2022)

§1. Effective Date

This Regulation shall become effective on March 18, 2022.

§2. Application of Provisions concerning Mandatory Holding

(1) The amended provisions of [§26], [§61] and [§77] shall apply from the corporation that applies for preliminary listing review after the effective date of this Regulation.

(2) The amended provision of [§36] shall apply from the corporation that submits review documents for backdoor listing pursuant to [§34(2)] after the effective date of this Regulation.

ADDENDA

(Regulation No. 2034 / April 27, 2022)

§1. Effective Date

This Regulation shall become effective on May 22, 2022.

§2. Application Cases

The amended provisions of [§13], [§28] and [§31] shall apply from the corporation that applies for preliminary listing review after the effective date of this Regulation.

ADDENDA

(Regulation No. 2088 / December 7, 2022)

§1. Effective Date

This Regulation shall become effective on December 12, 2022.

§2. Application of Provisions on Investment Attention Issue

(1) The amended provisions of [§52] shall apply from the corporation that falls under the relevant reason for designation as an investment attention issue after the effective date of this Regulation.

(2) The amended provision of [§53] shall apply from the corporation that falls under the relevant reason for designation as an administrative issue after the effective date of this Regulation.

(3) The amended provision of [§54] and [§56] shall apply from the corporation that falls under the relevant reason for delisting by formality review or listing maintenance review after the effective date of this Regulation.

§3. Application of Provisions on Loss from Continuing Businesses before Corporate Tax

The amended provisions of the main sentence of the part other than each item of [§53(1)2] and the latter part of [§56(1)3(n)] shall apply from the loss from continuing businesses before corporate tax of the business year to which the effective date of this Regulation belongs.

§4. Interim Measure, etc. on Operating Loss

(1) For listing maintenance review on those corporations determined to be subject to the listing maintenance review due to the reason of [§56(1)3(i)] of the previous Regulation before the effective date of this Regulation, the previous Regulation shall apply.

(2) Administrative issues designated as administrative issues pursuant to [§53(1)3] of the previous Regulation before the effective date of this Regulation shall be released from the designation due to the concerned reason as an administrative issue on the effective date of this Regulation. Provided that, for those corporations that falls under the paragraph (1) above, the designation as an administrative issue shall be released on the next day of the decision to maintain the listing by Corporate Review Committee or Market Committee.

§5. Interim Measure, etc. on Capital Impairment

(1) For corporations that fell under the reason of delisting by formality review pursuant to the previous Regulation of [§54(1)8(a), (b) & (d)] before the effective date of this Regulation, the delisting by formality review pursuant to the previous Regulation shall apply.

(2) The corporation that fall under the paragraph (1) above shall be released from the concerned designation as an administrative issue on the next day of the day when all the reasons for the delisting by formality review are resolved pursuant to [§54(1)8(b), (c) & (d)]. In such cases, in a case where a corporation fails to resolve the reasons of designation as an administrative issue pursuant to the previous Regulation of [§54(1)4(a), (b) & (c)], it shall be designated as an investment attention issue on the day of the release from an administrative issue in spite of [§2(1)] of the Addenda.

(3) The corporation that was designated as an administrative issue due to capital impairment or equity capital not up to standards as of the end of half-year period pursuant to the previous Regulation of [§53(1)4(a)&(b)] before the effective date of this Regulation shall be released from the concerned designation as an administrative issue on the effective date of this Regulation and designated as an investment attention issue pursuant to the amended Regulation of [§52(1)2(h)&(i)] in spite of [§2(1)] of the Addenda. Provided that the corporation that falls under the paragraph (1) above shall be excluded.

(4) The corporation that was designated as an administrative issue due to auditor's review or audit opinion of adverse, disclaimer of opinion or qualified due to the limit of the scope of audit on the semi-annual financial statements pursuant to [§53(1)4(c)] of the previous Regulation before the effective date of this Regulation shall be released from the concerned designation as an administrative issue on the effective date of this Regulation and designated as an investment attention issue pursuant to the amended Regulation of [§52(1)2(j)] in spite of [§2(1)] of the Addenda. Provided that the corporation that falls under the paragraph (1) above shall be excluded.

(5) The corporation that was designated as an administrative issue pursuant to the previous Regulation of [§53(1)4(d)] before the effective date of this Regulation shall be released from the concerned designation as an administrative issue on the effective date of this Regulation. Provided that the corporation that falls under the paragraph (1) above shall be excluded.

§6. Interim Measure on Formal Objection to Delisting by Formality Review

For the corporation to which a reason for delisting by formality review has occurred pursuant to [§54(1)6&9] of the previous Regulation before the effective date of this Regulation, the previous Regulation shall apply notwithstanding the amended Regulation of [§55(1)2&4].

§7. Interim Measure on Listing Maintenance Review

For the corporation to which a reason for delisting by formality review has occurred pursuant to [§54(1)3&4] of the previous Regulation before the effective date of this Regulation, the listing maintenance review shall apply pursuant to the previous Regulation.

§8. Interim Measure on Operation Status of Internal Accounting Management System

For the corporation which was decided to be subject to listing maintenance review due to a reason of [§56(1)3(m)] of the previous Regulation before the effective date of this Regulation, the listing maintenance review shall apply pursuant to the previous Regulation.

ADDENDA

(Regulation No. 2203 / December 27, 2023)

§1. Effective Date

This Regulation shall become effective on January 1, 2024.

§2. Application Cases

The amended provisions of [§13], [§30], [§63], and [§75] shall apply from the corporation that applies for preliminary listing review after the effective date of this Regulation.

ADDENDA

(Regulation No. 2343 / July 9, 2025)

§1. Effective Date

This Regulation shall become effective on July 10, 2025. Provided that the amended provisions of [§53(1)5] and [§54(1)12] shall become effective on January 1, 2026, and the amended provisions of [§53(1)1] and [§56(1)15] and [§6(1)2(e)(i)©] of the KOSDAQ Market Disclosure Regulation in [§9] of this ADDENDA shall become effective on January 1, 2027.

§2. Application of Provisions Concerning Improvement of Procedures of Preliminary Listing Review and Mandatory Holding of Listing Sponsor

The amended regulations of [§6] and [§26] shall apply from the corporation that applies for preliminary listing review for initial listing or listing after merger after the effective date of this Regulation

§3. Application of Provisions Concerning Backdoor Listing

The amended regulations of [§33(1)1(a)] shall apply from the case where the board of directors of a corporation that has listed its common stocks and is a party to the merger makes a resolution for the merger after the effective date of this Regulation.

§4. Interim Measures and Application of Provisions Concerning Market Capitalization Not Up to Standards

(1) Notwithstanding the amended regulations of [§53(1)5] and [§54(1)12], market capitalization noted in the amended regulations of [§53(1)5] and [§54(1)12] for the period from January 1, 2026 to December 31, 2027 shall be applied with market capitalization stated in the following table.

Application period	Market Capitalization	Remarks
From July 10, 2025 to December 31, 2025	KRW 4 billion	Same as before
From January 1, 2026 to December 31, 2026	KRW 15 billion	-
From January 1, 2027 to December 31, 2027	KRW 20 billion	-

(2) Corporations listed on the KOSDAQ market that were designated as administrative issues due to insufficient market capitalization under the previous regulations at the time of enforcement of this Regulation shall be deemed to have been designated as administrative issues under the amended regulation of [§53(1)5].

(3) The number of days of shortfall in market capitalization calculated pursuant to amended regulations in [§53(1)5] and [§54(1)12] at the time of application of this Regulation shall be deemed as the number of days of shortfall in market capitalization calculated by adding the number of days for which the market capitalization is short based on the market capitalization for each applicable period noted in paragraph (1).

§5. Interim Measures and Application of Provisions Concerning Sales Amount Not Up to Standards

(1) Notwithstanding the amended regulations of [§53(1)1] and [§56(1)15], the sales amount (referring to sales amount in the auditor's report for the latest business year; the same hereinafter in this Article) noted in the revised regulations of [§53(1)1] and [§56(1)15] shall be applied with the sales amount stated in the following table for the period from January 1, 2027 to December 31, 2028.

Application period (based on the submission time of auditor's report)	Sales amount	Remarks
From July 10, 2025 to December 31, 2025	KRW 3 billion	Same as before
From January 1, 2027 to December 31, 2027	KRW 5 billion	-
From January 1, 2028 to December 31, 2028	KRW 7.5 billion	-

(2) Corporations listed on the KOSDAQ market that were designated as administrative issues due to insufficient sales amount under the previous regulations at the time of enforcement of this Regulation shall be deemed to have been designated as administrative issues under the amended regulation of [§53(1)1].

(3) When determining whether to terminate the designation of a corporation listed on the KOSDAQ market whose stock is designated as an administrative issue due to insufficient sales pursuant to the previous regulations at the time of application of this Regulation, the requirement for sales amount not up to standards at the time of designation as an administrative issue shall be applied.

(4) If a corporation listed on the KOSDAQ market that has been relieved from the designation as an administrative issue pursuant to paragraph (3) fails to meet the sales amount requirement stipulated in the amended regulation of [§53(1)1], the Exchange shall redesignate it as an administrative issue.

§6. Application of Provisions Concerning Cases Falling under Auditor's Opinion Not Up to Standards for Two (2) Consecutive Years

The amended regulations of [§54(1)1-2] shall apply from the case where the auditor's opinion not up to standards noted in [§54(1)1] occurs for the first time after the effective date of this Regulation.

§7. Application of Provisions Concerning Improvement of Procedures for Listing Maintenance Review

The amended regulations of [§57] shall apply from a corporation listed its common stocks which is deliberated and decided by the Corporate Review Committee pursuant to [§57(3)] after the effective date of this Regulation.

§8. Application of Provisions Concerning Profit/Loss from Continuing Operations before Tax

The amended regulations of [§28] and [§75] shall apply from a corporation that applies for preliminary listing review for initial listing or listing after merger after the effective date of this Regulation.

§9. Amendment of Other Regulations

The KOSDAQ Market Disclosure Regulations shall be revised as follows:

- In [§6(1)2(e)(i)Ⓢ], “KRW 3 billion” shall be revised to “KRW 10 billion”.
- In [§6(1)2(e)(iii)Ⓢ], “[§56(1)3(m) through (p)]” shall be revised to “[§56(1)15 through 18]”.
- In [§33(1)], “[§56(1)3(j)]” shall be revised to “[§56(1)12]”.

§10. Special Exceptions to Amendment of Other Regulations

Notwithstanding the amended regulations of the KOSDAQ Market Disclosure Regulations revised in accordance with [§9] of this ADDENDA, sales amount noted in the amended regulations in [§6(1)2(e)(i)Ⓢ] of the KOSDAQ Market Disclosure Regulations revised in accordance with [§9] of the ADDENDA for the period from January 1, 2027 to December 31, 2028 shall be applied with the sales amount stated in the table in [§5(1)] of this ADDENDA.

ADDENDUM

(Regulation No. 245 / March 4, 2026)

This Regulation shall become effective on March 17, 2026.

ADDENDA

(Regulation No. 2440 / May 13, 2026)

§1. Effective Date

This Regulation shall become effective on July 1, 2026. Provided that the amended provisions of [§56(1)17-2] shall become effective on June 1, 2026.

§2. Application of Provisions Concerning Market Capitalization Not up to Standards

(1) From July 1, 2026 to December 31, 2026, the criteria on market capitalization not up to standards under [§53(1)5] and [§54(1)12] shall be applied with the market capitalization stated in the following table.

Application period	Market capitalization	Remarks
From January 1, 2026 to June 31, 2026	KRW 20 billion	
From July 1, 2027 to December 31, 2026	KRW 20 billion	

(2) Corporations listed on the KOSDAQ market that were designated as administrative issues due to market capitalization not up to standards under the previous regulations at the time of enforcement of this Regulation shall be deemed to have been designated as administrative issues under the amended regulation of [§53(1)5].

(3) When calculating the number of days of market capitalization not up to standards pursuant to the amended provisions of [§53(1)5] and [§54(1)12], the standard for the market capitalization amount shall be determined based on the market capitalization for each applicable period under paragraph (1).

(4) The method for calculating the number of days of market capitalization not up to standards pursuant to the amended provisions of [§54(1)12] shall apply starting from corporations designated as administrative issues pursuant to the amended provisions of [§53(1)5] following the enforcement of this Regulation.

§3. Application of Provisions Concerning Stock Price Not up to Standards

(1) The number of days of stock price not up to standards pursuant to [§53(1)5-2] shall be calculated from the first day when the closing price of common stocks is less than KRW 1,000 after the enforcement of this Regulation.

(2) Cases where the date of a listing change due to a reverse stock split or capital reduction is prior to the effective date of this Regulation shall not be deemed to fall under the provisions “listing change due to a reverse stock split or capital reduction within the past one (1) year” in the amended provisions of [§54(1)13(b)].

§4. Application of Provisions Concerning Listing Eligibility Review for Impairment of

Entire Capital at the End of Half-year

The amended provisions of [§56(1)17-2] shall apply starting from corporations for which the first half-year end arrives after the effective date of the relevant amended provisions.

§5. Application of Provisions Concerning Listing Eligibility Review for Violation of Disclosure Obligation

In applying amended provisions of [§56(1)12], the cumulative demerit points already imposed prior to the effective date of the amended provision shall be applied by converting them into 2/3 of the total demerit points.

ADDENDA

(Regulation No. 2453 / July 1, 2026)

§1. Effective Date

This Regulation shall become effective on July 2, 2026.

§2. Application Cases concerning Listing Maintenance Review of Addition or Change of Business Objectives for Technology Growth Companies

The amended provisions of [§46(1)6-2] shall apply from the corporation that applies for preliminary listing review of the KOSDAQ market after the effective date of this Regulation.

ADDENDA

(Regulation No. 2477 / July 31, 2026)

§1. Effective Date

This Regulation shall become effective on August 3, 2026.

§2. Application Cases concerning Special Provisions on Listing of Subsidiaries, etc.

The amended provisions of [§19-2] and [§53-2] shall apply to a KOSDAQ-listed corporation of which a subsidiary, etc. applies for listing (including cases where procedures similar to applying for listing are carried out in an overseas securities market) from the effective date of this Regulation. Provided that they shall not apply if a securities registration statement, etc., was submitted to the relevant regulatory authority, etc., of the country concerned for listing on an overseas securities market before the effective date of this Regulation.

§3. Application Cases concerning Backdoor Listing via Transaction with Unlisted Company

The amended provisions of [§33(3)] shall apply from the time when a common-stock-listed

company resolves, through its board of directors, to conduct a transaction falling under any of the subparagraphs of [§33(1)] with an unlisted company after the effective date of this Regulation.